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MAINS MAGNUM

2026

Jan 2025 – May 2026 Mains Current Affairs



Theme-wise Most Probable Questions (MPQs)

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Your One-Stop Quick-Revision Current Affairs for UPSC CSE Mains 2026

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TO OUR READERS

Dear Future Administrators,

Welcome to **PMF IAS Mains Magnum 2026 Series 2.0**—an 8-subject compilation designed for focused and effective UPSC Mains preparation. This series covers current affairs from **January 2025 to May 2026**, curated specifically from a Mains perspective. An additional compilation covering June and July 2026 will also be released to keep your preparation complete and up to date.

The objective of Mains Magnum is simple: to help you **revise more in less time**. Important topics have been **marked with */**** to enable focused revision and better prioritisation. To keep the material concise and revision-friendly, we have avoided generic introductions, conclusions, and way-forward sections, focusing instead on core content, facts, analysis, constitutional provisions, committee recommendations, and examination-relevant dimensions.

We begin this series with **Polity and Constitution**, one of the most important components of General Studies Paper-II. Analysis of UPSC Mains papers shows that Polity and Constitution consistently account for **nearly 40-50% of GS-II**, contributing **approximately 100-130 marks**. Topics related to the Constitution, governance, federalism, judiciary, elections, and accountability mechanisms continue to receive significant attention from UPSC, making this one of the highest-return areas for preparation.

For additional support, students may refer to **PMF IAS Pathfinder for Mains**, which covers answer-writing frameworks, value addition, and broader dimensions relevant to the examination.

We hope this compilation helps you revise more clearly, save valuable time, and approach the examination with confidence.

With best wishes,
(Mains Team, PMF IAS)

If you spot an error or would like to share feedback, please feel free to reach out. Every message is read carefully & helps us improve future editions. Telegram: t.me/MohitKJha

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PMF IAS Mains Magnum + Pathfinder 2026 — Polity

UPSC CSE Mains 2026 Specific Polity & Constitution Current Affairs and Mains Pathfinder Questions from January 2025 to May 2026

Note Before You Begin

1. Material covers Jan 2025 to May 2026, curated in a crisp and relevant manner for effective last-minute preparation.
2. Content marked with */** highlights important Articles to help you focus & revise effectively.
3. To save time, we've skipped generic elements like introductions, conclusions, & way forwards, focusing strictly on core content.
4. For answer structuring, refer to PMF IAS Pathfinder For Mains if needed.

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Constitution & Provisions

{IC – Sovereignty} India's Sovereignty is Non-Negotiable

- **Context (PIB):** Vice-President Jagdeep Dhankhar strongly asserted that India is a sovereign nation and **no external force can dictate** its internal or foreign policy decisions.
- His remarks come amid rising global narratives and pressures attempting to influence India's autonomous decision-making. He stressed that **India's sovereignty is supreme**, rooted in the Constitution.

What is Sovereignty?

- Sovereignty refers to the **supreme** and **independent authority** of a state to **legislate**, **govern**, and **enforce** its decisions **without external interference**.
- It encompasses both **legal** and **political** supremacy within a territory.
- **Defined Jurisdiction:** Sovereignty requires defined control over **land**, **airspace**, and **maritime** zones.

Aspects of Sovereignty

- **Internal Sovereignty:** The supreme legal authority over individuals and institutions **inside the state**.
- It **enables full control** over all individuals and institutions within state borders.
- **External Sovereignty:** The ability to engage in foreign affairs free from **external interference**.
- It ensures **complete independence** in foreign affairs and international decision-making.

Historical Roots of Sovereignty

- **Westphalian Principle (1648):** Recognised exclusive state sovereignty & barred external interference.
- **Glorious Revolution (1688):** Transferred sovereignty from the monarch to an accountable elected Parliament.
- **French Revolution (1789):** Asserted that sovereignty belongs to the **people, not the monarchy**.

Key Attributes of Sovereignty

- **Absoluteness:** Sovereignty implies **final** and **unquestionable authority** within state boundaries.
- **Indivisibility:** Sovereignty **cannot be shared** among parallel or competing institutions.
- **Permanence:** Sovereign authority continues through **constitutional** or **political transitions**.
- **Originality:** Sovereignty **emerges internally** from the state, not conferred by others.
- **Inalienability:** Sovereignty **cannot** be legally **surrendered** or permanently transferred.
- **Universality:** Sovereignty applies to all persons, laws, and institutions under the state.

Limitations to Sovereignty

- **Moral Limits:** Sovereignty is **checked by moral values**, divine law, and **natural rights**.
- **Constitutional Limits:** Sovereignty must operate within the Constitution's **basic structure**.
- **International Commitments:** Treaties and global legal norms **constrain sovereign** freedom.
- **Popular Legitimacy:** Sovereignty in democracies depends on ongoing **public consent**.

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➢ **Secession Ban:** Sovereignty **excludes** any **legal right** to secede under global law.

Sovereignty in India

- **Preamble** declares India as a **sovereign**, socialist, secular, democratic republic, which signifies:
- Freedom from colonial or **external control**,
- **Independent** law-making and foreign policy,
- Power rooted in the people, expressed through **elections** and **constitutionalism**.
- India adopts **constitutional supremacy**, not parliamentary sovereignty like the UK.

Constitutional Provisions Supporting Sovereignty

- **Article 1:** Declares India a **"Union of States"**, affirming indivisible territorial sovereignty.
- **Article 2:** Authorises Parliament to admit or establish **new states** under **sovereign control**.
- **Article 51:** Encourages **international peace** but preserves India's external sovereign discretion.
- **Article 51A(c):** Makes it a **citizen's duty** to uphold India's sovereignty and integrity.
- **Article 53:** Vests executive power in the **President**, centralising sovereign authority in the Union.
- **Third Schedule:** Requires public office-holders to **affirm loyalty** to India's sovereignty **via oaths**.

Non-Constitutional Elements Supporting Sovereignty

- **Armed Forces:** Protect India's territorial and political sovereignty from **external threats**.
- **Foreign Policy:** Reflects sovereign independence in global strategy and alliances.
- **RPA Section 29A(5):** Requires **political parties** to affirm allegiance to national sovereignty.
- **National Symbols:** Flags, anthems, and pledges reinforce **civic allegiance** to sovereign authority.

Challenges to India's Sovereignty

➢ **Territorial Disputes:** China's and Pakistan's **border claims pose a threat** to India's territorial sovereignty.
➢ **Terrorism:** Cross-border militancy undermines India's internal and **security sovereignty**.
➢ **Cyber Threats:** Foreign surveillance and spyware compromise India's **digital sovereignty** infrastructure.
➢ **Trade Restrictions:** **WTO rulings** constrain sovereign discretion over domestic trade policies.
➢ **Investor Cases:** **Foreign tribunals** bypass Indian courts, weakening legal sovereignty mechanisms.
➢ **Policy Influence:** Foreign-funded NGOs distort India's legislative sovereignty and **narrative control**.
➢ **IMF-WTO Mandates:** Global institutions restrict sovereign **fiscal** and **economic** policymaking authority.

{IC – Democracy} Reflecting on India's 75 Years of Democracy *

❖ **Context (IE):** Celebrating 75 years of the Indian Republic is an opportunity to reflect on the nation's journey, challenges and aspirations under its Constitution.

India's Transition from Colonial Rule

- **Birth of a Republic:** India emerged from colonial rule to establish its Constitution, securing **universal adult suffrage** amid sectarian violence.
- **Democratic Vision:** The Constitution guaranteed **freedoms, equality, dignity,** and **fraternity**, envisioning **social justice** and **equitable resource distribution.**

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Major Achievements Over 75 Years

- **Life Expectancy:** Increased from **32 to 75 years**.
- **Agriculture:** Became a top producer of food grains globally.
- **Literacy:** Improved from 12% to 75%.
- **Infrastructure:** Significant strides in power generation, roads, and connectivity.
- **Economy:** India now holds the position as the world's fifth-largest economy.
- **Space Milestones:** **Chandrayaan-3's** successful soft landing showcased India's advancements.
- **Political Stability:** Demonstrated enduring stability compared to neighbouring countries & older democracies.
- **Digital Revolution:** Significant advancements in banking, education & retail through technology.
- **National Aspiration:** Progress in fulfilling the Constitutional promise of dignity and equality for citizens.

Challenges in Fulfilling the Constitutional Mandate

- **Implementation Gaps:** **Inequalities** persist in access to education, healthcare, and employment despite constitutional guarantees.
- **Caste Discrimination:** Societal issues like **manual scavenging** highlight the need for deeper reforms.
- **Wealth Inequality:** A small minority **holds a disproportionate share** of national wealth.
- **Gender Disparity:** Persistent gaps in education, employment, and social rights for women undermine equality.
- **Overburdened Judiciary:** **Slow justice delivery** and **limited infrastructure** with judges handling 60–150 cases daily.
- **Digital Exclusion:** Geographic limitations, low spending capacity, and limited digital literacy exclude millions from essential services.
- **Climate Change Concerns:** Rising temperatures, erratic rainfall, and extreme weather events disproportionately affect agriculture, public health, and marginalized communities.
- **Systemic Discrimination:** Persistent inequalities and societal barriers hinder dignity and fraternity for marginalized groups.
- **Inequality in Prosperity:** Emphasis on gross wealth instead of individual well-being & societal harmony.

Way Forward

- ✓ **Judicial Reforms:** Expand court infrastructure, increase judge strength, and introduce affordable, fast-track justice mechanisms.
- ✓ **Bridging the Digital Divide:** Improve rural internet connectivity, provide affordable digital solutions, and enhance digital literacy for underserved communities.
- ✓ **Addressing Climate Change:** Focus on **sustainable development policies** and **prioritise disaster mitigation** for vulnerable groups.
- ✓ **Fostering Dignity and Fraternity:** Eradicate systemic discrimination, promote equal opportunities, and implement inclusive policies to uplift marginalised communities.
- ✓ **Societal Well-being:** Shift focus from gross wealth to individual dignity, equality, and harmonious societal growth.

{IC – Emergency} 50 Years of Emergency **

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- **Context (IE): 50 years** since the Emergency was imposed on **June 25, 1975,** it remains one of the darkest chapters in democratic history.

Historical and Political Background

- **Economic Crisis:** Post-1971 war, droughts & 1973 oil shock led to inflation & severe economic instability.
- **Political Discontent:** Corruption, inflation and governance failures triggered public dissatisfaction.
- **Mass Movements:** JP-led 1974 student protests and the **Allahabad High Court (12 June 1975)**, invalidating Indira Gandhi's election, intensified the crisis.
- **Emergency Proclamation:** On **25 June 1975**, an Emergency was declared, followed by power cuts and an announcement via All India Radio.

Key Features of the Emergency

- **Centralisation of Power:** India's federal structure was **undermined as the Centre seized control** over states, encroached on State List areas, and manipulated finances. The **42nd Amendment (1976)** further centralised power, curtailed judicial review, and weakened institutional checks.
- **Suppression of Civil Liberties:** Fundamental rights were suspended, with media under pre-censorship and over 250 journalists jailed. Newspapers like The Indian Express resisted by publishing blank editorials.
- **Draconian Laws:** Over **1.12 lakh people** were detained under laws like MISA and COFEPOSA. Opposition leaders, activists, students, and even common citizens faced imprisonment without trial.
- **Forced Sterilisations:** Sanjay Gandhi's **five-point programme**, particularly the coercive family planning.
- **Postponement of Elections:** The 1976 Lok Sabha elections were deferred. In early 1977, Indira Gandhi lifted the Emergency and called elections, leading to Congress's historic defeat and the Janata Party's rise.

Constitutional Safeguards Post-Emergency

❖ The **44th Constitutional Amendment (1978),** enacted by Janata government, brought critical reforms:

- **"Internal disturbance"** as grounds for Emergency was replaced by **"armed rebellion."**
- Emergency proclamation now required **parliamentary approval** by **special majority** within one month.
- **Judicial review** of Emergency proclamations was reinstated.
- **Fundamental rights**, especially Article 21 (Right to Life and Liberty), were made **non-suspendable** during Emergency.

Legacy and Long-Term Impact

- **Political Realignments:** The Emergency catalysed the rise of new political forces, the **socialists**, the **RSS-BJP** camp, and OBC leaders like Lalu Prasad, George Fernandes, and Ram Vilas Paswan.
- **Rise of the OBC Movement:** The **Mandal Commission**, appointed by the Janata government, laid the groundwork for OBC reservations and political empowerment in the 1990s.

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NATIONAL EMERGENCY

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GROUNDS FOR INVOKING A NATIONAL EMERGENCY

Article 352 **War**, **external aggression**, or **armed rebellion** threatens the security of India or a part of it; the **President** can declare a national emergency.

- Can be declared **even before** the **occurrence of the actual threat.**

TYPES OF EMERGENCIES

External Emergency

Due to war or external aggression.

Internal Emergency

Due to **armed rebellion.**

PROCEDURES FOR AUTHORISATION AND DURATION OF A NATIONAL EMERGENCY

Approval

- By **both Houses** of Parliament with a **special majority** within **1 month.**
- If **Lok Sabha** is **dissolved**, approval **within 30 days** of its **first sitting** (**Rajya Sabha** must **approve** in the **meantime**).

Duration

Effective for **six months**; can be **extended indefinitely** with special majority approval **every six months.**

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REVOKING OF NATIONAL EMERGENCY (ARTICLES 352(2) AND 352(7))

The **President** can **revoke** an emergency **without parliamentary approval.**



Emergency **lapses after 6 months unless** extended by Parliament's **approval** every 6 months.

IMPACTS OF THE IMPOSITION OF A NATIONAL EMERGENCY

Executive Centre can direct states in exercising their authority.

Legislative **Parliament** can legislate on **state list** subjects.

Financial **President** can alter revenue distribution between Centre and States.

Lok Sabha Term can be extended by **one year at a time**, up to 6 months after the Emergency ends.

State Assembly Term can be **extended** similarly, up to **6 months** post-Emergency.



EFFECT ON FUNDAMENTAL RIGHTS

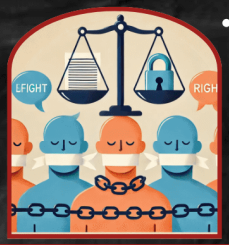
Article 358

Article 19 rights **suspended** during Emergency on grounds of **war or external aggression.**



Article 359

- **President** can suspend the right to move courts for enforcing certain fundamental rights.
- Rights under **Articles 20** & **21** remain enforceable
- Suspension applies only to rights specified in the **presidential order.**



INSTANCES WHEN THE NATIONAL EMERGENCY WAS IMPOSED IN INDIA

Indo-China war, 1962 | **Bangladesh Liberation War (Indo-Pak War), 1971** | **Internal Emergency, 1975**

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- **Decline of One-Party Dominance:** The Congress's 1977 defeat marked the beginning of the end of single-party rule. While the Janata experiment collapsed in 1979, the political churning eventually led to the Congress's decimation in 2014.
- **Democratic Vigilance:** The Emergency has remained a **symbolic caution** for institutions & citizens alike, reinforcing the need for press freedom, judicial independence, & institutional checks on executive power.

{IC – Emergency} President's Rule in Manipur **

❖ **Context (TH | TH):** President's Rule was imposed in Manipur in February 2025 after CM N. Biren Singh resigned amid ongoing ethnic violence and political instability.

Historical Context and Need for President's Rule

- **Origin:** Derived from **Section 93** of the **Government of India Act, 1935,** which empowered the Governor-General and Governors to handle constitutional breakdowns.
- **Necessity Stressed by:** B.R. Ambedkar, Alladi Krishnaswami Ayyar, K. Santhanam & Thakur Das Bhargava.

Key Objectives

- Protect **unity and integrity** of the nation in a diverse society.
- Address **governance breakdown** and uphold law and order.
- Strengthen **federalism** while ensuring cooperation between Centre and States.
- Protect **individual liberty** when state machinery collapses.
- Ensure **constitutional compliance** by state governments.
- Secure states from **external aggression** and **internal disturbances** under **Article 355**.

President's Rule

- President's Rule, also known as **State Emergency** or **Constitutional Emergency,** is a provision under **Article 356** of the Constitution.
- It allows the central government to take **direct control** of a state when the state government is unable to function according to constitutional provisions (on receipt of a report from the **Governor** of a state).
- The President can assume all or any of the functions of the state government.

Important Provisions

- President's Rule can be imposed for **six months** initially. It can be extended for a **maximum of three years** with the approval of Parliament every six months.
- Both Houses of Parliament must approve the imposition of the President's Rule within **two months**.
- The President can revoke the proclamation at any time. If the Lok Sabha rejects the continuation of the President's Rule, it must be **revoked**.
- The state assembly is **suspended or dissolved** during the President's Rule.

Judicial Interventions and Commission Recommendations

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- **S.R. Bommai Case (1994):** The Supreme Court ruled that imposition is subject to judicial review and recommended a floor test for the government majority.
- **88th Amendment (2003):** Inserted a new clause (4) in **Article 361**, giving immunity to the Governor for the exercise of powers under Article 356.
- **Sarkaria Commission (1988):** Use the President's Rule sparingly and issue a warning before imposition.
- **Punchhi Commission (2010):** Recommended a **time-bound response** from the President and non-dissolution of the state assembly before parliamentary approval.

⇨ ***Article 365*** *provides additional grounds for the President to invoke Article 356.*

⇨ *If a state government fails to comply with or implement* ***directions*** *given by the* ***central government*** *under constitutional provisions, it can lead to the imposition of the President's Rule.*

Instances of President's Rule in India

- **Total Occurrences:** Imposed **135 times** since 1950 across 35 States and Union Territories.
- **Most Affected States**: **Manipur** (11 times, including 2025); **Uttar Pradesh** (10 times); **Jammu & Kashmir** (longest duration – **15 years**); **Punjab** (over 10 years due to insurgency); **Puducherry** (over 7 years).
- **First Imposition:** **Punjab (1951)** after CM Gopi Chand Bhargava resigned.
- **Longest Single Instance in Manipur:** **1969–1972 (2 years, 157 days)**.

Political Aspects of President's Rule

- **More in Opposition-Ruled States:** Often used when Centre & State govts are from different parties.
- **Same-Party Impositions:** Occurred in Andhra Pradesh (1973), Assam (1981), Gujarat (1974), Karnataka (1990), and Manipur (2025).
- **Historical Political Use:** President's Rule was imposed by the Janata Party (1977) and Indira Gandhi (1980) to dismiss opposition-ruled state governments.
- **Supreme Court Refused to Interfere** in these political decisions.

Impact of President's Rule on State Governance

- **State Administration:** Governor, acting on behalf of the President, runs the State with assistance from bureaucrats or advisors.
- **Legislative Powers:** President can delegate State legislative functions to Parliament under **Article 357**.
- **Financial Control:** President can approve State expenditure from the Consolidated Fund.

Suspended Animation of Legislature

- **Definition:** The State Assembly remains intact but non-functional during President's Rule.
- **Historical Data:** Out of 111 cases until 2015, the Assembly was dissolved in 53 cases while the rest remained in suspended animation.
- **Legal Perspective:** The Bommai case mandates temporary suspension, with Assembly revival upon President's Rule revocation, and the Supreme Court warns against arbitrary dissolution.

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- **Criticism:** Suspended animation lacks constitutional backing, as Parliament assuming all legislative powers makes an inactive Assembly redundant.

Reasons for Imposition of President's Rule in Manipur

- **Ethnic Conflict:** Ongoing violence between Meitei and Kuki-Zo communities since May 2023, with over 250 casualties and 60,000 displaced.
- **Political Instability:** Resignation of CM Biren Singh and BJP's failure to decide on a successor.
- **Failure of Governance:** Inability to maintain law and order effectively.

Way Forward for Manipur

- ✓ **Restoring Normalcy:** Address ethnic conflicts impartially to rebuild trust in governance.
- ✓ **Rule of Law:** Ensure that law and order are handled without political bias.
- ✓ **Institutional Reforms:** Strengthen administrative mechanisms to prevent future breakdowns.
- ✓ **State Sovereignty:** Balance between Central intervention & State autonomy to uphold federalism.

{IC – Cooperative} Rapid Expansion of India's Cooperative Sector *

❖ **Context (NIE):** India's cooperative sector has **expanded rapidly in recent years**, becoming one of the world's largest organised economic networks.

Status of Cooperative Societies in India

- **Total Count:** The **National Cooperative Database** records **over 8.5 lakh** registered cooperative societies, accounting for **nearly 27%** of all cooperative societies worldwide.
- **Operational Share:** About **6.6 lakh**, roughly **three-fourths** of registered societies, are **fully functional**.
- **Membership Base:** Cooperative membership is close to **32 crores**, spanning **30 sectors** and covering **98% of rural India**.
- **Women's Inclusion:** About **10 crore women** are integrated into cooperatives, largely through **self-help groups**(SHGs).
- **State Leader:** **Maharashtra** leads with over 2.21 lakh cooperatives and around 5.8 crore members.

⇨ *National Cooperative Database (NCD), managed by the Ministry of Cooperation, is a digital repository that provides a single access point to cooperative society data across India.*

Significance of Cooperative Societies in India

- ✓ **Financial Inclusion:** Primary Agricultural Credit Societies (**PACS**) provide **last-mile credit**, accounting for about **15% of agricultural lending**.
- ✓ **Input Security:** National cooperatives like **IFFCO** and **KRIBHCO** supply **one-third of India's fertilisers**.
- ✓ **Value Addition:** Cooperatives process **over 30% of India's sugar** and market a major share of India's milk output.
- ✓ **Price Realisation:** The cooperative model **reduces the number of intermediaries**, allowing producers to retain a higher share of consumer prices.

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- ✓ **Job Creation:** The sector generates significant **non-farm livelihoods**, accounting for over **13%** of **direct employment**.
- ✓ **Inclusive Growth:** Cooperatives **democratise rural economic participation** by integrating women and marginal farmers into formal finance.

Challenges with India's Cooperative Sector

- ➢ **Political Interference:** Excessive **government control** and **politicisation** undermine cooperative autonomy and erode democratic decision-making.
- ➢ **Weak Finances:** Many rural cooperatives face high levels of **non-performing assets** and **dependence on state funding**.
- ➢ **Low Professionalism:** A **shortage of trained managers** and technical expertise reduces efficiency relative to commercial banks.
- ➢ **Regional Skew:** Cooperative success remains **concentrated in Maharashtra** and **Gujarat**, with a weak presence in eastern and northern India.
- ➢ **Technology Gaps:** **Slow digitisation** limits the operational efficiency, transparency, and competitiveness of cooperative institutions.

Way Forward

- ✓ **Governance Reforms:** Prioritise professional management and **transparent**, **regular elections** to restore democratic control within cooperatives.
- ✓ **Digital Upgrade:** Accelerate **computerisation** of **Primary Agricultural Credit Societies** to improve transparency and service delivery.
- ✓ **Activity Diversification:** Expand cooperatives into **processing**, **warehousing**, and **marketing** beyond basic credit operations.
- ✓ **Skill Development:** Implement **large-scale training** to build **banking**, **managerial**, and **financial literacy** capacities.
- ✓ **Regulatory Harmony:** Promote adoption of **uniform model bye-laws** across states to create an enabling cooperative ecosystem.

Governance of Cooperatives in India

- **Fundamental Right:** The **97th Constitutional Amendment Act, 2011**, granted citizens the fundamental right to form cooperatives under **Article 19(1)(c)**.
- **Part IXB:** The amendment inserted **Part IXB** to provide a **uniform framework** for cooperative incorporation and management.
  - ❖ **Judicial Limitation:** The Supreme Court (2021) **upheld the validity** of Part IXB **only for Multi-State Cooperative Societies**.
- **State Cooperatives:** State-level cooperatives are governed by the respective **State Cooperative Societies** Acts under **Entry 32** of the **State List**.
- **Multi-State Cooperatives:** Multi-State Cooperative Societies are governed by the **MSCS Act, 2002**, under **Entry 44** of the **Union List**.
- **Regulatory Authorities:** State cooperatives are regulated by **State Registrars of Cooperative Societies**, whereas multi-state cooperatives are regulated by the **Central Registrar**.

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- **Banking Regulation:** Cooperative banks are registered under **cooperative laws**, but regulated by the **RBI** under the **Banking Regulation Act**, **1949**.
  - ❖ **Rural Oversight:** The **NABARD supervises** and regulates rural cooperative banks.
- **Union Ministry:** The **Ministry of Cooperation** was established in **2021** to provide policy oversight.

Read More>*Cooperative Societies in India*

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Federal Structure

{IC – Federalism} Structural Reset of Indian Federalism *

❖ **Context (TH):** Forged in Partition's shadow, **India's federalism privileged centralisation**; today, a mature democracy demands **balanced autonomy** and **cooperative governance**.

Constitutional Framework of Federalism

- **Article 1:** Declares India as a **"Union of States,"** ensuring indissoluble unity with constitutionally recognised States.
- **Division of Powers:** The **Seventh Schedule** distributes legislative authority into the **Union List**, the **State List**, and the **Concurrent List**.
- **Article 246:** Clearly **demarcates legislative competence** between Parliament and State Legislatures.
- **Article 254:** Establishes **Union primacy in case of conflict** on **Concurrent List** subjects.
- **Fiscal Federalism (Article 280):** Provides for a **Finance Commission** to recommend tax devolution between the Union and the States.
- **Basic Structure Doctrine:** Federalism recognised as part of the **Constitution's Basic Structure** in **S.R. Bommai (1994)**.

Centralisation Trends

- **Historical Centralisation:** Power gained under necessity persists beyond crisis, **limiting State autonomy**. E.g., **Single-party dominance** after Independence reinforced central control over the States.
- **Political Evolution:** **Coalition and regional parties** enabled more balanced federal governance. E.g., Rise of regional parties in the 1990s improved State influence.
- **Persistent Overreach:** Centralisation **hardened into a habitual practice** despite strong national unity. E.g., Ministries in New Delhi duplicate State functions such as health and education.
- **Legislative Override:** **Union uses laws and subordinate rules to override** State priorities. E.g., Central overrides States in education policy reform.

Need to Restore Federal Balance

- **Fiscal Centralisation:** Growing reliance on **cesses and surcharges** reduces States' tax share. E.g., education and infrastructure cesses are excluded from the divisible pool under **Article 270**.
- **Scheme Rigidity:** **Uniform CSS guidelines** restrict regional flexibility. E.g., MGNREGA fund-use norms limiting drought-specific adaptations in Rajasthan.
- **Concurrent Encroachment:** Union laws increasingly **dominate Concurrent subjects**. E.g., NEP 2020 is influencing State curriculum and language policy decisions.
- **Executive Overreach:** Central agencies intervene in State domains, **diluting accountability**. E.g., expanded BSF jurisdiction in Punjab beyond the traditional 15 km limit.
- **State Innovation:** States drive policy **breakthroughs through local** experimentation. E.g., **Tamil Nadu's Noon Meal Scheme** is inspiring the national **PM POSHAN programme**.

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Way Forward for Indian Federalism

- ✓ **Fiscal Balance:** Cap Union's reliance on **non-shareable cesses** and **surcharges** through constitutional reform to protect States' share in the divisible tax pool.
- ✓ **Inter-State Council:** Strengthen the **Inter-State Council under Article 263** as a permanent institutional forum for resolving structural Centre–State disputes.
- ✓ **Concurrent Consultation:** Mandate transparent **prior consultation** with State governments before Parliament legislates on subjects in the Concurrent List.
- ✓ **CSS Flexibility:** Convert rigid Centrally Sponsored Schemes (CSS) into **flexible block grants** that allow states to design region-specific welfare programmes.
- ✓ **Governor Accountability:** Establish **statutory timelines** and **clear guidelines** for Governors to decide on assent to state legislation.

{IC – Federalism} Zonal Councils in India

❖ Union Home Minister chaired the 27th meeting of the **Western Zonal Council** in Pune.

Zonal Councils

- **Mooted by** PM Jawaharlal Nehru in 1956 to address linguistic hostilities and promote cooperation.
- **Legal Basis:** Established under States Reorganisation Act, 1956 as **statutory** (extra-constitutional) advisory bodies.
- **Objective:** Foster **coordination** among **states** and the **Centre** for economic, social and political stability.
- **Nature:** Only **deliberative** and **advisory**, recommendations are **not binding**.

Factors Considered in Zonal Formation

- **Natural Divisions:** Geographical continuity and topography.
- **River Systems & Connectivity:** Facilitates regional cooperation in water resources.
- **Cultural & Linguistic Affinity:** Helps in social and administrative coordination.
- **Economic & Security Needs:** Ensures **balanced development** and law & order management.

Five Zonal Councils and Their Structure

Zonal Council	HQ	Member States/UTs
Northern	New Delhi	Haryana, Himachal Pradesh, J&K, Punjab, Rajasthan, Delhi, Chandigarh, Ladakh
Central	Allahabad	Uttar Pradesh, Uttarakhand, Chhattisgarh, Madhya Pradesh
Eastern	Kolkata	Bihar, Jharkhand, West Bengal, Odisha
Western	Mumbai	Maharashtra, Gujarat, Goa, Dadra & Nagar Haveli, Daman & Diu
Southern	Chennai	Andhra Pradesh, Telangana, Karnataka, Tamil Nadu, Kerala, Puducherry

Composition

- **Chairman:** **Union Home Minister** (common chairman for all Zonal Councils).

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- **Vice-Chairman:** **Chief Ministers of states** in each zone, serving by rotation for **one year**.
- **Members:**
  - **Chief Ministers** and **two ministers from each state** in the zone.
  - **Administrators** of Union Territories in the zone.
  - **NITI Aayog representative**, Chief Secretaries and Development Commissioners as **advisors** (without voting rights).
- **Standing Committees:** Chief Secretaries of member states discuss issues and prepare for main meetings.

North Eastern Council: Special Regional Body

- **Legal Basis:** **North Eastern Council Act, 1971** (came into force in 1972).
- **Members:** Assam, Manipur, Mizoram, Arunachal Pradesh, Nagaland, Meghalaya, Tripura and **Sikkim (added in 2002)**.
- **Chairperson:** Union Home Minister.
- **Vice-Chairperson:** Minister for Development of the North Eastern Region (DoNER).
- **Functions:** Same as Zonal Councils; In addition to **coordinated regional planning and security review**.

Functions and Role of Zonal Councils

- **Platform for Discussion:** **Interstate** and **Centre-State issues** like border disputes, linguistic minorities, and state reorganisation.
- **Cooperative Federalism:** Facilitates collaboration on policies, schemes and economic planning.
- **Infrastructure & Development:** Discusses mining, land acquisition, industrial growth and financial aid.
- **Social Reforms:** Focuses on education, child malnutrition, school drop-out rates and healthcare.

Issue Resolution Process in Zonal Councils

1. States propose issues for discussion at the **Standing Committee level.**
2. Unresolved issues are escalated to the main **Zonal Council meeting.**
3. Consensus-based decisions are made, but **not legally binding.**

Challenges of Zonal Councils

- ➢ **Advisory Nature:** Recommendations are **non-binding**. E.g., interstate river disputes often remain unresolved despite discussions.
- ➢ **Irregular Meetings:** **Infrequent meetings** reduce effectiveness. E.g., long gaps delay the resolution of regional development issues.
- ➢ **Political Differences:** **Partisan conflicts** hinder consensus-building. E.g., disagreements between the Centre and opposition-ruled states on policy implementation.

Way Forward

- ✓ **Regular Consultations:** Conduct **time-bound meetings** and **follow-up reviews**. E.g., the Inter-State Council's periodic engagement mechanism.

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- ✓ **Implementation Tracking:** Create **digital dashboards** to monitor decisions. E.g., **PRAGATI platform** for project monitoring.
- ✓ **Dispute Resolution:** Establish **dedicated mediation mechanisms** within councils. E.g., amicable settlement of interstate transport issues.
- ✓ **Cooperative Federalism:** Promote **joint regional projects** and **resource sharing**. E.g., **Western Zonal Council** discussions on coastal security coordination.

{IC – Federalism} Permanent Framework for State Reorganisation

❖ **Context (IE):** A Private Member's Bill recently introduced in Parliament proposed the establishment of a **Permanent Framework for State Reorganisation**.

Existing Framework for State Reorganisation

- **Article 3** and **Article 4** authorise **Parliament** to form or modify states by a **simple majority**; approval of the concerned State Legislature is **non-binding**.
- The reorganisation Bill can be introduced only on the **President's recommendation.**
- Prior to this recommendation, it is referred to the affected **State Legislature**, whose **views are advisory** and non-binding.

Rationale For Permanent Framework

- **Paradigm Shift:** A permanent framework aims to transition state reorganisation from the 1950s logic of **"Linguistic Homogeneity"** to the modern necessity of **"Administrative Efficiency".**
- **Institutional Reform:** A **permanent 'States & Union Territories Reorganisation Commission'** can replace ad-hoc political decisions with an objective, **Census-based framework**.
- **Fiscal Prudence:** The mandate for a rigorous **"Economic Viability Test"** will ensure new entities are **financially self-reliant** rather than perpetually dependent on Central grants.
- **Sub-regional Equity:** It will mitigate **"internal colonialism"** by empowering neglected hinterlands like Vidarbha or Bundelkhand to end the persistent resource drain.
- **Democratic Safety:** It may **channel regional aspirations** through legal avenues, preventing violent **secessionist movements**.

Rationale Against Permanent Framework

- **Balkanisation Risk:** An open door to statehood could trigger a **"domino effect"**, causing districts with unique identities (e.g., Bodoland, Gorkhaland) to seek separation, risking national unity.
- **Inter-State Strain:** Fragmenting large states can **intensify river-water disputes** and weaken the resource pooling required for mega-infrastructure projects.
- **Constitutional Conflict:** A statutory body with binding powers would **conflict with Article 3**, which vests discretionary power exclusively in the Parliament.
- **Technocratic Limitations:** A scientific viability index cannot always resolve statehood demands that are driven by **deep-seated emotional sentiments**.

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- **Federal Friction:** State governments may view a permanent Central commission as a means to destabilise opposition-ruled states, **eroding Cooperative Federalism**.

Way Forward

- ✓ **Structural Review:** Constitute a **Second States Reorganisation Commission** for a one-time, comprehensive and scientific review of India's map, based strictly on administrative efficiency.
- ✓ **Federal Safeguards:** Build political consensus to amend Article 3, making the **State Legislature's consent mandatory** to better respect federal principles.
- ✓ **Alternative Mechanisms:** Address regional grievances through **Special Development Boards** and **autonomous councils** (**Article 371**) rather than granting full statehood.
- ✓ **Cooperative Federalism:** Revitalise the **Inter-State Council** (**Article 263**) to manage regional imbalances and disputes through dialogue rather than division.
- ✓ **Eligibility Benchmarks:** Enforce **"fiscal self-reliance"** and **"administrative convenience"** as non-negotiable pre-conditions for any future state formation.

{IC – Federalism – Pathfinder for Mains}

Q. Zonal Councils were designed as platforms of cooperative federalism, yet their impact remains uneven across regions. Critically analyse their role in resolving inter-state disputes and promoting balanced regional development. (250 Words) (15 Marks)

Approach

- **Introduction:** Write a brief introduction about the Zonal Council.
- **Body:** Analyse the zonal council's role in inter-state disputes and regional balance, and also discuss the limiting factors and the way forward.
- **Conclusion:** Emphasis on establishing a robust and effective zonal council to promote cooperative federalism and foster national integration.

Model Answer (250 Words)

- Zonal Councils, established under the **States Reorganisation Act, 1956**, are statutory advisory bodies aimed at **promoting cooperative federalism**, **resolving inter-state disputes**, harmonising policies, and ensuring balanced regional development, although their impact remains inconsistent.

Role of Zonal Council

- **Dispute Resolution:** Addresses inter-state conflicts. E.g., **SYL Canal, Punjab-Haryana**.
- **Security Coordination:** Supports joint law-and-order strategies. E.g., Eastern Council LWE reduction.
- **Infrastructure Planning:** Promotes regional connectivity. E.g., Western Council coastal projects.
- **Policy Harmonisation:** Aligns social and economic initiatives. E.g., **Central-Southern Council reforms**.

Key Limiting Factor

- ➢ **Non-Binding:** Recommendations **not enforceable**. E.g., SYL Canal dispute.

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- **Infrequent Meetings:** **An irregular schedule delays** decision-making. E.g., earlier gaps in the Eastern Council.
- **Weak Execution:** Monitoring gaps delay outcomes. E.g., **mining reforms.**
- **Overshadowed Authority:** Councils' influence diluted by stronger institutions. E.g., **GST Council**.

Way Foward

- ✓ **Implement Recommendations:** Adopt the **Sarkaria** and **Punchhi Commission's** recommendations on regular meetings, secretariat support, and follow-up mechanisms.
- ✓ **Strengthen Monitoring:** Develop a **dedicated mechanism or digital dashboard** to monitor the implementation of council decisions.
- ✓ **Enhance Political Will:** Ensure consistent **cooperation between the Centre and the states** to make councils effective instruments of federalism.
- ✓ **Capacity Building:** **Enable bureaucratic and standing committees** to resolve issues independently and decrease reliance on political-level meetings proactively.
- ✓ **Institutional Integration:** Coordinate councils with other bodies **to prevent overlaps** while maintaining their advisory and mediatory roles.

Conclusion

- Zonal Councils serve as the **link between states and the Centre**, encouraging dialogue and regional growth, but their influence varies; **with political will** and **effective oversight**, they can become true engines of national integration.

Q. India's federal structure reflects enduring centralising tendencies. Examine their impact on State autonomy and fiscal space, and suggest reforms to strengthen cooperative federalism. (250 Words) (15 Marks)

Approach

- **Introduction:** Write a brief introduction about Indian federalism.
- **Body:** Write about the centralising tendency, its impact on state autonomy and fiscal space, and suggest reforms to strengthen cooperative federalism.
- **Conclusion:** Emphasis on a federal balance empowers States to ensure effective governance.

Model Answer (250 Words)

- India's federalism, forged in the shadow of Partition, prioritised central control to safeguard national unity. Over time, these **centralising tendencies** have constrained **state autonomy**, **fiscal independence**, and **policy innovation**.

Centralising Tendencies

- **Historical Centralisation:** Power gained under necessity **persisted post-independence**.
- **Persistent Overreach:** Central ministries **duplicate state functions**. E.g., health, education.
- **Legislative Override:** **Union overrides state priorities** via laws and subordinate legislation.

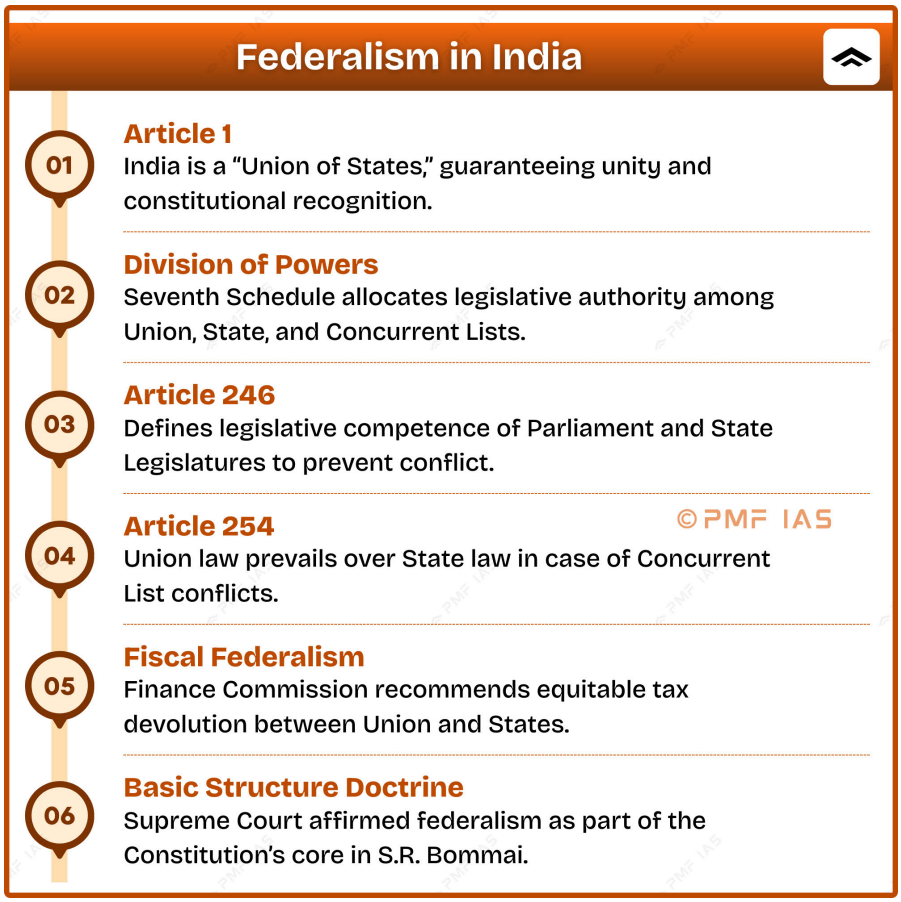
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- **Fiscal Centralisation:** Reliance on cesses reduces States' tax share & limited flexibility in CSS funds.
- **Concurrent Encroachment:** Union policies influence State domains. E.g., NEP 2020 affecting curricula.

Impact on State Autonomy and Fiscal Space

- **Policy Autonomy:** State discretion is limited. E.g., **NEP 2020** shapes curricula across all States, reducing local policy flexibility.
- **Administrative Capacity:** **Excessive Union control** stunts growth. E.g., multiple Central health schemes duplicate State administration.
- **Fiscal Dependence:** States rely on transfers. E.g., in 2025–26, ~45% of Tamil Nadu's revenue came from Union allocations.
- **Innovation Suppression:** Local experiments constrained. E.g., **Kerala's literacy model** and **TN Noon Meal Scheme**, initially piloted by States, are now guided by Union norms.



Reforms to Strengthen Cooperative Federalism

- ✓ **Right-size Union:** Focus on **national responsibilities** & **restore State autonomy** for local governance.
- ✓ **Empower States:** **Align authority with responsibility** to promote innovation and efficiency.
- ✓ **Inter-State Council:** Make **consultation on the Concurrent List mandatory** and coordinate policies. E.g., health, education.
- ✓ **Governor Reform:** **Limit discretionary powers** & **ensure timely assent** to Bills.

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Conclusion

- Restoring Union-State balance empowers States, **fosters innovation**, & **ensures effective governance**. As C.N. Annadurai noted, **"Autonomy to the States, Federalism at the Centre"** is key to a strong, united, and resilient India that harmonises national priorities with regional aspirations.

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Executive, Legislature & Governance

{IC – Parliament} The Whip System

❖ **Context (IE):** The Vice President recently sparked a debate by criticising the party whip system, stating it curtails MPs' freedom of expression and independence.

History and Origins of the Whip System

- The term "whip" comes from the **hunting field**, where a "whipper-in" kept stray hounds together.
- **In politics**, first used by **Edmund Burke** to describe rallying party followers during parliamentary matters.

Whip System in India

- The concept of the whip was **inherited** from **colonial British rule**.
- It is often used in parliamentary parlance for **floor management** by political parties.
- A whip is a **written order** that a **political party issues** to its members **to be present** for a crucial vote or **that they vote only in a particular way**.
- A whip is also an essential **office-bearer** of the party in the Parliament.
- In India, all parties can issue a whip to their members.
- The **office of 'whip'** is mentioned **neither in the IC**, in the **Rules of the House**, nor in the **Parliamentary Statute**. It is **based** on the **conventions** of the parliamentary government.
- **In India**, the system has been in place since the early days of Parliament, ensuring party unity & discipline.
- The **All-India Whips Conference**, held **annually since 1952**, fosters coordination between ruling and opposition whips for efficient parliamentary functioning.

Types of Whips

- **One-Line Whip:** Informs members of a vote, allowing them to abstain.
- **Two-Line Whip:** Requires MPs to be present, but **does not mandate how to vote**.
- **Three-Line Whip:** The strictest, instructing members to vote in alignment with the party.

Government's Chief Whip

- **In Lok Sabha:** The **Minister of Parliamentary Affairs** acts as the Chief Whip for the ruling party.
- **In Rajya Sabha:** **Minister of State for Parliamentary Affairs** handles this responsibility.

Procedure for Enforcement of the Whip

- **Issuance of Directive:** The party issues a whip, specifying attendance and voting directions.
- **Mandatory Compliance:** Members must adhere to the whip to maintain party unity.
- **Expulsion:** Severe breaches may lead to expulsion from the party.
- **Action Against Defiance:** Party leaders may recommend disqualification under the Anti-Defection Law (1985) for violations.

Importance of the Whip System

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- ✓ **Responsibility:** Issues directives to MPs to ensure participation & adherence during parliamentary proceedings.
- ✓ **Maintains Party Discipline:** Ensures coherence & unity within party during crucial votes in Parliament.
- ✓ **Stabilises Parliamentary Democracy:** Prevents disruptions during critical legislative processes.
- ✓ **Guides MPs' Actions:** Aligns MPs with party ideologies and decisions.
- ✓ **Facilitates Governance:** Enhances efficiency in the legislative process through coordinated efforts.
- ✓ **Demonstrates Party's Strength and Unity**, especially during division voting on key issues.
- ✓ **Non-Compliance Can Lead To Embarrassment** and even affect the outcome of votes, potentially triggering a no-confidence motion.

Criticism of the Whip System

- ➢ **Curtails Autonomy:** Limits MPs' **freedom of expression** & **independent decision-making**.
- ➢ **Suppresses Dissent:** Forces MPs to **align with the party**, discouraging diverse opinions.
- ➢ **Concentrates Power:** Strengthens the party leadership's control, sidelining individual voices.

Exceptions to Whip Compliance

- **Conscience Votes:** MPs can vote freely on **moral or ethical issues**, with party permission.
- **Prior Approval:** Members may defy the whip if explicitly allowed by party leadership.

International Comparison

- **United Kingdom:** Whips exist, but MPs occasionally defy them without severe repercussions.
- **Australia:** Whip system operates similarly, with room for conscience votes in critical matters.
- **Canada:** Greater flexibility exists, especially in non-confidence or private member bills.

{IC – Parliament} Deputy Speaker *

❖ **Context (TH):** For the second consecutive term (**17th & 18th Lok Sabha**), India has **not appointed** a Deputy Speaker.

Constitutional Mandate

- **Article 93:** The Constitution mandates that both the **Speaker and Deputy Speaker** of the Lok Sabha be elected **"as soon as may be."**
  - ❖ The phrase "as soon as may be" indicates **urgency** and **not indefinite delay**. It ensures that both positions are filled promptly, enabling smooth parliamentary functioning.
- **Article 94:** The Deputy Speaker's tenure continues until resignation, removal, or disqualification.
  - ❖ This ensures leadership continuity in case the Speaker is unavailable, such as during illness or resignation, thus avoiding a leadership vacuum.

Historical Evolution and Purpose of Deputy Speaker (DS) Post

- **Colonial Origins:** The office was **first** created in **1921** under the **Government of India Act, 1919**, during British rule. **Sachidanand Sinha** was the first to hold this post.

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- **Post-Independence Retention:** After independence, the Constituent Assembly retained the DS role as a critical part of India's democratic governance.
- In 1956, when Speaker **G.V. Mavalankar** passed away unexpectedly, the then DS, **M.A. Ayyangar**, assumed the role of Acting Speaker, demonstrating the essential nature of this office.

Core Responsibilities

- **Presides over Lok Sabha:** Ensures **smooth conduct of parliamentary proceedings** in the absence of the Speaker. This role is crucial for maintaining legislative efficiency.
- **Chairs key committees:** Leads significant parliamentary committees like the **Committee on Private Members' Bills** and others, maintaining legislative efficiency beyond just floor debates.
- **Acts as an impartial authority:** Rises above party lines, becoming a neutral figure to ensure fair proceedings in the House.
- **Upholds procedural discipline:** Ensures rules are followed, manages debates, and preserves parliamentary norms, protecting the sanctity of the institution.

Consequences of a Vacant Seat of Deputy Speaker (DS)

- **Concentration of Power:** In his absence, all procedural authority lies with the Speaker, who is usually from the ruling party.
  - This creates an imbalance, as the Speaker becomes the sole authority over parliamentary procedures.
- **Leadership Vacuum in Emergencies:** If the Speaker resigns, falls ill, or passes away, the lack of a DS creates a vacuum, leading to procedural paralysis and confusion in the House.
- **Erosion of Constitutional Morality:** The delay in electing a DS signals institutional neglect, undermining the core values of the Constitution.
  - It implies that constitutional provisions are optional and not binding.
- **Misinterpretation of "as soon as may be":** The Constitution requires a timely election of the DS.
  - However, the ongoing delays reflect a distortion of the original intent, where vacancies last for years, weakening the legislative framework.

The Convention of Assigning the Role to the Opposition

- **Parliamentary Tradition:** Although **not mandated** by the **Constitution**, it has been a long-standing convention to offer the post to a member of the **Opposition**.
- **Parliamentary Neutrality:** Ensures cooperation between the ruling party and the opposition.
  - By offering this post to the opposition, the ruling party avoids gaining undue control over legislative functions, promoting fairness and inclusivity.

Proposed Reforms to Address the Vacancy

- **Constitutional Amendment:** Introduce a fixed timeline (e.g., 60 days) for electing the DS after the first sitting of the Lok Sabha.

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- ✓ **Statutory Mechanism:** Enact a law that empowers the President to intervene if the house fails to elect a DS within a reasonable time frame.
- ✓ **Restoring Parliamentary Conventions:** Reaffirm the long-standing convention of allotting the post to the opposition.

Also Refer> Deputy Speaker of Lok Sabha; Speaker of Lok Sabha.

{IC – President} Presidential Reference Under Article 143 **

- **Context (TH):** The President invoked Article 143 to seek the Supreme Court's opinion on whether the **President or a Governor** can be **judicially compelled**.
- The reference sought the Court's opinion on **imposing timelines** and requiring **justification for withholding** assent to bills by Governors or the President.

About Article 143

- **Advisory Power:** Article 143 empowers the **President to seek legal advice from the Supreme Court** on matters of constitutional or legal significance.
- **Clause 1:** Permits reference of **legal or factual** matters of public importance, which the **Court may choose** to answer.
- **Clause 2:** Allows the President to refer disputes from **pre-Constitution** treaties, agreements, sanads, etc., **excluded under Article 131**; the **Court must opine**.

> ⇨ *Article 131 empowers the Supreme Court to adjudicate **Centre–State or inter-State disputes** involving **legal rights**.*

- **Historical Basis:** Evolved from **Section 213 of the Government of India Act, 1935**, which permitted advisory references to the Federal Court.
- **Presidential Satisfaction:** The President **must be satisfied** that the question involves **legal significance** and broader **public interest**.
- **Council Advice:** The President **acts on the advice** of the Union Council of Ministers when making a reference under Article 143.
- **Scope:** The Court responds **only to the question referred**; it cannot extend the scope of the reference.
- **No Suo Motu:** The SC **cannot invoke** Article 143 on its own; it functions only upon Presidential reference.
- **Constitution Bench:** As per **Article 145(3)**, such references must be decided by a Constitution Bench of at least **five judges**.
- **Previous Use:** Article 143 has been **invoked around 15 times** in cases including Berubari (1960), Cauvery, Kerala Education Bill, and Natural Resources Allocation.

Court's Discretion

- **Clause 1 Discretion:** The Court **may refuse to answer** under Clause 1 if the matter is **political** or lacks judicially manageable standards.
- **Clause 2 Compulsion:** Here, the Court **must issue an opinion** on disputes arising under **Article 131**.
- **Reason Requirement:** **When declining** a reference, the Court **must record** constitutionally valid and reasoned justification.

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- **No Timeline:** Article 143 **does not prescribe** a response deadline, allowing potential delays in critical governance issues.
- **Procedural Autonomy:** The **Court may choose** whether to conduct oral hearings or rely on written submissions alone.

Legal Status

- **Non-Binding:** Article 143 opinions are **not binding** under **Article 141**, as affirmed in St. Xavier's case.

⇨ *Article 141 states that Supreme Court judgments are **binding on all courts** in India.*

- **Opinion:** The **use of "opinion"** instead of "judgment" in Article 143 underscores its **advisory character**.
- **Not Adjudicatory:** Article 143 grants advisory powers only and **does not involve adjudication** or enforceable decisions.
- **Persuasive Weight:** Despite non-binding status, advisory opinions are usually followed due to their **institutional authority**.
- **Justification:** If the **President disregards** the Court's opinion, they must record **cogent reasons** and relevant justification.

Limits on Precedents

- **No Review Power:** Article 143 **cannot** be used to **overturn** or revisit settled constitutional judgments.
- **Ratio Safeguard:** The Court cannot disturb the **ratio decidendi** or established legal rights.

⇨ *Ratio decidendi refers to the **binding legal principle** underlying a court's judgment.*

- **Institutional Safeguard:** The Court has ruled that Article 143 **cannot** be used to **reinterpret settled law**.

Constitutional Utility of Article 143

- **Preventive Clarity:** Constitutional **doubts are addressed before executive actions** are initiated.
- **Institutional Dialogue:** Judicial advice ensures **coordination** in complex constitutional situations.
- **Federal Harmony:** Federal conflicts over legislative or jurisdictional powers are clarified early.
- **Constitutional Morality:** Democratic values are reinforced through reasoned judicial interpretation.
- **Institutional Balance:** **Power equilibrium** is maintained through legal consultation mechanisms.

Challenges & Criticism

- **Limited Force:** Advisory opinions **lack enforceability** against political divergence.
- **Political Misuse:** References may shield or **delay contentious** executive decisions.
- **Judicial Drift:** **Excessive referrals** risk dragging the judiciary into political arenas.
- **Vague Threshold:** **"Public importance"** remains **undefined**, enabling frivolous references.
  - **Advisory Delays:** The **absence of a time limit** may dilute the relevance to urgent decisions.

{IC – Governor} Governors as Chancellors Fuel Friction

- **Context (TH):** Recent controversies in **Tamil Nadu** and **Kerala** highlight **Governors' interference in university affairs**, raising serious debates over their **role as Chancellors**.

Governor as Chancellor and Recent Developments

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- The Governor's position as Chancellor is a **statutory role** under the **State University Acts** and is **not mentioned** in the Constitution.
- **Recent Controversies:**
  - **Tamil Nadu:** Governor R.N. Ravi referred the **Kalaignar University Bill to the President** instead of granting assent.
  - **Kerala:** Governor Arlekar **directed universities to observe Partition Horrors Day** (**14 Aug 2025**), raising ideological concerns.
  - **Judicial Intervention:**
  - **Veto Rejected:** Supreme Court **invalidated the Governor's de facto veto** on 10 Tamil Nadu university Bills.
  - **Timeline Mandated:** The Court set **strict deadlines** for Governors to respond to Bills.
  - **Referral Nullified:** Presidential intervention based on a Governor's referral was declared infructuous.

Role of Governors as Chancellors

- **Political Neutrality:** Ensuring universities remain **autonomous** and **free from political capture**.
- **Academic Oversight:** Appointment of VCs, ensuring **adherence to UGC** and NAAC standards.
- **Centre-State Bridge:** **Facilitating coordination** for research, funding, and regulation.
- **Custodian of Standards:** Protecting the integrity of higher education institutions from partisan influence.

Paralysing Intervention

- **Erosion of Federalism:** Governors bypass state governments in VC appointments, as seen in Tamil Nadu.
- **Politicisation:** Aligning with the Centre's ruling party, E.g., Kerala Partition Horrors Day directive.
- **Administrative Paralysis:** Delays in **VC appointments** and **Bill assent** (R.N. Ravi vs Tamil Nadu, 2024).
- **Undermining Autonomy:** Governors' overreach **sidelines university senates** and councils.

Way Forward

✓ **VC Collegium:** **Independent panels** of academics and experts should oversee VC appointments.
✓ **Legal Clarity:** University Acts **must explicitly define** the Governor's role to prevent overreach.
✓ **Body Empowerment:** **Senates** and **syndicates** should be **strengthened** to ensure genuine autonomy.
✓ **Federal Balance:** Both the Centre and the States **must share powers** without eroding autonomy.

Read More> *About Governor* | *Governor's Role*

{IC – Parliament} Parliamentary Effectiveness in India **

- **Context (IE | IE):** As Parliament enters yet another session overshadowed by deadlock fears and routine walk-outs, raising serious concerns that India's highest democratic forum is losing its voice.

Current Status of Parliamentary Functioning

- **Lok Sabha** functioned **29%** and **Rajya Sabha 34%** of the scheduled time in the Monsoon Session 2025.
- Parliament's average annual sitting days declined from 135 in the 1st Lok Sabha to about 55 in the 17th Lok Sabha
- Question Hour performance fell to **23% in LS**, **6% in RS** in Monsoon 2025.

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- Bills referred to Parliamentary Committees declined from **71% in the 15th Lok Sabha** to about **16% in the 17th Lok Sabha** (2019-2024), indicating reduced legislative scrutiny.
- **No Deputy Speaker** in the 17th Lok Sabha and still none in the 18th Lok Sabha.

Reasons for Decline of Parliamentary Effectiveness

- **Frequent Disruptions:** Repeated walkouts and adjournments limit meaningful legislative deliberation.
- **Fewer Sittings:** Decline in annual sitting days restricts detailed lawmaking and executive accountability.
- **Question Hour: Poor utilisation** of Question Hour limits routine scrutiny of government decisions.
- **Committee Marginalisation:** Lower referral of Bills to **Standing Committees** weakens **expert review** and evidence-based legislation.
- **Vacancies:** Continued absence of the Deputy Speaker **erodes internal balance** and procedural discipline.

Reforms Required for Smooth Parliamentary Functioning

- **Institutional Dialogue:** Reinstate structured, **periodic meetings** between the Leader of the House, Prime Minister, and Leader of Opposition, similar to the **UK's parliamentary management** conventions.
- **Anti-Defection Reform:** Limit the whip **only to confidence motions & money bills**, restoring MP autonomy modelled on **UK/Canada practice**.
- **Revive Committee System:** Mandate **75% Bills** to be referred to Standing Committees and also introduce public consultations and expert hearings.
- **Guaranteed Sitting Days:** Introduce a **statutory minimum of 100–120 days** of sittings annually, on lines of the **Australian fixed parliamentary calendar**.

Summoning of the Houses of Parliament

- **Article 85(1)** of IC empowers the President to **summon each House** of Parliament to meet.
- But the maximum gap between two sessions **cannot be more than six months**.
- It is not necessary that the Lok Sabha and Rajya Sabha should be summoned simultaneously or on the same date.
- The Parliament has **no fixed calendar** for sittings.
- Normally, **three sessions** are held in a calendar year, namely: Budget Sessions, Monsoon Sessions and Winter Sessions

{IC – Panchayat} PESA Mahotsav 2025

- **Context (PIB | PIB): PESA Mahotsav (23–24 Dec 2025)** was held in **Visakhapatnam**, marking the anniversary of the **Panchayats (Extension to Scheduled Areas) Act, 1996**.

About PESA Act

- **Origin:** Enacted in 1996 following the **Bhuria Committee** (**1995**), which recommended tribal self-rule to correct the historical exclusion of Scheduled Areas from mainstream decentralisation.
- **Constitutional Gap:** PESA was designed to cover **Fifth Schedule** Areas left outside the 73rd Constitutional Amendment (Part IX of the Constitution), ensuring self-governance.

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- **State Legislature Role:** State legislatures are expected to play a **facilitative and advisory role**.
- **Institutional Responsibility:** **Ministry of Panchayati Raj** (**MoPR**) acts as the nodal ministry.
- **Spatial Reach:** Operates across **10 Fifth Schedule states**, spanning ~**77,500 villages** and ~**22,000 Panchayats**, giving PESA national-scale relevance.

Significance of the PESA Act

- **Demographic Empowerment:** Covers **8.6% of India's population** belonging to **Scheduled Tribes**, addressing governance in some of the most marginalised regions.
- **Gram Sabha Supremacy:** Gram Sabha is the **core institution of self-governance** in Scheduled Areas, with authority over social, economic and cultural matters affecting the community.
- **Land Protection:** **Mandatory consultation** and **consent of Gram Sabha** before land acquisition, resettlement or rehabilitation in Scheduled Areas, preventing arbitrary land alienation.
- **Forest Rights Control:** Gram Sabhas have ownership and management **rights over minor forest produce,** strengthening livelihood security for tribal households.
- **Mining Regulation:** Recommendation of Gram Sabha is required for **granting leases** for minor minerals.
- **Customary Law Recognition:** Traditional customs, dispute resolution mechanisms and cultural practices of tribal communities are legally recognised and protected.
- **Social Regulation:** Gram Sabhas are empowered to **prevent intoxicant abuse** and **regulate money-lending practices** to protect vulnerable households.

Key Issues in PESA Implementation

- **Uneven Rule Adoption:** Only **8 out of 10** Fifth Schedule states have **notified PESA Rules**, creating legal uncertainty in **Odisha** and **Jharkhand**.
- **Diluted Authority:** In the **Hasdeo Arand coal blocks (Chhattisgarh)**, forest and mining clearances proceeded despite multiple Gram Sabha resolutions opposing mining.
- **Capacity Constraints:** During MoPR-led assessments, it was found that over **40%** of elected representatives in PESA Panchayats were unable to explain the concept of Gram Sabha clearly.
- **Monitoring Gaps:** Absence of a unified monitoring framework across ~**63 Fifth Schedule districts** weakens accountability and enforcement.
- **Administrative Resistance:** In the **Polavaram irrigation project (Andhra Pradesh)**, displacement continued under sectoral project laws even as PESA-mandated Gram Sabha consent was contested.

Government Initiatives for PESA Act Implementation

- **Dedicated PESA Cell:** Established in MoPR for focused coordination, monitoring and inter-state support.
- **Capacity Building:** Two rounds of master-trainer programmes trained **1 lakh+ representatives**.
- **Digital Enablement:** PESA–Gram Panchayat **Development Plan Portal** for fund tracking.
- **Language Access:** Translation of PESA manuals into tribal languages to improve comprehension.
- **Academic Support:** Centres of Excellence set up in universities to document customs and best practices.
- **Knowledge Sharing:** Publication of **40 PESA success stories** to enable cross-state learning.

Way Forward

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- ✓ **Law Convergence:** Integrate PESA with the Forest Rights Act (2006) and Land Acquisition Act (2013) so Gram Sabha consent becomes a single, binding clearance.
- ✓ **Clear Role Allocation:** Clearly demarcate responsibilities between **MoPR** and **Ministry of Tribal Affairs**; E.g., MoPR to handle governance processes, MoTA to safeguard land, forest and livelihood rights.
- ✓ **Uniform Rule Design:** Develop **model PESA Rules** for adoption by all states; E.g., central templates with limited state flexibility to prevent dilution.
- ✓ **Continuous Capacity Support:** Shift from one-time training to ongoing handholding; E.g., community paralegal and barefoot governance facilitator pilots.
- ✓ **Incentive Alignment:** Link effective PESA compliance to funding incentives; E.g., higher untied grants for Panchayats demonstrating strong Gram Sabha-led governance.

{IC – Parliament} Expansion of Lok Sabha Seats *

❖ **Context (IE):** The government is considering **expanding the Lok Sabha** to implement women's reservation while maintaining current state-wise representation.

Proposed Changes in Lok Sabha

- **Increase in Lok Sabha Size:** Proposal to expand Lok Sabha from 543 to **816 members**.
- **Women's Reservation:** Around **273 seats** (1/3rd) to be reserved for women.
- **Implementation Timeline:** Likely to come into effect from the **2029 Lok Sabha** elections.
- **Delinking from Delimitation:** Plan to separate women's reservation from Census & delimitation process.
- **State Ratios:** Seats to be increased while keeping existing state-wise proportions unchanged initially.

Positive Consequences of Parliamentary Expansion

- **Enhanced Representation:** Reducing the demographic burden from **2.5 million citizens per MP** ensures accessible and responsive constituency management.
- **Urban Parity:** Boundary readjustments using **post-1971 census data** will proportionally increase urban legislative seats to reflect **India's 35% urbanisation rate**.
- **Women's Reservation:** Increased overall seat matrix facilitates the 106th Constitutional Amendment Act to secure a **33% female legislative quota**.
- **Resource Allocation:** Smaller electoral boundaries allow MPs to concentrate the **fixed annual ₹5 crore** MPLADS fund on targeted local infrastructure.
- **Committee Specialisation:** Broader legislative pool **reduces overlapping member assignments** to build deeper **domain expertise within Standing Committees**.

Negative Consequences of Parliamentary Expansion

- **Federal Imbalance:** Census-driven seat allocation **shifts national political power northward**, penalising southern states for their successful family planning.
- **Bicameral Imbalance:** Disproportionate expansion of the Lower House **dilutes the Rajya Sabha's voting weight** during joint sittings and presidential elections.
- **Cabinet Inflation:** Parliamentary expansion **raises the 15% ministerial ceiling**, potentially increasing the Council of Ministers **from 81 to 133 members**.

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- **Debate Fragmentation:** Larger representative pools **reduce individual MPs' chances of securing speaking time** during Question Hour and Zero Hour.
- **Fiscal Devolution:** Altered political gravity may skew **future Finance Commission tax formulae** against productive but less populous states.

Amendments Required to Implement these Changes

- **Article 81:** To increase the Lok Sabha strength beyond the current constitutional limit.
- **Article 82:** To enable early delimitation (based on 2011 Census) for redistribution of parliamentary seats.
- **106th Constitutional Amendment Act, 2023:** To delink women's reservation from the Census and delimitation and extend it to the Lok Sabha and State Assemblies.
- **Parliamentary Majority:** All constitutional amendments require the special majority (**2/3rd of members present and an absolute majority of total strength**).

Way Forward for Lok Sabha Expansion

✓ **Demographic Balance:** Design **fair delimitation principles** to balance population-based representation with concerns of states that achieved demographic stabilisation.
✓ **Census Update:** Conduct the **delayed decadal census** to ensure accurate and current population data for parliamentary seat redistribution.
✓ **Quota Decoupling:** Amend provisions to **operationalise women's reservation independently** of delimitation timelines under the 106th Constitutional Amendment.
✓ **House Capacity:** Reform parliamentary procedures and infrastructure to efficiently manage a significantly expanded Lok Sabha with higher member strength.

{IC – Parliament} Executive Tenure Without Limits

❖ **Context (TH):** PM Modi has become **India's longest-serving Prime Minister**, sparking debate over the absence of executive term limits.

Constitutional Framework of the Term of the PM

- **No Fixed Tenure:** The Constitution **does not prescribe a fixed term or tenure** for the Prime Minister.
- **Constituent Assembly:** Dr Ambedkar argued that **continuous parliamentary accountability** (questions, debates, no-confidence motions) is more effective than fixed term limits.
- **Parliamentary Majority:** Under **Article 75**, the Prime Minister holds office as long as they enjoy the confidence of the Lok Sabha.
- **Collective Responsibility:** The Council of Ministers, led by the PM, is **collectively responsible to the Lok Sabha**, acting as a constitutional check.
- **Concern:** The Constituent Assembly assumed **continuous legislative accountability** would replace term limits, but this mechanism is now structurally weakened.

Weakening of the Legislative Accountability Mechanism

➢ **Anti-Defection Law:** The Tenth Schedule compels MPs to **follow party whips**, restricting independent voting and scrutiny of the executive.

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- **No-Confidence Motions:** Fear of disqualification makes no-confidence motions ineffective, especially when the ruling party has a majority.
- **Decline in Parliamentary Debate:** Reduced dissent leads to limited discussion, questioning, and critical evaluation of government actions.
- **Intra-Party Democracy:** Absence of **internal party mechanisms** prevents leadership challenges and concentrates power in the executive.

Democracies with Term Limits

- **United States:** The 22nd Amendment limits the President to **two terms** (maximum **8 years**).
- **Brazil:** The president can **serve 2 consecutive terms**, after which a break is required before re-election.
- **South Korea:** The President is limited to a **single 5-year term** with **no re-election allowed**.
- **Indonesia:** The President can serve a **maximum of two terms**, ensuring periodic leadership change.

Way Forward to Improve the Accountability of the Executive

- ✓ **Restore Parliamentary Checks:** Exempt confidence and no-confidence votes from the anti-defection law to revive legislative control on the executive.
- ✓ **Term Limits:** Introduce limits on consecutive terms for PM/CMs, with scope for return after a gap.
- ✓ **Intra-Party Democracy:** Enable internal leadership challenges within political parties.
- ✓ **Safeguard Institutions:** Ensure independence of the Election Commission, judiciary, & regulatory bodies.

⇨ *India follows an informal convention limiting the President to two terms, though the Constitution does not explicitly mandate it.*

{IC – Executive, Legislature & Governance – Pathfinder for Mains}

Q. Discuss recent controversies surrounding the role of Governors in state politics. How do these episodes highlight the challenges to India's federal structure? Suggest measures to strengthen the spirit of cooperative federalism. (250 Words) (15 Marks)

Approach

- **Introduction: Write** briefly about the Governor and mention the recent controversy.
- **Body:** Discuss recent controversies about the Governor, challenges to the federal structure and suggest measures to strengthen the spirit of cooperative federalism.
- **Conclusion:** Highlight the urgent need to reform the Governor's office to preserve federal balance and democratic integrity.

Model Answer

- The role of Governors in India's states, as constitutional heads under **Article 154**, has become increasingly contentious, with recent controversies raising questions about **constitutional propriety** and the **delicate balance of federalism**.

Recent Controversies

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- **Tamil Nadu Assent Case:** Supreme Court ruled against indefinite delay by the Governor in granting assent to bills, enforcing **"reasonable time"** under **Article 200**.
- **Kerala VC Row:** High Court struck down Governor-appointed interim Vice Chancellors for violating UGC norms and state laws.
- **Symbolism:** Kerala Governor's display of saffron flags raised concerns over **political neutrality**.
- **Chakma Council Dissolution:** Mizoram Governor's imposition of direct rule over **Chakma Council** sparked federalism concerns.

Challenges to Federal Structure

- **Centralisation of Power:** Governors often act as **agents of the Centre**, undermining state autonomy.
- **Political Bias:** The appointment of loyalists compromises **impartiality** and **democratic norms**.
- **Ambiguity in Powers:** Excessive discretionary powers create scope for **misuse and conflict**.
- **Weak Tenure Security:** Arbitrary removal threatens the **independence of Governors**.

Measures to Strengthen Cooperative Federalism

- ✓ **Fixed Tenure & Security:** Ensure Governors have a fixed **five-year term** with protection against arbitrary removal.
- ✓ **Transparent Appointment:** Follow the collegium system, including the PM, Home Minister, Speaker, and Chief Minister.
- ✓ **Political Neutrality:** Governors should resign if they **lose the confidence** of the elected government.
- ✓ **Codify Discretionary Powers:** Clear guidelines to limit **arbitrariness and misuse**.

Conclusion

- Recent controversies underscore the urgent need to reform the Governor's office to preserve federal balance and democratic integrity. Implementing these measures will reinforce the **spirit of cooperative federalism** and ensure **constitutional governance**.

Q. A decline in the productivity of Parliament due to frequent disruptions impairs its ability to perform duties effectively. In this context, discuss the causes and suggest the measures to strengthen democracy. (250 Words) (15 Marks)

Approach

- **Introduction:** Write briefly about the parliament and mention its winter 2024 productivity.
- **Body:** Discuss the causes of the decline in the productivity of parliament, its implications on democracy and suggest measures to strengthen democracy.
- **Conclusion:** Emphasis on strengthening dialogue, accountability, and sittings is vital to restore its effectiveness and public trust.

Model Answer

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- Parliament, India's apex legislative body, upholds law-making and accountability. Yet, Winter 2024 productivity fell to **55% in Lok Sabha** and **42% in Rajya Sabha**, undermining its role.

Causes of the Decline in the Productivity of Parliament

- **Weak Rule Enforcement:** Rare use of Rule **374A and 255** sustains disorder, with suspension for misconduct seldom applied.
- **Erosion of Consensus:** Pre-session all-party meetings have dwindled, with **only 13%** of bills in 2023 referred to committees (PRS).
- **Committee Marginalisation:** Bill referrals to committees fell from **60% in the 2000s** to historic lows, limiting bipartisan scrutiny.
- **Shrinking Session Days:** Parliamentary sittings have dropped from **120+ days in the 1950s to about 60 days annually today**, curtailing deliberation.

Implications for Democracy

- **Legislative Backlog:** Bills passed without adequate debate undermine **quality law-making**.
- **Weak Executive Accountability:** Reduced Question Hour limits **scrutiny of ministers**.
- **Public Disillusionment:** Frequent disruptions erode **citizen trust** in democratic institutions.
- **Policy Myopia:** Hasty passage of bills without deliberation leads to implementation gaps.

Measures

- ✓ **Supervision:** Apply **Rules 374A/255** rigorously & adopt UK-style public naming of chronic offenders.
- ✓ **Sitting Mandate:** Enforce **120 sitting** days for Lok Sabha and **100 for Rajya Sabha** as per NCRWC.
- ✓ **Proportional Debate Time:** Allocate speaking slots proportionally, modelled on **Germany's system**.
- ✓ **Real-Time Transparency:** Publish **live productivity** and **attendance dashboards** for public scrutiny.

Conclusion

- Parliament's declining productivity signals a democratic deficit; as Pranab Mukherjee cautioned, **"Disruption should never be a substitute for discussion."** Strengthening dialogue, accountability, and sittings is vital to restore its effectiveness and public trust.

Q. Examine the extent to which the Panchayats (Extension to Scheduled Areas) Act, 1996, has enabled genuine tribal self-governance, with reference to the role of Gram Sabhas in land and resource-related development decisions. (250 Words) (15 Marks)

Approach

- **Introduction:** Write a concise introduction about the Panchayats (Extension to Scheduled Areas) Act, 1996.
- **Body:** Examine the extent to which the PESA Act, 1996, has enabled genuine tribal self-governance, mention implementation gaps and way forward.
- **Conclusion:** Focus on an empowered and accountable gram sabha for pro-tribal development.

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Model Answer (250 Words)

- The **Panchayats (Extension to Scheduled Areas) Act, 1996 (PESA)** was enacted to operationalise tribal self-governance in **Fifth Schedule** Areas by placing the Gram Sabha at the centre of decision-making, especially over land and natural resources.

Extent of Empowerment

- **Land Consent:** **Gram Sabha approval mandatory** for land acquisition, rehabilitation and minor mineral exploitation.
- **Forest Rights:** Ownership and management of minor forest produce vested in **Gram Sabhas**.
- **Customary Law:** Indigenous customs and traditional dispute resolution are legally recognised in development decisions.
- **Participatory Vision:** Advances constitutional ideals of tribal self-rule under **Articles 243 and 244**.

Implementation Gaps

- **Uneven Rules:** **Only 8 of 10 Fifth Schedule states** have notified PESA Rules, creating legal uncertainty.
- **Token Consent:** In **Hasdeo Arand (Chhattisgarh)**, mining approvals were issued despite repeated Gram Sabha resolutions.
- **Administrative Override:** Sectoral laws on mining, forests & irrigation routinely bypass PESA mandates.
- **Capacity Deficit:** Ministry of Panchayati Raj (MoPR) assessments indicate that **more than 40% of PESA** representatives lack clarity regarding Gram Sabha powers.

Way Forward

- ✓ **Law Convergence:** Integrate **PESA with FRA, 2006 and LARR, 2013,** to make Gram Sabha consent a single binding clearance.
- ✓ **Role Clarity:** Clearly divide roles: MoPR for governance processes, Ministry of Tribal Affairs (MoTA) for land, forest, and livelihood rights.
- ✓ **Uniform Rules:** **Adopt central model PESA Rules** with limited state flexibility to prevent dilution.
- ✓ **Capacity Building:** Replace one-time training with **continuous handholding** through community paralegals and barefoot facilitators.

Conclusion

- Genuine tribal self-governance under PESA demands more than consultation; it requires **binding consent**, **accountable administration** and **empowered Gram Sabhas**, echoing that **"development must be done with tribals, not for them."**

-------- End of Chapter --------

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Fundamental Rights (FRs) & DPSPs

{IC – FRs} Obscenity Laws and Freedom of Expression *

❖ Recent legal actions against **YouTuber Ranveer Allahbadia** and **comedian Samay Raina** for alleged obscene remarks have reignited debates on obscenity laws and free speech in India.

Obscenity

- **Obscenity:** Any content that violates public decency and morality.
- **Legal Standard:** Content that is lascivious, depraving, or corrupting societal values.
- **Offensive Humour:** Speech or comedy on sensitive topics like religion, caste, or gender, often leading to legal scrutiny.

Evolution of Obscenity Law

⇨ ***Hicklin Test:*** *Judges obscenity by assessing if isolated parts of work could corrupt susceptible individuals, including children, setting a low threshold for banning content.*

⇨ ***Miller Test:*** *Determines obscenity based on prurient interest, explicit content violating local laws, and lack of political, artistic, scientific, or literary value.*

- **Queen v. Hicklin (1868):** Established the **Hicklin Test**, defining obscenity based on isolated passages' impact on vulnerable individuals.
- **Roth v. United States (1957): Rejected the Hicklin Test**, introducing the **community standards test**, considering the work as a whole.
- **Ranjit D. Udeshi v. State of Maharashtra (1964):** Adopted the **Hicklin Test** in India, banning **Lady Chatterley's Lover** for obscenity.
- **Aveek Sarkar v. State of West Bengal (2014):** Indian SC shifted to **community standards**, assessing obscenity based on evolving social norms.
- **Recent Cases (including 2024 College Romance Case):** Courts **distinguish profanity from obscenity.**

Key Laws Governing Obscenity

- **Section 294, Bharatiya Nyaya Sanhita (BNS):** Prohibits sale, distribution, advertisement of obscene material, including digital content. **Punishment upto 2 yrs jail & ₹5,000** fine for first-time offenders.
- **Section 67 of the IT Act, 2000:** Regulates online publication of obscene material. **Punishment** up to 3 years imprisonment and ₹5 lakh fine for first-time offenders.
- **Indecent Representation of Women (Prohibition) Act, 1986:** Prohibits indecent portrayal of women in media.
- **Cable Television Networks (Regulation) Act, 1995:** Regulates TV content standards.
- **Cinematograph Act, 1952:** Governs film certification.
- **Young Persons (Harmful Publication) Act, 1956:** Protects minors from explicit content.

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Obscenity Laws in Other Countries

- **United States:** First Amendment protects free speech; **Miller Test (1973) assesses obscenity.**
- **United Kingdom: Obscene Publications Act (1857)** originally applied the Hicklin Test; later revised under the **Criminal Justice and Immigration Act (2008).**

Role of Comedy in Society

- **Social Critique & Awareness:** Challenges **authority** and **exposes hypocrisy**.
- **Emotional & Mental Well-being:** Reduces **stress** and **fosters resilience**.
- **Challenging Stereotypes:** Encourages progressive thinking.
- **Cultural Reflection & Entertainment:** Evolves societal narratives.
- **Bridging Differences:** Creates shared experiences across communities.

Constitutional Framework Regulating Speech

- **Article 19(1)(a):** Guarantees freedom of speech and expression.
- **Article 19(2):** Permits reasonable restrictions on grounds of public order, decency, and morality.

Freedom of Expression Vs Societal Sensitivities

- **Political Satire:** Essential for **democracy**, but can provoke unrest.
- **Religious Critique:** Necessary for **reform**, but may offend believers.
- **Obscene Humour:** A personal choice, but spreads vulgarity.
- **Artistic Freedom:** Encourages diverse viewpoints but can offend communities.
- **Digital Expression:** Promotes open discussions but may spread offensive content.

Judicial Views on Free Speech and Humour

- **S. Rangarajan v. P. Jagjivan Ram (1989):** State must protect free speech, not surrender to public outrage.
- **Bobby Art International v. Om Pal Singh Hoon (1996):** Allowed screening of **Bandit Queen** citing its social message.
- **Shreya Singhal v. Union of India (2015):** Struck down **Section 66A of IT Act**, affirming that subjective offense cannot limit free speech.

Arguments for Free Speech in Humour

- ✓ **Political Critique & Accountability:** Satire exposes corruption and inefficiency.
- ✓ **Social Change & Stereotype Breaking:** Challenges regressive norms.
- ✓ **Mental Health Benefits:** Humour provides emotional resilience.
- ✓ **Censorship and Authoritarianism:** Suppressing humour limits democratic dissent.
- ✓ **Subjectivity of Offense:** What offends one may not offend another.
- ✓ **Audience's Right to Choose:** Individuals can self-regulate their content consumption.

Arguments Against Obscene Humour

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- **Public Morality & Cultural Values:** Obscene jokes normalize indecency.
- **Gender Inequality:** Sexist humour perpetuates discrimination.
- **Impact on Minors:** Early exposure distorts social behaviour.
- **Workplace Harassment:** Sexual jokes create hostile environments.
- **Community Standards Violation:** Public content should respect shared values.
- **Legal Limits on Free Speech:** Societal harmony must be maintained.

Challenges in Regulating Obscene Humour

- **Lack of Clear Definition:** Subjective legal interpretation.
- **Conflict Between Free Speech & Morality:** Governmental restrictions limit artistic expression.
- **Legal Inconsistency:** Courts apply differing standards (Hicklin vs. Community Standards Test).
- **Rise of Digital Media:** Unregulated online content increases obscenity concerns.
- **Selective Censorship:** Politicians and religious groups selectively use obscenity laws.
- **Impact of Social Media Outrage:** Public perception influences legal action against comedians.

{IC – FRs} Judicial Safeguards Against the Rise of Hate Speech *

- **Context (TH):** Rising hate speech in India is **threatening social harmony** and **testing the judiciary's role** in protecting constitutional values amid legal gaps, weak enforcement, and political sensitivities.

Hate Speech in India

- **Meaning:** Speech or actions that **promote hatred**, **discrimination**, or **hostility** against a group based on identity such as religion, caste, ethnicity, or gender.
- **Forms:** It may appear in speech, writing, symbols, images, gestures, or through online & offline platforms.
- **Legal Gap:** Hate speech is **not specifically defined** in Indian law.

Regulation of Hate Speech in India

- **Article 19(2):** Permits **reasonable restrictions on free speech** in the interests of public order, security of the state, and prevention of offences.
- **Representation of the People Act, 1951:** Sections 8, 123(3A), and 125 penalise hate speech in the electoral context.
- **Protection of Civil Rights Act, 1955:** Prohibits speech that promotes **untouchability** or **communal disharmony**.
- **BNS Section 196 (earlier IPC 153A):** Penalises **promoting enmity between groups** on grounds such as religion, race, or language.
- **BNS Section 299 (earlier IPC 295A):** **Punishes deliberate acts** intended to outrage religious feelings.
- **BNS Section 353:** Penalises statements likely to **incite offences** against the State or disturb public order.

Supreme Court Judgements on Hate Speech

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- **Pravasi Bhalai Sangathan v. Union of India:** The SC **refused to create a new offence** without legislation and asked the **Law Commission to define hate speech** and suggest reforms.
- **Ramji Lal Modi v. State of UP:** Upheld restrictions on speech that deliberately **outrages religious feelings** and **threatens public order**.
- **Shreya Singhal v. Union of India (2015):** Struck down **Section 66A of the IT Act**, while reaffirming that vague restrictions cannot curb free speech.
- **Tehseen Poonawalla Judgment:** Held that the **State has a duty to protect citizens' dignity and lives** from hate crimes and mob violence.

Need for Criminalisation of Hate Speech in India

- **Protect Communities:** Criminalising hate speech **safeguards vulnerable groups** from discrimination and social exclusion. E.g., **2020 Delhi riots** saw online posts fueling real-world violence.
- **Prevent Violence:** Legal provisions deter **communal clashes and mob lynching** by ensuring accountability.
  - ❖ E.g., Tehseen Poonawalla v. Union of India (2018) mandated **appointment of nodal officers** to prevent hate crimes.
- **Ensure Accountability:** Holds offenders and negligent authorities responsible, reducing impunity. E.g., the 2024 Karnataka elections had unregistered communal posts, showing enforcement gaps.

Way Forward for Combating Hate Speech

- ✓ **Legal Codification:** Enact specific law defining hate speech using **Law Commission 267th Report** (2017) to remove ambiguity and close enforcement gaps.
- ✓ **State Accountability:** Enforce **Tehseen Poonawalla v. Union of India** (2018) directions by appointing nodal officers to monitor and prevent communal hate crimes.
- ✓ **Judicial Speed:** Establish **fast-track courts** to ensure timely prosecution and conviction of hate speech offences, improving deterrence and public trust.
- ✓ **Platform Liability:** Strengthen **intermediary obligations** under the **Information Technology Act, 2000** and **IT Rules, 2021**, to ensure rapid removal of harmful content.
- ✓ **Electoral Sanction:** Amend the **Representation of the People Act, 1951**, to empower the Election Commission to **disqualify candidates** using hate speech in campaigns.

{IC – FRs} SC Judgement on Preventive Detention

- **Context (TH):** The Supreme Court in **Dhanya M. vs State of Kerala (2025)** reaffirmed that preventive detention must be used **sparingly**, **not as a substitute** for criminal prosecution or to bypass bail.
- Yet, its misuse persists through laws such as **KAAPA (Kerala)** and the **NSA (National Security Act).**

⇨ **Article 22** authorises preventive detention, allowing individuals to be held without trial for up to 12 months under certain laws.

Need for Re-examination of Preventive Detention

- **Judicial Disquiet:** Despite repeated SC warnings **(Rekha vs Tamil Nadu, Banka Sneha Sheela)**, preventive detention remains a routine tool of administration.
- **Colonial Legacy:** Traces back to **Bengal Regulation III, 1818**, retained post-Independence.

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- **Rising Use:** **Over 24,000+** preventive detentions annually under various state and central laws (**NCRB, 2023**), with **poor conviction or review rates**.
- **Erosion of Liberty:** Undermines **Articles 14, 19, 21** — the **"Golden Triangle"** of fundamental rights.
- **Wide Definitions:** Terms like "**goonda**" or "**anti-social element**" enable vague and arbitrary detentions.
- **Global Concern:** India ranks **lowest** among G20 in **Rule of Law Index** (**World Justice Project, 2024**).

Way Forward

- ✓ **Constitutional Revisit:** Harmonise **Article 22** with **Article 21's** due process principle post-Maneka Gandhi. **(Law Commission 276th Report)**
- ✓ **Periodic Review:** Mandate **quarterly judicial audits** of all detentions; ensure public data disclosure. E.g. Periodic Review clause in the **UK's Terrorism Prevention and Investigation Measures Act, 2011**.
- ✓ **Digital Transparency:** **e-Detention Tracker** for tracking detention orders, reasons, and review outcomes. E.g. **OECD Open Justice Data Initiative**.
- ✓ **Rights Safeguards:** Compulsory assignment of **state-funded lawyers** to all detainees **within 48 hours**.

Read More > *Preventive Detention*

{IC – FRs} Protection of Civil Rights Act, 1955 & Persistence of Untouchability

- **Criminal cases related to untouchability** under the **Protection of Civil Rights Act, 1955**, have **decreased**, but **court pendency** remains above **97%**, according to the **2022 Annual Report** by the **Ministry of Social Justice & Empowerment**.

Key Findings of PCR Annual Report 2022

- The 2022 Annual Report by **Ministry of Social Justice & Empowerment** highlights a sharp decline in **PCR Act case registration**, along with **high pendency** & **poor implementation across states**.
- **Low Case Registration:** As per NCRB data, **only 13 cases** were registered under the PCR Act in 2022, down from 24 in 2021 and 25 in 2020.
- **High Judicial Pendency:** 1,242 cases were **pending trial** in courts under the Act by the end of 2022.
- **Very Low Conviction Rate:** Out of 31 cases disposed of, only 1 resulted in a conviction, while 30 ended with **acquittals**.

About Untouchability

- Untouchability is a **historical practice** of **caste-based discrimination** against the Scheduled Castes that denies access to public spaces, resources, and social inclusion.

Constitutional & Legal Safeguard

- **Article 17** abolishes untouchability and declares its practice a punishable offence.
- **Article 15(2)** prohibits denying access to public spaces and services on the basis of caste.
- **Article 46** mandates that the State promote the educational and economic interests of SCs.
- The **Protection of Civil Rights Act, 1955**, **penalises** untouchability practices.
- SC/ST (Prevention of Atrocities) Act, 1989, enforces stricter measures against caste-based atrocities.

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About the Protection of Civil Rights Act, 1955

- The PCR Act, 1955, is the **central law** enacted to enforce **Article 17** by **criminalising untouchability** and related caste-based social disabilities.
- **Annual Reports**: The act requires states and UTs to submit **annual implementation reports**.
- **State Role:** States are required to appoint vigilance officers, survey **areas prone to untouchability**, and conduct awareness campaigns.

Comparison with SC/ST (Prevention of Atrocities) Act, 1989

- The **SC/ST (Prevention of Atrocities) Act, 1989**, is a central law designed to prevent atrocities **against SC and ST communities** and to ensure protection through special courts & victim relief.
- **Coverage and Scope:** Unlike the PCR Act, which targets offences related to **untouchability**, the SC/ST Act covers a **broader range**, including **violence**, social boycotts, and **public abuse**.
- **Enforcement Strength:** It includes exclusive **specialised courts**, time-limited trials, and nodal officers — provisions mostly absent under PCR Act.
- **Compensation and Relief:** The Act mandates **victim compensation**, witness protection, and **rehabilitation**, which the PCR Act does not include.
- **Implementation Priority:** The SC/ST Act had **62,501 cases registered in 2022**, far exceeding the PCR Act's 13 cases, reflecting stronger implementation.

Key Limitations of the PCR Act, 1955

- **Low Awareness and Enforcement Gaps:** The **decline in registered cases** nationwide suggests limited awareness among citizens and weak enforcement by the police.
- **High Acquittal and Delay Rate:** Most disposed PCR cases end in **acquittal**, revealing weaknesses in investigation and prosecution.
- **No Victim-Centric Provisions:** The Act lacks provisions for compensation, rehabilitation, or witness protection, unlike the SC/ST Act.
- **Poor State Compliance:** Several states and UTs did not submit mandatory review reports in 2022.
- **Inactive Mechanisms**: Many states did not appoint vigilance Officers or designate areas prone to untouchability as mandated by the Act.

Way Forward

- ✓ **Stronger Enforcement:** **Appoint vigilance officers** in all states and conduct regular surveys of **untouchability-prone areas** as mandated under the PCR Act.
- ✓ **Speedy Justice:** Establish **dedicated courts** and **fast-track trials** to reduce the **over 97% pendency rate** and improve convictions.
- ✓ **Victim Support:** Introduce **compensation, rehabilitation, and witness protection provisions** on the lines of the **SC/ST (PoA) Act, 1989**.
- ✓ **Social Awareness:** **Expand anti-discrimination campaigns** through schools, Panchayats, and digital platforms to eliminate caste prejudices and encourage reporting.

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{IC – FRs} Inclusive Digital Access as a Fundamental Right *

❖ SC in **Amar Jain v. Union of India** mandates **an inclusive e-KYC process recognising digital access** as part of the right to life under **Article 21**.

Digital Divide

- **Systemic Barriers in Digital India:** Highlighted that India's rapid digitisation excludes people without access to assistive tech, digital literacy or inclusive platforms.
- **Digital Welfare Lockout:** Most central schemes (ration, pensions, subsidies) rely on digital authentication and KYC, which are inaccessible to many with disabilities or those in rural areas.

⇨ ***Digital Divide:*** *Unequal access to devices, digital skills, online content and service design that excludes rural, disabled, elderly and poor citizens.*

Key Highlights of the SC Ruling

- **Reinterpretation of Right to Life:** SC reaffirmed that **access to digital services** forms an intrinsic component of **Article 21**, ensuring dignity, autonomy and participation in a digitised society.
- **Substantive Justice Approach** rather than merely procedural, interpretation of rights to ensure real and meaningful access to essential services for all.
- **Sabu Mathew George v. Union of India:** SC held that digital platforms must **not enable discriminatory practices**, hence must be made accountable to constitutional rights.
- **Anuradha Bhasin v. Union of India:** SC held that access to the internet is integral to freedom of expression & trade, implying the **state's duty to ensure continuity and accessibility of digital platforms**.
- **Revision of e-KYC Norms:** Directed overhaul of digital **Know Your Customer** (**KYC**) guidelines to accommodate persons with facial disfigurement or visual impairments.
- **Inclusive Design Mandate:** Need for a **universal design approach** in digital infrastructure, ensuring usability for persons with disabilities, acid attack survivors, the elderly, rural poor & linguistic minorities.
- **Accessibility in Critical Services:** Declared that all portals, government, fintech, and education must be universally accessible to fulfil constitutional obligations under **Articles 14, 15, 21 and 38**.
- **Recognition of Rights Under Disability Law:** Held that digital exclusion of PwDs violates **the Rights of Persons with Disabilities Act, 2016,** a **statutory** right to accessibility & reasonable accommodation.

Previous Expansion of the Understanding of Article 21

- **Right to Livelihood – Olga Tellis v. Bombay Municipal Corporation (1985):** Held that the right to life includes the **right to livelihood** as a condition for living with dignity.
- **Right to Clean Environment – Subhash Kumar v. State of Bihar (1991):** Recognised a **pollution-free environment** as essential to enjoying the right to life.
- **Right to Education – Mohini Jain v. State of Karnataka (1992):** Prior to the enactment of Article 21A, **education** was read into Article 21 as necessary for individual freedom and dignity.

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- **Right to Privacy – Justice K.S. Puttaswamy v. Union of India (2017):** Affirmed that **privacy** is a fundamental right implicit in Article 21, influencing the handling of digital data and personal information.
- **Right to Die with Dignity – Common Cause v. Union of India (2018):** Recognised **passive euthanasia** and living wills as an extension of the right to die with dignity under Article 21.

Significance

- **Foundation for Inclusive Digital Ecosystem:** SC ruling places **digital access within the core of constitutional rights**, emphasising equity, dignity and non-discrimination in public service delivery.
- **Institutional Responsibility:** Places legal obligation on government and regulatory institutions like RBI to frame inclusive, technology-neutral digital access frameworks.
- **Paradigm Shift in Rights Jurisprudence:** Reflects a shift from **narrow procedural interpretations to a rights-based governance model** that prioritises real-world accessibility.

Way Forward

✓ **Universal Design:** Mandate accessibility standards under the **RPwD Act, 2016**. E.g., WCAG-compliant government portals and accessible e-KYC systems.

✓ **Digital Inclusion:** Expand affordable internet and digital literacy, as India still has over **800 million internet users**, leaving significant gaps.

✓ **Regulatory Oversight:** RBI and MeitY should conduct accessibility audits. E.g., periodic compliance checks for banks, fintechs, and welfare portals.

✓ **Last-Mile Access:** Strengthen **over 5 lakh Common Service Centres (CSCs)** to provide assisted digital services in rural and remote areas.

{IC – FRs} Safe Harbour & Intermediary Liability

❖ The Ministry of Information & Broadcasting is reconsidering the Safe Harbour provisions under the **Information Technology (IT) Act, 2000**.

About Safe Harbour

- A **legal immunity** granted to **online intermediaries** (e.g., social media platforms, search engines, hosting services), protecting them from being held liable for **user-generated content**.
- Encourages **digital innovation** and **free expression** by shielding platforms from constant legal risk, provided they meet specific obligations.

Intermediary Liability

- The concept of holding **digital intermediaries** legally **accountable** for content shared by their users.
- Liability depends on:
  - ❖ The platform's awareness of the content.
  - ❖ Action taken after receiving notice of illegal or harmful material.

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Legal Framework in India

- **Section 79, IT Act, 2000:** Grants conditional protection from liability for third-party content.
  - ❖ Inspired by **Section 230** of the U.S. Communications Decency Act.

⇨ *Section 230 of the U.S. law is a counterpart to India's Section 79. Offers broad immunity to platforms for third-party content. Now under scrutiny. due to rising concerns over hate speech, misinformation, and algorithmic bias.*

- **Conditions for Immunity:** Platforms must act upon receiving "actual knowledge" of unlawful content.
  - ❖ Defined by the SC (**Shreya Singhal v. Union of India, 2015**) as a court order or government notice.
  - ❖ **Failure to act** within a **reasonable time** leads to loss of immunity.

Regulatory Framework

- Governed by the **IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021**. *[Notified under Section 87 of the Information Technology (IT) Act, 2000, aims to regulate intermediaries, OTT platforms, and digital news media.]*
- Key obligations for Intermediaries:
  - ❖ Appoint **Grievance Officer and Nodal Contact Person**.
  - ❖ For Significant Social Media Intermediaries (SSMIs):
    - Appoint a Resident Compliance Officer.
    - Publish monthly compliance reports on grievance redressal and content moderation.
  - ❖ **2023 Amendment:** Safe Harbour to be revoked if content is flagged as **"fake news"** by the PIB Fact Check Unit.
  - ❖ Facing legal challenge (e.g. Bombay HC) over concerns of executive overreach and lack of due process.

Why the Government Wants Change?

- **Issue:** **Non-compliance** and **delays** by platforms like X in following Indian takedown orders.
- **Amendment Goals:** Increase accountability for misinformation, cyberfrauds, and AI-generated deepfakes. Assert **digital sovereignty** by aligning platform operations with Indian laws and the constitution.

Significance of Safe Harbour

✓ **Innovation-Friendly:** Reduces legal burdens, promoting startups and digital entrepreneurship.

✓ **Protects Free Speech:** Prevents excessive censorship by platforms fearing prosecution.

✓ **Ensures Due Process:** Creates a structured mechanism for takedown, avoiding arbitrary removals and ensuring user rights.

Also Read > *Section 69A & Section 66(A) of the Information Technology (IT) Act*

{IC – FRs} Right to Disconnect *

- **Context (TH | TOI):** A **Private Member's Bill**, the **'Right to Disconnect Bill, 2025'**, has been introduced in the Lok Sabha to promote work-life balance.

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- The Bill aims to give employees a **legal right** to ignore work-related calls, emails, and messages after official hours **without fear of penalties** or disciplinary action.
- **Key Proposals:** Includes establishing an **Employees' Welfare Authority**, a 1% penalty for violations, overtime pay, and counselling and **digital detox centres** for healthy device use.

⇨ *A **Private Member's Bill** is introduced by a Member of Parliament (MP) who is **not a minister** to highlight specific issues, test new policy ideas, or raise matters of concern.*

About Right to Disconnect

- It is the principle that employees should be able **to disengage from work communications outside official hours without** facing any adverse action.

Need for Right to Disconnect

- **Legal Gap:** India **lacks statutory protections** for off-hours disengagement, risking unpaid overtime and digital overreach in modern workplaces.
- **Constitutional Basis:** It is essential to protect the Right to Life (Article 21), which includes the right to health, rest, and sleep; It aligns with Articles 39(e) and Article 42.
- **Burnout & Stress:** The expectation of 24/7 availability, termed **"telepressure,"** causes **chronic stress**; **49% of Indian workers** report work-related stress affecting mental health (ADP Research Institute).
- **Long Working Hours:** Indian employees work some of the longest hours worldwide, averaging **47.7 hours a week**, with more than half exceeding **49 hours weekly**.
- **Productivity Impact:** Excessive hours **reduce focus and output quality**, while structured rest improves efficiency, creativity, and reduces presenteeism.

Challenges with Right to Disconnect

- **Informal Sector:** The large **informal** and **gig workforce** lacks fixed hours, making uniform enforcement legally and practically difficult.
- **Business Continuity:** Global teams and **time-zone differences** require after-hours coordination, especially in the IT, consulting, and services sectors.
- **Enforcement Burden:** Monitoring calls, emails, and messages raises **compliance costs** and creates evidentiary challenges for labour authorities.
- **Ambiguity Risk:** Defining "emergency," "reasonable contact," and senior managerial roles may lead to litigation and **inconsistent workplace practices**.

Global Examples of Disconnect Laws

- **France** was the first nation to officially acknowledge the right to disconnect as part of its **El Khomri labour law** (**2017**).
- **Portugal's 2021 legislation** makes it an **offence, punishable by fines, for employers to contact employees** outside working hours, except in emergencies.
- **Australia** adopted an enforceable right to disconnect in 2024, allowing employees to **refuse after-hours work contact** unless the refusal is deemed unreasonable.

Way Forward

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- ✓ **Legal Framework:** Enact a Right to Disconnect law defining work hours, emergencies, and protections, as seen in **France's 2017 El Khomri law.**
- ✓ **Workplace Policies:** Mandate organisational rules for after-hours communication and overtime pay, similar to **Australia's 2024 enforceable workplace safeguards**.
- ✓ **Flexible Implementation:** Develop sector-specific guidelines for IT, healthcare, and gig work, as global IT firms require cross-time-zone coordination.
- ✓ **Awareness & Enforcement:** Strengthen grievance systems, audits, and digital detox programmes, like **Portugal's strict penalty-based enforcement model** (2021).

Read More > *Right to Disconnect*

{IC – FRs} Karnataka Implements Right to Die with Dignity

❖ Karnataka implemented SC's ruling on passive euthanasia, becoming **2nd State after Kerala** to do so.

Passive Euthanasia

- Withholding or withdrawing life-sustaining treatment to allow a terminally ill patient to die naturally.
- **International Practices: Netherlands, Belgium** and **Canada** allow euthanasia under strict conditions.
- **Legal in India** as per SC rulings in 2018 & 2023, **under strict medical and legal conditions.**
- Ministry of Health and Family Welfare issued draft guidelines titled **"Guidelines for Withdrawal of Life Support in Terminally Ill Patients."**
- **Goa (June 2024)** became the **first state** to register a living will.

⇨ *A living will is a **legal document** specifying an individual's preferences for medical treatment if they become incapacitated. It must be signed by the individual in the presence of **two witnesses** and countersigned by a **Judicial Magistrate of First Class (JMFC)**.*

SC's Directives on Passive Euthanasia

- **Aruna Shanbaug Case, 2011:** Allowed passive euthanasia for Aruna Shanbaug, a nurse who remained in a vegetative state for decades after a brutal assault. The SC made a distinction between **active** and **passive euthanasia**, permitting the latter under specific conditions.
- **Legal Recognition (2018 & 2023):** Right to die with dignity under Article 21 of the Constitution, allowing the withdrawal of life support in terminal cases contingent upon presence of a **'living will.'**
- **Conditions:** Allowed for **terminally ill, vegetative state**, or **prolonged suffering**.
- **Advance Directive (Living Will):** Any adult can predefine treatment choices, with two representatives.
- **Simplified Process (2023):** Streamlined withdrawal of life support with legal-medical guidelines.

Approval Process for Life Support Withdrawal

- **Medical Boards:** Primary and Secondary Medical Boards (each with three senior doctors) must be set up.
- **District Health Officer:** Must be involved in evaluating the case.
- **Judicial Oversight:** Final decision requires **approval of JMFC** and **submission to High Court Registrar.**

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Ethical Considerations of Euthanasia

- **Right to Die:** Individuals should have **control over their life and death**, while opponents believe euthanasia **undermines the sanctity of life.**
- **Sanctity vs. Quality of Life:** Religious views emphasise **sanctity**, while others stress **humane choices** when quality of life is irreversibly diminished.
- **Beneficence:** Seen as **relief from unbearable pain**, but critics advocate for **better palliative care.**

Arguments Against Passive Euthanasia

- **Potential Abuse:** Concerns about **misuse, non-consensual euthanasia**, or **prioritising euthanasia** over healthcare improvements.
- **Slippery Slope Argument:** Fear that legal euthanasia may lead to non-consensual cases or societal pressure on vulnerable individuals.
- **Undermines Medical Ethics:** **World Medical Association (WMA)** opposes euthanasia stating that they are inconsistent with the core principles of medical practice.
- **IMA raised concerns** about legal risks for doctors following euthanasia guidelines.

About Indian Medical Association (IMA)

- **Largest medical association in India** with 3.5 lakh members across 28 State & 5 UT branches.
- Established in **1928**, played a role in India's freedom struggle & became a founding member of WMA.

Arguments in Favor of Euthanasia

- ✓ **Dignity in Death:** By relieving patients from unbearable suffering.
- ✓ **Avoidance of Futile Medical Treatment** that offers no hope of recovery.
- ✓ **Financial Relief:** To families by avoiding prolonged and costly treatments.
- ✓ **Judicial Recognition** for the **Right to Die** with Dignity **(Article 21)** in the Aruna Shanbaug case.
- ✓ **Organ Donation:** It can potentially save other lives.

{IC – FRs} Right to a Healthy Environment *

- **Context (TH):** Growing public protests against worsening pollution impacts have revived the debate on the **Right to a Healthy Environment**.

Constitutional Provisions for Right to a Healthy Environment

- **Right to Life:** **Article 21** protects the **right to live with dignity** in a clean, pollution-free environment.
- **Judicial Recognition:** In **Subhash Kumar** (**1991**), the Supreme Court recognised pollution-free water and air as part of Article 21.
- **Right to Equality:** In **M.K. Ranjitsinh** (**2024**), the **Supreme Court applied Article 14** to protect vulnerable communities from disproportionate climate harms.

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- **Right to Trade:** **Article 19(1)(g)** allows the State to **restrict hazardous trade activities** to protect public health and the environment.
- **State Duty:** **Article 48A** directs the State to protect and improve the environment, forests, and wildlife.
- **Public Health:** **Article 47** obligates the State to raise the standard of living and **improve public health**, which is closely linked to a healthy environment.
- **Fundamental Duty:** **Article 51A(g)** imposes a duty on citizens to **protect the natural environment** and have **compassion for living creatures**.
- **Judicial Remedy:** **Articles 32** and **226** empower citizens to enforce environmental rights through Public Interest Litigations.
- **International Treaty:** **Article 253** empowers Parliament to enact environmental laws to **implement international agreements**.

Judicial Doctrines for Right to a Healthy Environment

- **Precautionary Principle:** When serious harm is possible, the **burden shifts to developers** to prove environmental safety (**Vellore Citizens Welfare Forum, 1996**).
- **Polluter Pays:** Polluters must bear the **cost of prevention**, **compensation**, and **environmental restoration** (**Indian Council for Enviro-Legal Action, 1996**).
- **Absolute Liability:** Enterprises engaged in hazardous activities are strictly liable for environmental harm, **without any exception** (**M.C. Mehta, 1987**).
- **Sustainable Development:** Development must balance economic growth with environmental protection to preserve resources **for future generations** (Vellore Citizens Welfare Forum, 1996)
- **Public Trust:** The State holds natural resources in trust for the public and cannot allow their use against public interest (M.C. Mehta v. Kamal Nath, 1997).

Significance of Right to a Healthy Environment

- **Survival Baseline:** The right establishes a **legal survival baseline** by treating clean air and water as life-saving necessities.
- **Mandatory Duty:** Environmental protection shifts **from discretionary governance** to **enforceable constitutional obligations** of the State.
- **Public Trust:** Natural resources are affirmed as **community assets**, placing the **State under a trustee duty** for public benefit.
- **State Accountability:** Citizens are empowered to **hold regulatory authorities accountable** for failures in environmental governance.
- **Community Protection:** It provides legal protection to marginalised and indigenous communities facing disproportionate climate risks.
- **Future Equity:** A healthy environment right creates **duties toward future generations** and underpins climate justice.

Challenges to the Right to a Healthy Environment

- **Weak Enforcement:** Despite laws like the Environment (Protection) Act, 1986, enforcement remains weak due to **staff shortages** and limited institutional resources.

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- **Judicial Delays:** **Heavy backlogs** in the National Green Tribunal and higher courts delay remedies and prevent timely intervention.
- **Fragmented Governance:** Environmental responsibilities are **spread across multiple central and state agencies**, resulting in overlap, confusion, and poor coordination.
- **Policy Conflicts:** Development priorities often override conservation goals, as seen in Forest Conservation Act amendments and Aravalli Hills definition disputes.
- **Low Awareness:** Limited public awareness of environmental rights and legal provisions reduces citizens' ability to hold polluters accountable.

Way Forward

- **Stronger Enforcement:** Strengthen CPCB/SPCB capacity through **staffing, technology, and real-time monitoring**. E.g., **Continuous Emission Monitoring Systems** (**CEMS**).
- **Integrated Governance:** Adopt **airshed** and **river-basin-based management** for coordinated action. E.g., **Commission for Air Quality Management** (**CAQM**).
- **Speedy Adjudication:** Expand NGT benches and fast-track environmental cases. E.g., **Dedicated green courts** recommended by experts.
- **Public Participation:** Promote **environmental literacy** and **citizen monitoring** initiatives. E.g., **Mission LiFE** and community-based conservation programmes.

Judicial Evolution of Environmental Protection under Article 21

- **Maneka Gandhi (1978)** interpreted **Article 21** as the right to live with dignity, beyond mere survival.
- **Rural Litigation** (**1985**) first recognised a healthy environment as an **integral part of Article 21**.
- **M.C. Mehta** (**1987**) linked industrial pollution control directly with the **constitutional right to life**.
- **Radhey Shyam Sahu** (**1999**) held that maintaining public parks is a **State obligation under Article 21**.
- **M.K. Ranjitsinh** (**2024**) recognised protection from climate change impacts as a fundamental right under **Articles 21 and 14**

Read More > *Climate Crisis and Right to Life*

{IC – FRs} Menstrual Health as a Fundamental Rights *

❖ **Context (TH | IE):** The Supreme Court recognised **menstrual health as a fundamental right** under **Article 21** in Dr Jaya Thakur v. Government of India.

Key Directions Issued by the Supreme Court

- **Infrastructure Mandate:** All government and private schools must ensure **functional**, **gender-segregated**, **disabled-friendly toilets** with continuous water supply and soap.
- **Free Sanitary Pads:** All schools must provide free **oxo-biodegradable sanitary napkins** (ASTM D-6954 standard) to girls in Classes 6–12.
- **MHM Corners:** Schools must establish **Menstrual Hygiene Management (MHN) corners** with emergency supplies and safe disposal facilities.

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- **Awareness & Training:** NCERT and SCERTs must **integrate menstruation-responsive curricula** and train both male and female teachers.
- **Accountability:** District Education Officers **(DEOs) must conduct annual inspections**; non-compliant private schools risk de-recognition.
- **Monitoring:** The **National Commission for Protection of Child Rights (NCPCR)** and State Commissions should oversee implementation.

Constitutional Basis & Legal Reasoning

- **Article 21:** The Court embedded **menstrual dignity within the right to life**, holding that a lack of MHM violated decisional autonomy and bodily privacy.
- **Articles 14 & 15:** The Court applied **'substantive equality'**, invoking **Article 15(3)** to address menstruation as a biological basis of structural exclusion.
- **Article 21A:** It recognised MHM as vital to the **right to education**, as its absence causes **high absenteeism and dropout** among adolescent girls.
- **RTE Section 3:** The Court reinterpreted **free education** to include the removal of **gender-specific financial barriers**, identifying **'period poverty'** as an obstacle to completing education.
- **RTE Section 19:** It held that the school norms and standards under the Act are **mandatory constitutional obligations**, not merely procedural guidelines.

Challenges with Menstrual Health in India

- **Cultural Stigma:** Deep-seated **menstrual taboos** prevent open conversations and compel many rural women to rely on unhygienic traditional absorbents.
- **WASH Deficit:** The absence of adequate WASH infrastructure in many public schools leads to **menstrual absenteeism** and **higher dropout rates** among adolescent girls.
- **Supply Bottlenecks:** **Weak last-mile logistics** frequently disrupt the delivery of subsidised sanitary products to remote and marginalised rural communities.
- **Disposal Crisis:** Lack of **eco-friendly disposal methods**, like functional incinerators, makes discarded synthetic sanitary pads an environmental burden.
- **Education Gap:** Limited integration of comprehensive **reproductive health education** in school curricula results in adolescents having a poor scientific understanding of menstruation.

Way Forward

- **Universal Access:** Ensure **free sanitary pads** and **functional WASH facilities** in schools. E.g., **Menstrual Hygiene Scheme (MHS)**.
- **Curriculum Integration:** Mainstream menstrual health education through **NCERT and SCERT curricula**. E.g., Adolescent Education Programme.
- **Sustainable Disposal:** Install **eco-friendly incinerators** and **promote biodegradable** products. E.g., Kerala's Green Protocol initiatives.
- **Behavioural Change:** Conduct community awareness campaigns involving parents, teachers, and boys. E.g., **UNICEF-supported MHM programmes**.

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Government Initiatives for Menstrual Health

- ✓ **Sanitary Access:** Ministry of Health and Family Welfare (**MoHFW**) implements the **Scheme for Promotion of Menstrual Hygiene**, providing subsidised sanitary napkins to rural adolescent girls.
- ✓ **Affordable Pads:** **Pradhan Mantri Bhartiya Janaushadhi Pariyojana** offers **Suvidha oxo-biodegradable sanitary pads** at a subsidised price of ₹1 per pad.
- ✓ **Sanitation Funding:** **Swachh Bharat Mission (Gramin) Phase-II** allocates village-level funds for Menstrual Hygiene Management and the installation of safe menstrual waste disposal units.
- ✓ **Peer Education:** **Rashtriya Kishor Swasthya Karyakram** deploys trained community peer educators to promote scientific awareness and dismantle menstruation-related social taboos.
- ✓ **Policy Framework:** The **National Guidelines on Menstrual Hygiene Management** offer standardised guidance for developing school infrastructure and safe menstrual waste disposal systems.

Read More > *Draft National Menstrual Hygiene Policy, 2023*

{IC – FRs} Right to be Forgotten **

❖ **Context (IE):** The Supreme Court of India is examining whether the "**Right to be Forgotten**" (**RTBF**) can require the **removal of accurate news reports from the internet**.

- The court will decide on the conflict between the **Right to Privacy** under **Article 21** and **Freedom of the Press** under **Article 19**.

About Right to Be Forgotten (RTBF)

- The Right to be Forgotten (RTBF) allows individuals to have **personal information removed from public platforms** when it is outdated, irrelevant, or harmful.
- **Constitutional Basis:** The Supreme Court recognised RTBF as an intrinsic part of the **Right to Privacy** under **Article 21** in the **K.S. Puttaswamy judgment** (2017).
- **Global Standard:** The concept mirrors the **"Right to Erasure"** in the European Union's General Data Protection Regulation (**GDPR**).
- **Scope Limitation:** The Court clarified that **RTBF is not an absolute right**; it must yield when the information serves a larger public interest.
- **Legal Vacuum:** India currently **lacks a specific statutory law** on RTBF, forcing courts to decide on petitions on a discretionary, case-by-case basis.
  - ❖ **Transitional Framework:** Although the DPDP Act, 2023, has been enacted, enforcement of the "**Right to Erasure**" is still **not operationalised**.
- **Statutory Ambiguity:** The DPDP Act, 2023, grants a **"Right to Erasure"** (**Section 12**), but its applicability to public records like news archives is **legally unsettled**.
- **Regulatory Gap:** The **IT Rules, 2021, do not legally empower intermediaries** (like Google) to adjudicate on complex claims of historical truth.

Arguments in Favour of Applying RTBF in Online News

- **Reformative Justice:** Permanent digital records **undermine rehabilitation**, preventing acquitted individuals from reintegrating into society.

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- **Informational Control:** The Puttaswamy verdict empowers citizens to **suppress "irrelevant" information** to safeguard their dignity.
- **Profile Mitigation:** RTBF **prevents algorithms** from creating **unfair "digital profiles"** that might deny jobs based on resolved, old incidents.
- **Power Symmetry:** It protects reputation from search engines that often prioritise **sensationalism over factual accuracy**.

Arguments Against Applying RTBF in Online News

- **Press Freedom:** Mandating the removal of factual news violates the media's **Freedom of Speech** under **Article 19(1)(a)**.
- **Historical Integrity:** Erasing news archives distorts the **"public record"**, creating a **sanitised version of history** that obscures inconvenient truths.
- **Chilling Effect:** Frequent takedown orders may **deter journalists from reporting** on ongoing investigations because of the fear of future litigation.
- **Technological Futility:** Complete erasure is practically impossible due to **archiving services**; suppression attempts often trigger the **"Streisand Effect"** (drawing more attention to hidden content).

Way Forward for Right to be Forgotten (RTBF)

- ✓ **DPDP Framework:** Operationalise the **Digital Personal Data Protection Act, 2023**, with clear rules that balance erasure rights with journalistic exemptions.
- ✓ **Judicial Test:** Formulate a **Supreme Court-guided proportionality test** to balance individual privacy rights with the public interest in maintaining news archives.
- ✓ **Search Regulation:** Implement **search-engine de-indexing** mechanisms that remove name-based results without needing to delete original factual articles.
- ✓ **Media Accountability:** Establish self-regulatory guidelines requiring digital media platforms to **update crime reports following acquittals**.

{IC – DPSP} Strengthening Legal Aid Capacity in India *

- **Context (TH):** Though mandated by **Article 39A**, India's legal aid system **remains underfunded**, limiting **equitable access to justice** nationwide.

> ⇨ *Legal aid is a right enshrined under **Article 39A**, part of the **Directive Principles of State Policy (DPSP)**, of the Constitution, mandating the state to ensure **free legal aid for promoting justice** based on equal opportunity.*

Legal Aid Architecture in India

- Legal aid institutions form the **grassroots machinery of procedural equality**.
- **Statutory Basis:** Institutions were created under the Legal Services Authorities Act, 1987.
- **Delivery System:** Legal aid is delivered via empanelled **lawyers** and **paralegals** at local institutions.
- **Institutional Hierarchy:** NALSA leads **nationally**; SLSAs and DLSAs operate at **subnational levels**.
- **Funding Structure:** The Centre and states fund NALSA, which **allocates grants to SLSAs**.

Issues of Fiscal Constraints

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- Legal empowerment suffers from **systemic fiscal neglect** and **structural bottlenecks**.
- **Budget Share:** Legal aid **receives less than 1%** of total **justice system expenditure**.
- **Utilisation Drop:** SLSAs utilised **less than 50%** of funds despite higher NALSA allocation.
- **Low Autonomy:** SLSAs require NALSA approval for staffing, procurement, and victim compensation.
- **Fund Inflexibility:** **Budget ceilings** restrict reallocation across legal aid expenditure heads.

Ground-Level Impact

- Fiscal neglect visibly **weakens last-mile presence** and **delivery outcomes**.
- **Volunteer Drop:** The number of **paralegal volunteers (PLVs) fell 38%** between 2019 and 2024.
- **Undervalued Workforce:** **Sub-minimum wages** for PLVs deter retention and skilled participation.
- **Sparse Coverage:** Legal aid clinics serve only 1 in every 127-163 villages.
- **Deployment Gaps:** Only one-third of listed PLVs are deployed, limiting effective community access.

Way Forward

- ✓ Legal aid must shift **from token coverage to outcome-based** access assurance.
- ✓ **Budget Enhancement:** Raise **legal aid share to ≥2%** of justice budget with direct SLSA grants.
- ✓ **Operational Flexibility:** Allow SLSAs autonomy in **fund reallocation** and **staff recruitment procedures**.
- ✓ **Volunteer Strengthening:** Standardise pay, ensure social security, and deploy PLVs by population ratio.
- ✓ **Digital Outreach:** Expand **mobile legal clinics** & **integrate online grievance** redress for remote regions.

Emerging Strengths

- Rising allocation signals renewed political commitment to **welfare-based legal** inclusion.
- **Rising Coverage:** **Over 15 lakh** received legal aid in 2023-24, a **28% annual increase**.
- **Funding Growth:** Total legal aid allocation rose to **₹1,090 crore** across 25 states by 2022.
- **State Initiatives:** **Thirteen states** have more than doubled their legal aid budgets since 2019.
- **Spending Rise:** Per capita legal aid spending increased from **₹3 to ₹7** since 2019.

{IC – FRs & DPSPs – Pathfinder for Mains}

Q. India's recognition of the Right to a Healthy Environment marks an important legal advance, yet its translation into meaningful environmental outcomes remains uneven. Examine the reasons for this gap and suggest measures to address it. (150 Words) (10 Marks)

Approach

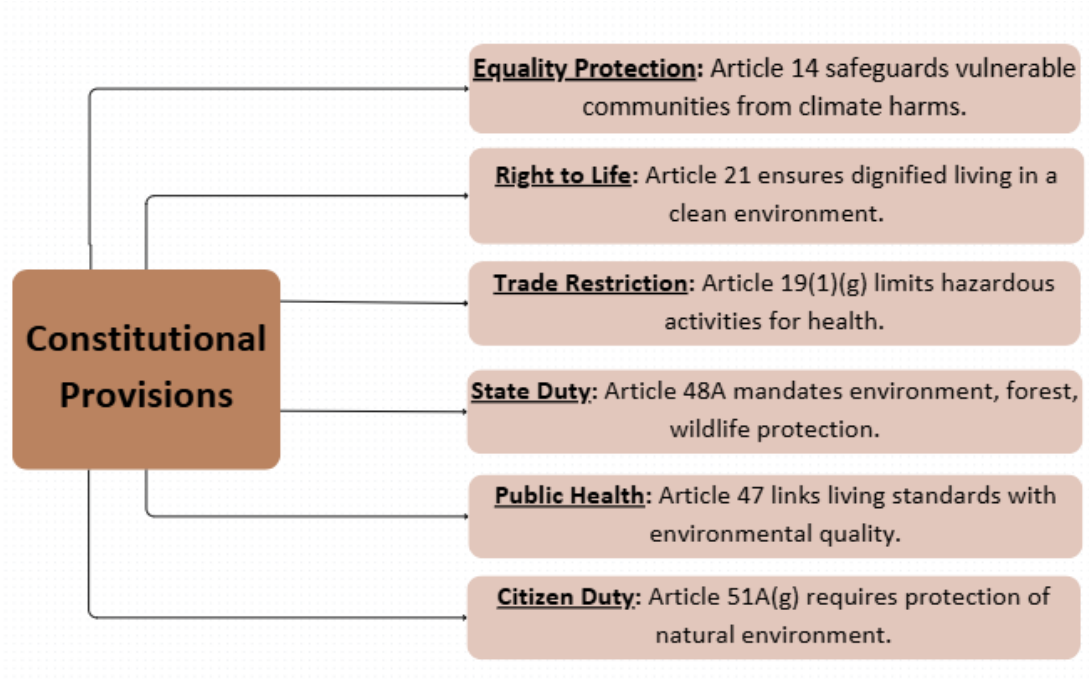
- **Introduction:** Write a brief introduction about the right to a healthy environment.
- **Body:** Examine the gaps between the recognition of the right to a healthy environment and meaningful environmental outcomes, and suggest measures to address them.
- **Conclusion:** Focus on a coordinated and integrated approach to effectively uphold the right to a healthy environment.

Model Answer (150 Words)

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- India recognises the **Right to a Healthy Environment** under **Article 21**, but turning this into tangible environmental results remains inconsistent.



Reasons for the Gaps

- **Weak Enforcement: Only 10–15% of industrial units** in Delhi-NCR are regularly monitored, contributing to severe air pollution.
- **Fragmented Governance:** Overlapping agencies delay action, as seen in **Aravalli Hills** Forest clearance disputes.
- **Development Trade-offs: EIA 2020 amendments** allow post-facto clearances, risking ecological damage. E.g., the Ken-Betwa River project.

Measures

- ✓ **Strengthen Institutions: Improve staffing** and **real-time monitoring** of Pollution Control Boards, such as Delhi's CAAQMS network.
- ✓ **Integrated Governance:** Implement **airshed and ecosystem-based planning** for coordinated environmental decisions. E.g., Yamuna Action Plan Phase II.
- ✓ **Rights-Based Laws:** Formalise the **Right to a Healthy Environment** to specify obligations and remedies.
- ✓ **Judicial Efficiency: Increase NGT benches** and expedite urgent pollution cases.

Conclusion

- Legal recognition alone cannot ensure outcomes; **strong institutions**, **coordinated governance**, & **active citizen engagement** are vital. As A.S. Anand noted, **"Environmental justice is integral to human dignity."**

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Q. Technology has reduced transaction costs but increased time poverty for workers. Critically examine the economic and social implications of digital overwork and assess whether a Right to Disconnect can balance efficiency with employee well-being. (250 Words) (15 Marks)

Approach

- **Introduction:** Write a brief introduction about the digital overwork.
- **Body:** Write the social and economic implications of digital overwork, then mention how Right to Disconnect can balance efficiency with employee well-being.
- **Conclusion:** Emphasis on effective and inclusive Right to disconnect to restore work-life balance.

Model Answer (250 Words)

- Rapid digitalisation in India has created an **"always-on" work culture**, blurring work-life boundaries and causing economic and social stress for employees.

Economic and Social Implications of Digital Overwork

- **Productivity Loss:** Excessive digital connectivity causes **fatigue-led presenteeism**, with **78% of Indian employees reporting burnout** despite longer working hours.
- **Health Costs:** **Over 51% of India's workforce exceeds 49 hours/week**, contributing to **10–12% of national mental health disorders** (ILO).
- **Work Inequality:** Always-on work norms **hit gig and contractual workers hardest**, who remain outside enforceable labour-hour protections.
- **Time Poverty:** **Blurred work–life boundaries** reduce rest and family time, disproportionately burdening women managing unpaid care work.

Right To Disconnect can Balance Efficiency with Employee Well-Being

- **Burnout Mitigation:** A Right to Disconnect targets India's 78% employee burnout rate, preventing productivity loss from chronic digital fatigue.
- **Productivity Quality:** By curbing **51% over-49-hour workweeks** (ILO), it improves **output quality** by reducing presenteeism and error rates.
- **Time Sovereignty:** Restores employee control over non-work hours, correcting **digital power asymmetry** and deepening work-life balance.
- **Global Evidence:** **Portugal (2021)** and **Australia (2024)** demonstrate that regulated disconnection enhances **well-being without reducing efficiency**.

Way Forward

✓ **Legal Disconnection:** **Codify Right to Disconnect (Portugal, 2021)** to curb after-hours coercion and uphold **Article 21 dignity**.

✓ **Hour Limits:** Enforce digital work-hour caps. E.g., 51% of Indians who exceed 49 hours/week face burnout risk.

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- ✓ **Outcome Evaluation:** Shift to **output-based appraisal**, as per OECD evidence, sustaining efficiency without constant availability.
- ✓ **Mental Health:** Mandate **stress audits** and breaks. E.g., WHO links work stress to a **10–12% mental health burden**.

Conclusion

- **Unplug to Recharge**, a legally backed Right to Disconnect, can restore **work-life balance**, **reduce burnout**, and **enhance productivity sustainably**.

Q. In light of the Supreme Court's 2025 judgment, examine the constitutional and developmental significance of recognising digital access as a Fundamental Right under Article 21. (150 Words) (10 Marks)

Approach

- **Introduction:** Introduce the 2025 Supreme Court judgment recognising digital access as a Fundamental Right under Article 21, emphasising its significance for a dignified life and meaningful participation.
- **Body:** Discuss the constitutional and developmental significance of recognising digital access as a fundamental right.
- **Conclusion:** In conclusion, recognising digital access as a fundamental right is crucial for inclusive development.

Model Answer (150 Words)

- In April 2025, the Supreme Court recognised **digital access to essential services** as a **Fundamental Right** under **Article 21**, aligning it with the right to life, dignity, and meaningful social participation.

Constitutional Significance of Recognising Digital Access as a Fundamental Right

- **Article 21:** Ensures access to digital platforms for education, healthcare, banking, and welfare, essential for a dignified life.
- **Article 14:** Calls for equitable digital systems inclusive of disabilities and socio-economic diversity.
- **Directive Principles (Article 38):** Mandates the State to reduce inequalities through digital inclusion.

Developmental Significance of Recognising Digital Access as a Fundamental Right

- ✓ **Bridging the Digital Divide:** With **59%** rural internet penetration (GSMA 2023), access becomes key to inclusive development.
- ✓ **Social Equity:** Enables access to over 100 welfare schemes like **PM-KISAN** and **Ujjwala** through digital platforms.
- ✓ **Education & Livelihood:** Empowers citizens with online education and job opportunities, reducing rural-urban disparity.
- ✓ **Privacy & Rights:** Strengthens data protection and curtails arbitrary internet shutdowns.

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Conclusion

- Recognising digital access as a **Fundamental Right** is vital for bridging the digital divide and fostering inclusive development. It **empowers citizens** and **strengthens social justice**.

Q. Despite being a constitutional mandate, legal aid in India remains largely ineffective for vulnerable sections. Critically examine the structural and financial shortcomings of the legal aid system. Suggest concrete reforms to bridge these gaps and ensure accessible, quality justice for all. (250 Words) (15 Marks)

Approach

- **Introduction:** Write briefly about the legal aid in India and mention current facts about the fund crunch.
- **Body:** Write structural and financial shortcomings of the legal aid system, its consequences and concrete reforms to bridge these gaps.
- **Conclusion:** Emphasis on substantive equality & rule of law through inclusive reforms.

Model Answer

- Legal aid in India, guaranteed under **Article 39A** and the **Legal Services Authorities Act, 1987**, aims to ensure justice for the poor and marginalised, but receives **less than 1%** of the total justice budget.

Structural and Financial Shortcomings

- **Poor Access:** One legal aid clinic serves every 163 villages (India Justice Report 2025).
- **Lack of Monitoring:** Absence of **performance evaluation** of legal aid counsels.
- **Awareness Deficit:** Many eligible beneficiaries are unaware of their rights.
- **Budget Crunch:** Legal aid receives **less than 1%** of the total justice system budget.

Consequences of Weak Legal Aid

- **Overcrowded Prisons:** Legal aid gaps lead to unnecessary incarceration. E.g., Prison occupancy rate is 130% (NCRB).
- **Justice Denied to the Poor:** Over 70% of undertrial prisoners are from socially and economically vulnerable groups (NCRB).
- **Increase Social inequality:** When justice is accessible only to the affluent, it entrenches inequality.

Concrete Reforms

- ✓ **Budget Allocation:** Allocate **at least 2%** of judiciary expenditure to legal aid.
- ✓ **Supplementary Funding:** Promote CSR investment or introduce a Legal Aid Cess to augment **National Legal Services Authority (NALSA) funding**.
- ✓ **Infrastructure Boost:** Expand legal aid clinics, as **only ~2,700 clinics** exist across India. (NALSA Report).
- ✓ **Paralegal Investment:** Enhance training and deployment of **paralegal volunteers** (**PLVs**).
- ✓ **Awareness Drives:** Utilise Doordarshan, AIR, and digital media to raise awareness about their rights.

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Conclusion

- Legal aid is not merely a welfare provision; it is fundamental to realising **substantive equality** & **rule of law**. Bridging gaps through inclusive reforms is vital to make **"access to justice for all"** a reality for India.

Q. Discuss the need for active euthanasia in contrast to passive euthanasia. Evaluate India's stance on euthanasia and its implications for the right to die with dignity. (15 Marks)

Approach

- **Introduction:** Write a brief definition of Euthanasia and its types, and mention the current status in India.
- **Body:** Discuss the need for active euthanasia in contrast to passive euthanasia, India's stance on euthanasia and the implications of euthanasia for the right to die with dignity.
- **Conclusion:** Write a futuristic conclusion and mention the future course of action for informed and dignified patient choices

Model Answer

- Euthanasia ends life to relieve suffering in terminal conditions. Active euthanasia is illegal in India, while passive euthanasia is allowed under SC rulings like **Aruna Shanbaug (2011)** & **the 2018 judgment** with safe-guards.

Need for Active Euthanasia

- **Alleviation of Suffering:** Active euthanasia **ends pain quickly** while passive euthanasia may prolong death (Aruna Shanbaug, 2011).
- **Patient Autonomy:** Active euthanasia **respects patient choice**, whereas passive euthanasia often needs family and SC approval (2018 Judgment).
- **Medical Futility:** Passive euthanasia **halts futile treatment** while active euthanasia deliberately ends life to prevent prolonged suffering.
- **Ethical & Legal:** Active euthanasia is illegal (**IPC 302/304**) while passive euthanasia is permitted under strict safeguards.

India's Stance on Euthanasia

- **Aruna Shanbaug Case (2011):** SC allowed passive euthanasia for a patient in a **permanent vegetative state**, establishing judicial recognition of the **right to die with dignity**.
- **Supreme Court Judgment (2018):** **Legalised passive euthanasia** under strict safeguards, requiring a living will and judicial oversight.
- **Active Euthanasia:** Remains illegal; considered an offence under IPC (**Sections 302/304**) due to **ethical** and **societal concerns**.

Implications of Euthanasia for the Right to Die with Dignity

- **Patient Autonomy:** Recognising euthanasia upholds patient choice in end-of-life decisions.

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- **Alleviation of Suffering:** It allows terminally ill patients to avoid prolonged pain and undignified death.
- **Judicial Recognition:** Supreme Court rulings (**Aruna Shanbaug 2011**, **2018**) affirm the right to die with dignity under **Article 21**.
- **Ethical Safeguards:** Legal frameworks and judicial oversight prevent misuse while protecting human dignity.

Conclusion

- Supreme Court 2018 recognition of passive euthanasia enables **compassionate end-of-life care**, while active euthanasia awaits ethical review. Government **palliative care** and **awareness initiatives** promise informed and dignified patient choices.

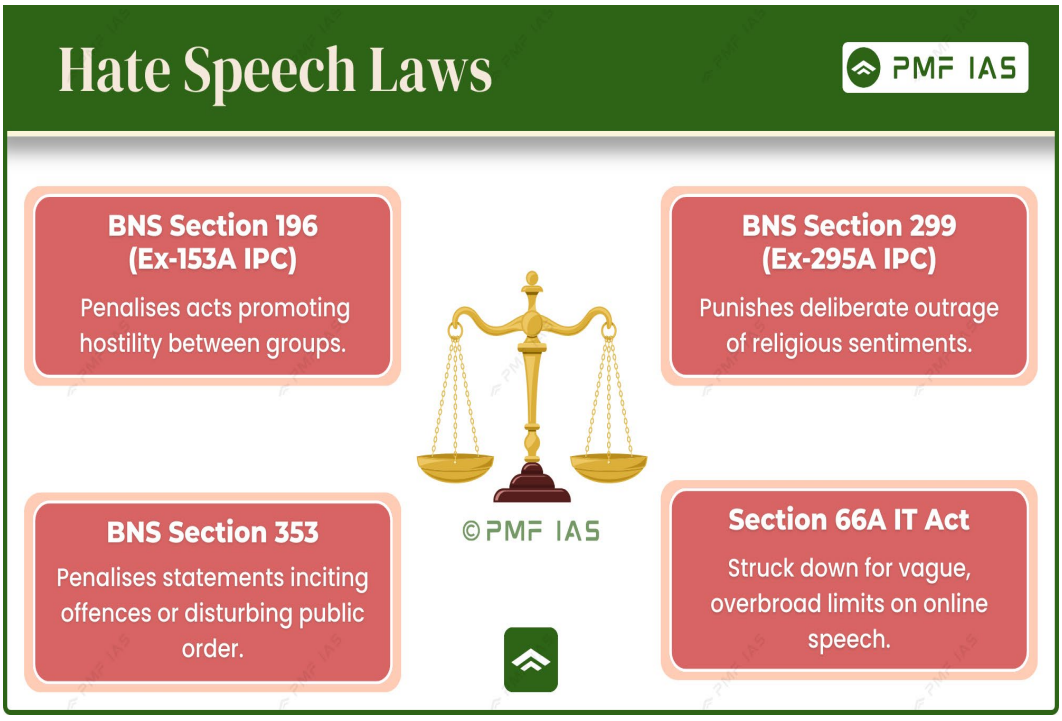
Q. Hate speech regulation in India must navigate the thin line between public order and free expression. Analyse how institutional reforms, rather than punitive overreach, can address hate speech without diluting Article 19. (150 Words) (10 Marks)

Approach

- **Introduction:** Write a brief introduction about the hate speech in India by mentioning the latest data.
- **Body:** Analyse how punitive overreach is problematic and institutional reforms can address hate speech without diluting Article 19.
- **Conclusion:** Emphasis on balanced and effective regulation prevents hate crimes in India.

Model Answer (150 Words)

- Rising incidents of hate speech in India, with **70% originating online (NCRB)**, threaten social harmony and public order, demanding nuanced regulatory reforms.



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Punitive Overreach is Problematic

- **Chilling Effect:** Vague laws like **Section 66A** led to random arrests, making people afraid to speak freely (Shreya Singhal, 2015).
- **Low Convictions:** **Only about 20%** hate speech cases end in conviction, showing many weak or unnecessary FIRs (NCRB).
- **Over-Policing:** **Over 2,000 arrests every year** burden police & courts, reducing focus on serious crimes.

Institutional Reforms to Address Hate Speech Without Diluting Article 19

- ✓ **Harm Definition:** Apply a narrow **incitement-and-harm test** to curb subjectivity and keep limits within **Article 19(2)**.
- ✓ **Independent Oversight:** Set up **autonomous nodal bodies** outside police control to ensure neutral, professional scrutiny.
- ✓ **Proportionate Response:** Use takedowns, warnings, and civil penalties before criminal law to avoid over-criminalisation.
- ✓ **Platform Governance:** **Enforce time-bound takedowns**, **transparency**, and appeals to regulate platforms, not silence speech.

Conclusion

- **Balanced hate speech regulation** protects society and rights, reflecting SC guidance: **'It is the State's sacrosanct duty to prevent hate crimes**.

-------- End of Chapter --------

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Reservation & Social Justice

{IC – Reservation} Fast-Tracking Women's Reservation **

❖ **Context (IE):** The Constitution (106th Amendment) Act, 2023 mandates one-third reservation for women, but implementation is **delayed due to delimitation requirements**.

Provisions of the 106th Amendment Act, 2023

- **Women Reservation:** Reserves **33% seats for women** in the Lok Sabha & State Legislative Assemblies.
- **SC/ST Seats:** Within the reserved quota, one-third of the seats reserved for SCs/STs are also reserved for women of those categories.
- **Rotation of Seats:** Reserved seats for women will be **rotated periodically** across constituencies.
- **Conditional Implementation:** Reservation will come into effect only after delimitation based on the first Census conducted after 2026.
- **Duration:** The reservation is initially valid for **15 years**, but Parliament can extend it further.
- Inserts provisions under Articles **330A**, **332A**, and **334A** to operationalise women's reservation.

Causes of Delayed Implementation

➢ **Census:** Implementation is linked to the next Census (post-2026), which is yet to be conducted.
➢ **Delimitation:** Redrawing of constituencies (delimitation) is necessary and takes several years after the Census data is available.
➢ **Constitutional Freeze:** The Constitution freezes seat allocation among states until after the Census.
➢ **Administrative & Political Challenges:** The complexities of balancing representation and managing political concerns further delay implementation.

Proposed Solution: Proportional Representation

- **Hybrid System:** Retain existing constituencies while adding extra seats reserved for women without creating new constituencies.
- **Vote Share Allocation:** Allocate additional seats to parties in proportion to their vote share, ensuring fair representation.
- **Party Nomination:** Political parties nominate women candidates from pre-declared lists, enabling immediate implementation without delimitation.

⇨ ***Proportional Representation (PR)*** *is an electoral system in which seats are allocated to parties based on their share of the total votes.*
⇨ *It ensures that representation in the legislature closely reflects the overall vote share of each party.*

Advantages of the Proposal

✓ **Immediate Implementation:** It can be implemented without waiting for Census or delimitation.
✓ **Cost Efficiency:** No need for new elections or constituencies; zero additional electoral cost.
✓ **Reflects Voter Mandate:** Seat allocation based on vote share ensures proportional representation.

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✓ **Reduces Barriers for Women:** Minimises financial and structural challenges faced by women candidates.

{IC – Reservation} Telangana 1st state to implement SC sub-categorisation

❖ **Telangana** becomes **1st state** to implement **SC sub-categorisation**, popularly called reservation within reservation. According to the notification, Scheduled Castes in the state will be divided into three categories – **Group I, II and III**.

- SC categorisation will be implemented in Telangana in **employment** and **education**.

What is SC Sub-Categorisation?

- **Definition:** SC Sub-Categorisation refers to the idea of dividing the Scheduled Castes (SCS) into sub-groups to ensure fairer distribution of reservation benefits among all SCS.
- **Aim:** Sub-categorising SCS aims to correct the imbalance/inequalities by reserving specific shares of benefits for smaller, less-represented Dalit communities.

Cases Related to SC Sub-Categorisation

- **E.V. Chinnaiah v State of Andhra Pradesh (2004):** The SC invalidated the Andhra Pradesh Scheduled Castes (Rationalisation of Reservations) Act 2000, which attempted to SC Sub-Categorisation.
  - ❖ Held that Scheduled Castes form a single class and cannot be subdivided. It stated that sub-classification would interfere with the **Presidential list (Article 341)** & violate Article 14 of the constitution.
    - Article 341 gives power to the President to specify castes, races or tribes that will be classified as 'Scheduled Castes' under the Constitution.
- **Jarnail Singh v. Lachhmi Narain Gupta Case (2018):** The Court held that the concept of the creamy layer would apply to SCs and STs for the purpose of promotions.
- **State of Punjab vs Davinder Singh (2024):** A 7-judge Constitution Bench upheld the validity of sub-classification within Scheduled Caste categories with a 6:1 majority.
  - ❖ The SC held that sub-classification within SCs is permissible under **Articles 14, 15** and **16** of the Constitution of India, provided that the class is not homogenous for the purpose of the law.

Need of Sub-Categorisation

- **Disproportionate Share in Opportunities:** A few dominant SC communities have received a disproportionately large share of the benefits meant for all SCs.
- **Address Inequalities Among Scheduled Caste Communities:** Many smaller or more marginalized SC groups are left out, with minimal access to education, jobs, and political representation.
- **Overcoming Hierarchy within Scheduled Castes:** The SC category is not homogenous and comprises a wide range of communities with distinct cultural, social, and economic characteristics.

Possible Challenges

➢ **Administrative Complexity:** Categorising SC communities into sub-groups involves complex procedures. Variations in caste names and identities across regions can lead to confusion and disputes.

➢ **Lack of Reliable and Updated Data:** The absence of comprehensive, caste-wise data on socio-economic indicators makes it difficult to decide who should get how much.

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- ❖ The last caste census was conducted in 1931, and the **Socio-Economic and Caste Census (SECC) 2011** data was never fully released.

➢ **Political and Social Tensions:** Dominant SC communities may oppose the division of reservation benefits. Sub-categorisation might create internal divisions and **inter-caste conflicts** within Dalit groups.

➢ **Demands from Other States:** Telangana's move may encourage similar demands in other states, putting pressure on state and central governments. This could lead to the fragmentation of reservation politics and increased **regional disparities**.

Way Forward

✓ **Conduct a Nationwide Caste-Based Survey:** Initiate a scientific, updated, and comprehensive caste-based census or survey. Use the data as a foundation for evidence-based policy-making.

✓ **Establish Review Mechanisms:** Set up state-level and national-level commissions to periodically review sub-categorisation. These bodies should recommend adjustments in **sub-quotas** based on updated socio-economic conditions.

✓ **Frame Uniform Guidelines at the National Level:** The central government could consider enabling legislation to guide sub-categorisation efforts across states. This would ensure constitutional consistency, avoid legal disputes, and maintain a unified approach.

{IC – Reservation} Extending the Creamy Layer to SC/STs *

- **Context (TH):** The Supreme Court is hearing a plea to extend creamy layer rules to SC/ST reservations to **ensure equitable benefit distribution** among subgroups.

About the Creamy Layer

- The creamy layer **excludes socially** and **economically advanced** members from reservation benefits.
- **Policy Purpose:** It **prevents dominant subgroups** from monopolising affirmative action advantages.
- **Current Scope:** No creamy layer provision applies to SC/ST reservations; **only to OBCs**.
- **Legal Basis:** **Indra Sawhney case (1992)** established the principle for efficient affirmative actions.
- **State Authority:** **States** can frame the **OBC creamy layer criteria** within their respective jurisdictions.

Need for Extending the Creamy Layer to SC/STs

- Economic prioritisation within caste groups **fosters equity** without eroding caste-based justice.
- **Prevent Concentration:** Exclusion stops affluent SC/ST families from **monopolising quota benefits**.
- **Substantive Equality:** Prioritising the poorest households **enables genuine** socio-economic upliftment.
- **Reduce Inequality:** Redistribution **addresses internal economic disparities** within SC/ST categories.
- **Improve Efficiency:** Targeting genuine need **ensures optimal use** of limited policy resources.
- **Build Legitimacy:** Transparent allocation increases **public trust in reservation policies**.

Key Challenges for Extending the Creamy Layer

- Designing exclusion in affirmative action risks unsettling hard-earned constitutional balances.
- **Persistent Barriers:** Caste-based **discrimination remains prevalent** despite economic mobility.
- **Legal Risk:** Lacking a constitutional mandate could weaken affirmative action's protective framework.

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- **Design Challenge:** Creating creamy layer criteria for uniform nationwide application remains challenging.
- **Social Division:** Exclusion risks **fuelling resentment and fragmentation** within SC/ST communities.
- **Political Backlash:** Dominant subgroups may resist reforms, threatening policy stability.

Judicial Landmarks on Creamy Layer and Sub-Classification

Evolving jurisprudence reflects a shift from homogeneity to intra-group equity in reservations.

- **Indra Sawhney (1992):** Introduced the **creamy layer principle for OBC** reservations only.
- **E.V. Chinnaiah (2005):** Held SCs homogeneous, disallowing **internal sub-classification** for reservations.
- **Jarnail Singh (2018):** Extended the creamy layer principle to **SC/ST promotion-related reservations**.
- **Davinder Singh (2024):** Upheld **sub-classification within SC/STs** to ensure equitable benefit.
- **Ramashankar Prajapati (2025):** Issued notice to Centre on proposed **SC/ST creamy layer mechanism**.

Way Forward

- ✓ Sustainable reservation reform demands data, consensus, and constitutional foresight.
- ✓ **Expert Panel:** Constitute a committee **to design SC/ST-specific creamy layer** criteria.
- ✓ **Data Framework:** Create a **socio-economic database** to inform equitable reservation distribution.
- ✓ **Legal Backing:** Amend the Constitution, **permitting economic screening** within SC/ST reservations.
- ✓ **Stakeholder Dialogue:** Engage communities to **build consensus** and **avoid policy resistance**.
- ✓ **Review Mechanism:** Periodically reassess criteria to **maintain fairness and policy effectiveness**.

-------- End of Chapter --------

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Judiciary & Justice Delivery

{IC – Judiciary} Access to Justice in India *

❖ **Context (LC | N18):** CJI Surya Kant stressed the **gaps in justice delivery** and **inaugurated Phase III** of the e-Courts Project to digitally transform India's judiciary.

- CJI highlighted the gap between legal entitlements and the lived reality of citizens.

Issues with the Justice System in India

➢ **Triple Barrier:** "**Distance**, **delay**, and **implementation gaps**" are the **three primary factors** preventing rights from reaching those most in need.

➢ **Pendency:** Over **5+ crore cases** pending across courts, with **~85% in subordinate courts**, indicating a systemic backlog crisis.

➢ **Vacancies:** India Justice Report 2025 highlights **5,600+ judicial vacancies**, with ~33% in High Courts.

➢ **Low Judge Strength:** Only **~15 judges per 10 lakh population** (IJR), compared to the recommended 50 judges by the Law Commission.

❖ Strength is **~22 judges per 10 lakh** using the 2011 Census & the total sanctioned number of judges.

➢ **Undertrial Crisis:****76% of prisoners** are **undertrials**, indicating delays in the delivery of criminal justice.

➢ **Procedural Delays:** Frequent adjournments, complex procedures, and weak case management slow adjudication.

e-Court Project

- The e-Courts Project is a flagship initiative of the Supreme Court to digitise and modernise the judiciary.
- **Launch:** It was launched in **2005** under the National e-Governance Plan to improve judicial efficiency.
- **Objective:** Aims to enhance access to justice, reduce delays, & bring transparency through technology.
- **Phase Evolution:**
  - ❖ **Phase I** focused on **computerisation**,
  - ❖ **Phase II** expanded **e-services**, and
  - ❖ **Phase III** emphasises **citizen-centric digital transformation**.
- **Key Features:** Includes e-filing, virtual hearings, **National Judicial Data Grid** and **online case tracking**.
- **eSewa Kendras:** Facilitation centres assist citizens in accessing digital court services, especially those who are digitally excluded.
- **Integration:** Links courts with **e-Prisons**, **police**, and other systems for seamless justice delivery.

Government & Supreme Court Initiatives

- **Tele-Law Programme:** Provides legal advice to **rural** and **marginalised populations** through **Common Service Centres** (CSCs).
- **Nyaya Bandhu:** Connects eligible beneficiaries with volunteer lawyers for **Pro Bono legal assistance**.
- **eSewa Kendras:** Facilitation centres established in courts to assist citizens with digital services like e-filing and case tracking.

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- **Fast Track Courts:** Special courts to expedite cases related to heinous crimes, especially against women and children.
- **National Legal Services Authority (NALSA):** Provides **free legal aid**, **Lok Adalats**, and **awareness programmes** for weaker sections.
- **National Judicial Data Grid (NJDG):** A **digital platform** providing **real-time data on case pendency** to enhance transparency and policy planning.

Measures to Increase Access to Justice in India

- ✓ **Reducing Pendency:** Strengthening the judge-to-population ratio (from ~15/Million) and **fast-track courts** to address the overburdened judiciary and case backlog.
- ✓ **Digital Transformation:** Expanding the e-Courts Project, e-filing, and virtual hearings to improve efficiency and accessibility (**e-Sewa Kendras** for digital-divide bridging).
- ✓ **Alternative Dispute Resolution (ADR):** Promoting **mediation**, **arbitration**, and **Lok Adalats**(**~10.5 crore cases** settled through Lok Adalat in 2025) to reduce litigation burden on courts.
- ✓ **Access to Legal Aid:** Enhancing legal aid through the **NALSA** and outreach mechanisms (**Tele-Law**, **Nyaya Bandhu**, **Para Legal Volunteers**) for vulnerable groups.
- ✓ **Judicial Infrastructure:** Improving court infrastructure, especially in rural and remote areas (**Gram Nyayalayas**), for better service delivery.
- ✓ **Transparency & Accountability:** Reforms like live streaming of proceedings and the National Judicial Data (BNS, BNSS, BSA, 2023 recognise **electronic evidence** and **video trials**.

{IC – Judiciary} Judicial Pendency in India **

❖ **Context (TH):** The Supreme Court's pendency has surged to an **unprecedented 93,676 cases**, highlighting structural inefficiencies and an urgent need for judicial reforms.

Trends of Case Pendency

- **High Pendency Burden:** The Supreme Court is grappling with a backlog of 93,676 pending cases, reflecting continued pressure on judicial capacity.
- **Case Composition:** Civil cases constitute 77.6% of total pendency, whereas criminal cases account for 22.4%, indicating that civil litigation remains the principal contributor to the Court's docket.
- **Lower CCR:** In **2025**, the Supreme Court received a record **75,414 fresh cases**, while disposing of **65,536 cases**—the **highest annual disposal in the last five years**. However, as filings outpaced disposals, the **Case Clearance Rate (CCR) declined to 86.9%**, contributing to rising pendency.
- **Total pending cases:** About 5.5 Crore.
- **Court-wise Distribution:** District & Subordinate Courts account for about 4.9 crore cases, **High Courts about 64 lakh cases**, and the **Supreme Court about 93,676 cases.**

Drivers of Case Backlog

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- **Lower Ratio:** India's **judge-population ratio at 21 per million** remains critically low against the Law Commission's **50/million benchmark**, severely constraining judicial throughput.
- **Special Leave Petitions:** **Article 136's** unchecked use floods the Court with routine appeals, diverting focus from core constitutional interpretation to error-correction.
- **Govt. Litigation:** As the **largest litigant** (**~50% of cases**), the government adds avoidable burden — often contesting even when liability or precedent is clear.
- **Procedural Inertia:** Frequent adjournments, no statutory timelines, and paper-based workflows slow resolution across all court levels, compounding backlog.
- **Vacancy Burden:** Over 5,600 judicial vacancies, including 30% in High Courts, escalate unresolved cases upward, & increase the Supreme Court's burden.

Impacts of Case Pendency

- **Delayed Justice:** Prolonged trials deny timely relief to victims, weakening **deterrence and eroding public trust** in judicial credibility.
- **Constitutional Erosion:** The Supreme Court's constitutional role has declined, with five-judge benches hearing **only 0.12%** of cases today, compared to **15.5% in the 1950s**.
- **Prison Crisis:** Overcrowding is exacerbated as 76% of prisoners are undertrials, violating their fundamental right to a speedy trial under **Article 21**.
- **Economic Burden:** Delayed contract enforcement heightens business uncertainty, **increases litigation costs**, and adversely impacts India's investment climate.
- **Regional Inequity:** Growing pendency increases prohibitive costs, discourages appeals from distant states and reinforces unequal geographic access to justice.

Way Forward

- ✓ **Cassation Benches:** Implement Law Commission's **229th Report** by creating **four Cassation Benches** in metro cities to decentralise justice and reduce the Supreme Court's appellate burden.
- ✓ **Judge Strength:** Raise judge strength to **50 per million** and urgently fill **over 5,600 vacancies** to enhance lower court efficiency and reduce appeal inflow.
- ✓ **AIJS Reform:** Introduce the All-India Judicial Service to ensure transparent, merit-based recruitment and address subordinate judiciary vacancies across states.
- ✓ **Digital Courts:** Scale up e-Courts Mission Mode Project with AI-driven platforms like**SUPACE (Supreme Court Portal for Assistance in Court Efficiency)** for efficient case tracking, listing, and disposal.
- ✓ **Case Filters:** Emulates global practices like **U.S. certiorari, Canada's leave to appeal**, or **South Africa's bifurcated apex system** to prioritise Supreme Court hearings for nationally significant matters.

Read More>*Judicial Pendency in India*

{IC – Judiciary} Enhancing Alternative Dispute Resolution in India

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- **Context (TH):** Amid over **5.5 crore pending cases (NJDG, 2026)**, ADR mechanisms such as arbitration, mediation, and Lok Adalats are seen as essential for faster and inclusive justice delivery.

ADR (Alternative Dispute Resolution)

- **About:**ADR refers to mechanisms for **resolving disputes outside traditional courts**, using methods such as **arbitration**, **conciliation**, **mediation**, **negotiation**, and **Lok Adalat**.
  - To ensure speedy, cost-effective, and **participatory justice** aligned with **Article 39A** of the Constitution (**equal access to justice**).
- **Statutory Basis**
  - Recognised under **Section 89** of the **Civil Procedure Code (CPC), 1908**.
  - Governed primarily by the **Arbitration and Conciliation Act, 1996** (amended 2021).
  - Supported by the **Legal Services Authorities Act, 1987** (for Lok Adalats).
  - **The Mediation Act, 2023**, provides a legal framework for mediation.

Need for Strengthening ADR in India

- **Case Pendency:** Over **5.5 crore cases** pending; High Courts face a **33% vacancy rate**.
- **Constitutional Backing:** **Article 39A** ensures equal justice and **free legal aid**.
- **Efficiency:** The Arbitration & Conciliation (Amendment) Act, 2021, mandates resolution **within 180 days**.
- **Social Cohesion:** Mediation fosters harmony, aligns with **Gandhian principles of reconciliation**.

Challenges in Strengthening ADR in India

- **Awareness Deficit:**Many citizens and **small businesses** prefer litigation due to limited awareness of ADR benefits. E.g., **over 70% of civil disputes** still enter regular courts.
- **Institutional Gaps:**India **lacks adequate mediation centres** and **trained professionals** for large-scale dispute resolution. E.g., mediation infrastructure remains uneven across states.
- **Enforcement Concerns:**Delays in **enforcing arbitral awards** reduce confidence in ADR outcomes. E.g., **frequent court** challenges under the **Arbitration Act**.

Way Forward

- **Institutionalisation of ADR:** Establish a **National Mediation Authority for Standardisation** as recommended by **Justice B.N. Srikrishna Committee (2017)**.
- **ADR Education:** Integrate ADR techniques into judicial academies and law schools to promote a pre-litigation mediation culture. E.g., the **UK Judicial College** conducts **certified mediation modules** for judges.
- **Leverage Technology:** Justice **A.K. Sikri Committee (2020)** on ODR (Online Dispute Resolution) recommended a **standard framework for online mediation** and data governance.
- **Inclusive Dispute Resolution:** **Gram Nyayalayas Scheme (2008)** provides mobile village courts designed for quick, affordable justice. E.g. **Rwanda's Gacaca Courts** resolving 90% of rural disputes locally.

Read More >*Arbitration*, *Mediation*, *Judicial Reforms in India*

{IC – Judiciary} Reforming Judicial Appointments in India *

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❖ **Context (IE | TPIE):**Huge cash discovery at Justice Varma's residence has reignited debate on judicial appointments & SC's 2015 decision to strike down National Judicial Appointments Commission (NJAC).

Constitutional Provisions for Judicial Appointments

- **Article 124:** Establishes the **Supreme Court** and outlines the **appointment process** for judges.
- **Article 124(2):** Judges are appointed by the President in consultation with the Chief Justice of India (CJI) and other judges as necessary.
- **Article 217:** Governs the **appointment of High Court judges** by the President in consultation with the CJI, Governor of the state, and Chief Justice of the concerned High Court.

Evolution of Judicial Appointment Process

- **Article 50 of the Constitution:** Mandates the separation of the judiciary from the executive under Directive Principles of State Policy (DPSP).
- **Early Years (1950s-1970s):** Executive dominance in judicial appointments, with the President acting on ministerial advice.
- **1970s Political Influence:** Indira Gandhi's govt superseded senior judges, raising concerns about judicial independence.

Evolution of the Collegium System

- **First Judges Case (1981):**
  - ❖ SC held that the CJI does not have primacy over the opinion of the Chief Justice of the HC in the matter of appointment and transfer of judges.
  - ❖ The **CJI and Chief Justice of the HC** are **equally important** in the **consultation process**.
  - ❖ Held that "**consultation" did not mean "concurrence**," giving the executive the final say.
- **Second Judges Case (1993):**
  - ❖ SC overruled the First Judge Case and held that the **CJI** has the **greatest significance** in **appointing and transferring judges**.
  - ❖ The **Chief Justice of the HC must consult the CJI** before recommending to the government.
  - ❖ Established the **Collegium System**, transferring appointment power to the judiciary.

Collegium System

- It is the system by which judges are **appointed** and **transferred by other judges**.

Composition

- **Supreme Court Collegium:** CJI + four senior-most Supreme Court judges.
- **High Court Collegium:** Chief Justice of the High Court + **two** senior-most High Court judges.

Process

- Collegium recommends appointments and transfers.
- The names for **appointments by the HC collegium** reach the government **only after CJI and SC collegium approval.** The government can return the name for reconsideration.

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- **Law Ministry can raise objections** but must notify appointments if the Collegium reiterates its choice. Govt's role is limited to conducting an inquiry through the **Intelligence Bureau (IB).**

Criticism

- ❖ **Opaque and Unaccountable:** No formal records or transparency in decision-making.
- ❖ **Favouritism and Nepotism:** Risk of judicial appointments based on personal networks.
- ❖ **Not Constitutionally Mandated:** The system emerged from judicial rulings, not legislative or constitutional provisions.
- ❖ **Limited Participation:** Critics view the collegium as a closed judges' group with no input from stakeholders like the executive, legislature, bar, or public in judge appointments.
- ❖ **Lack of Oversight:** Accountability, review, and grievance redressal mechanisms are absent in the collegium system, with no room for judicial review of its decisions.

- **Third Judges Case (1998):**
  - ❖ SC held that the **recommendation without consultation of the collegium by the CJI** for the appointment of SC and HC judges is **not binding on the government**.
  - ❖ Expanded the Collegium to five judges, reinforcing judicial primacy.
- **Fourth Judges Case (2015):**
  - ❖ SC **upheld the primacy of the collegium**.
  - ❖ The NJAC Act was struck down with a **4:1 majority in 2015** as unconstitutional.
    - **Dissenting View (Justice Chinamasa):**Criticized collegium secrecy & favored transparent NJAC.

National Judicial Appointments Commission (NJAC)

- **Proposed by:** Justice M.N. Venkatachaliah Commission in 2000.
- **Established by99th Constitution Amendment Act, 2014** under **NJAC Act, 2014**.

Composition

- CJI (Chairperson) + 2 senior-most Supreme Court judges.
- Union Minister of Law and Justice.
- **2 eminent persons** (non-judicial members) from civil society,nominated jointly by the Prime Minister, the Chief Justice of India and the Leader of the Opposition.
- **Veto Power:** Any two NJAC members could reject a recommendation.

Significance of NJAC

- **Balanced Power Structure:** Ensures judiciary, executive, and civil society participation.
- **Transparency & Accountability:** A multi-stakeholder model reduces opacity, aligning with ARC's support for participatory appointments.
- **Checks Nepotism:** Ends the judges-only selection process, addressing favoritism concerns flagged by the Law Commission's 230th Report.
- **Public Trust & Legitimacy:** A diverse appointment body enhances public confidence, as advocated by CPR and ARC-II.
- **International Best Practices:** Aligns with judicial appointment models in other democracies.

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- ❖ **United Kingdom:Judicial Appointments Commission** with a mix of judges, legal professionals and lay members.
- ❖ **South Africa:Judicial Service Commission** advises the President, including members from the executive, legislature, and judiciary.
- ❖ **France:High Council of the Judiciary** manages appointments with Minister of Justice input.

Reasons for Striking Down of NJAC (2015)

- **Threat to Judicial Independence:** Violates separation of powers and the **Doctrine of Stare Decisis**(A legal principle that requires courts to follow precedents set by higher or previous rulings in similar cases), leading to its **annulment in the 2015 SC AoR Assn. Case**.
- **Eminent Person Ambiguity:** Lacks clear criteria for selection, raising concerns over vagueness.
- **Veto Power Concerns:** Non-judicial members could undermine judicial autonomy.
- **Politicisation Risk:** Possible political affiliations of **eminent persons** could lead to executive interference.
- **Lack of Standard Operating Procedures:** Absence of clear guidelines, tie-breaking rules, and safeguards against decision-making deadlocks.
- **Basic Structure Violation:**SC viewed NJAC as **undermining judicial primacy**, a core feature of the Constitution.

Memorandum of Procedure (MoP) for the appointment of judges in India

- The MoP was formulated **after the NJAC was struck down** by the SC.
- It is an **agreement** between the **judiciary** and **government** that outlines the criteria for appointing judges to the SC and HCs.
- **MoP requires the collegium to take into account several factors:**Experience &qualifications, Integrity and character, Judicial temperament &Representation from different regions and communities.
- It requires the government to give **reasons for rejecting** a recommended name.
- The MoP is a step in the direction of ensuring the transparency and accountability of appointing judges.

Why the NJAC Needs Reconsideration?

- **Judicial Primacy Retained:**
  - ❖ NJAC still ensured judicial dominance (3 out of 6 members).
  - ❖ It proposed that the **government would be bound** by the recommendations of the **NJAC**.
  - ❖ Instead of striking it down, **modifications** could've been introduced, as suggested by **Fali Nariman**.
- **Democratic Mandate:** NJAC was passed by Parliament with overwhelming support (543 MPs, with **only one dissent**) and ratified by 16 state legislatures, showing **federal consensus**.
- **Global Comparisons:** Many democracies like the **UK** and **South Africa** involve a mix of judiciary, executive, and civil society rather than unilateral judicial control.

Possible Reforms/ Way Forward

✓ **Revisiting NJAC with Modifications:**
- ❖ **CJI's Casting Vote:** To maintain judicial primacy.
- ❖ **Removing Veto Power:** Ensuring decisions are not politically influenced.
- ❖ **Transparent Selection Criteria:** Public disclosure of selection norms.

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- ✓ **Balancing Independence and Accountability:** A hybrid system involving the judiciary, executive, and independent members.
- ✓ **Legislative Reforms:** Parliament may consider a revised framework that upholds judicial independence while ensuring transparency.
- ✓ **Collegium Reforms:Structured secretariat**, written records, and wider consultation for appointments.

Also refer to Collegium System; Reforming the Process of Judicial Appointments

{IC – Judiciary} Judicial Accountability

❖ **Context (TH):** The decision by the Chief Justice of India (CJI) to order an **in-house inquiry** against the Delhi High Court's Justice marks a significant step in ensuring judicial accountability and transparency.

What was the Case?

- **Discovery of Burnt Cash:** During a fire incident at one of the Delhi High Court's Justice's residences, charred currency notes were reportedly found in an outhouse storeroom.
- **Supreme Court's Response:**
  - ❖ **Preliminary Report and Response:** A report was obtained from the Delhi High Court Chief Justice, along with a response from the alleged Justice.
  - ❖ **Transfer:**Justice has been **relieved of judicial duties** pending the inquiry and steps were initiated to send him back to Allahabad High Court, his parent court.
  - ❖ **Three-Judge Inquiry Panel:** To probe the matter.
  - ❖ **Transparency:**Crucial documents such as photographs of the burnt notes, Delhi HC Chief Justice's report, and the alleged Justice's reply, made publicly accessible on the Supreme Court website.

Judicial Accountability

- **Judicial accountability:** Refers to the responsibility of judges and judiciary to uphold ethical standards, ensure transparency, and remain answerable to the Constitution, laws, and the people.
- The above case has renewed discussions on **judicial accountability vs. judicial independence**.
  - ❖ While an in-house inquiry upholds **institutional autonomy**, critics argue that a full-fledged police investigation would provide a clearer picture.

Need for Judicial Accountability

- **Ensuring Public Trust:** The judiciary is the **guardian of constitutional rights and justice**. Any perception of bias, corruption, or inefficiency can erode public confidence.
- **Preventing Judicial Misconduct:** Cases of judicial corruption, nepotism, and unethical behaviour necessitate strict accountability mechanisms.
- **Balancing Judicial Independence and Responsibility:** While judges must be free from external pressures, they should also be accountable for their decisions and conduct.
- **Lack of External Oversight:** Unlike the executive and legislature, the judiciary regulates itself, leading to concerns over transparency.

Mechanisms of Judicial Accountability in India

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- **Constitutional Provisions:** **Article 124(4)** and **Article 218** provide the legal basis for removing Judges of the Supreme Court and High Court, respectively.
- **In-House Mechanism:** The SC has an internal process to investigate allegations against judges.
- **Judicial Standards and Accountability Bill (Proposed, 2010):** Aimed to establish a framework for judicial ethics and complaints.
  - ❖ A **Judicial Oversight Committee** was proposed but was not passed due to concerns over judicial independence.
- **Role of SC:** The judiciary often takes **serious cognisance** of irregularities. **Veeraswami v. Union of India** (1991) ruled that judges can be investigated for corruption but **only with the CJI's approval**.

Challenges in Judicial Accountability

- ➢ **Difficult Impeachment Process:** **No judge** has ever been **removed** through impeachment due to political and procedural hurdles.
- ➢ **Limited Transparency:** Internal inquiries lack public disclosure, making it difficult to ensure fair scrutiny.
- ➢ **Resistance to External Oversight:** Judges argue that external bodies (such as the executive) could undermine judicial independence.
- ➢ **Lack of a Formal Complaint Mechanism:** No structured legal process for citizens to file complaints against judicial misconduct.

Way Forward

- ✓ **Strengthening Internal Accountability:** Implement clearer guidelines for in-house probes with public disclosure of findings.
- ✓ **Clear Guidelines for Investigations:** A structured protocol for handling allegations against judges, involving limited police involvement under judicial supervision, could enhance credibility.
- ✓ **Independent Oversight Body:** A **Judicial Complaints Commission** with representation from judges, legal experts, and civil society can ensure fair scrutiny.
- ✓ **Reforming the Impeachment Process:** Simplifying procedures while maintaining checks and balances can make impeachment more effective.
- ✓ **Encouraging Transparency:** Mandating regular disclosures of assets and a code of conduct for judges can enhance accountability.

{IC – Judiciary} Diversity in the Indian Judiciary *

- ❖ **Context (TH):** A recently introduced private member's Bill seeks to amend the Constitution to **enable judicial diversity** and establish **regional Supreme Court benches**.
- Judicial diversity entails the **representation of various social**, **gender**, and **regional groups** within the court system to enhance the legitimacy of legal interpretations.

Current Status of Representation in the Indian Judiciary

- **Gender Disparity:** The Supreme Court has **only one woman judge** (Justice B.V. Nagarathna), and women constitute **roughly 13-14%** of High Court judges nationwide.
- **Caste Dominance:** Almost **77% of High Court appointees** since 2018 are from **general/upper castes**.

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- **Marginalised Communities:** **OBCs** secured about **12%** of higher court appointments during this period, while **SCs** and **STs** made up roughly **3%** and **2%** respectively.
- **Religious Minorities:** In recent years, **religious minorities** have represented **approximately 5%** of judges appointed to the higher judiciary.

Need for Diversity in the Judiciary

- **Jurisprudential Enrichment:** Judges from diverse backgrounds **enable more empathetic judgments** in gender justice and discrimination cases.
- **Institutional Legitimacy:** A judiciary that reflects demographic realities strengthens **public confidence** in constitutional adjudication.
- **Constitutional Morality:** An inclusive composition operationalises **equality principles** under **Articles 14** and **15** within the institutional structure.
- **Historical Redress:** Adequate representation **corrects the historical exclusion** of marginalised communities from legal decision-making.
- **Role-Model Effect:** Diversity in apex courts **inspires first-generation lawyers** and **breaks the "glass ceiling"** in a male-dominated profession.

Constitutional and Legal Framework

- **Constitutional Provisions:** **Article 124** and **Article 217** govern appointments to the Supreme Court and High Courts, respectively, but neither mandates demographic reservations.
- **Procedural Guidelines:** The **Memorandum of Procedure** (**MoP**) guides **executive-judiciary appointments**, but Union Government requests for diversity are strictly advisory.
- **State Innovations:** State Governments and High Courts oversee **district judiciary appointments** (**Article 233**), enabling states like **Goa** and **Rajasthan** to implement affirmative action.
- **Legal Aid:** The **Legal Services Authorities Act, 1987**, makes nearly 80%eligible for aid, yet limited bench diversity perpetuates socio-cultural gaps.

Systemic Challenges and Barriers to Diversity

- **Leaking Pipeline:** Women leave mid-career due to **caregiving burdens** and **inadequate institutional support**, limiting eligibility for higher courts.
- **Collegium Opacity:** The absence of demographic guidelines and public disclosure perpetuates elite networks in judicial appointments.
- **Informal Elitism:** **Nepotism** and **entrenched patriarchal norms** subject women and first-generation practitioners to systemic bias.
- **Absence of Quotas:** The higher judiciary **lacks a reservation framework**, unlike many subordinate courts.
- **Infrastructure Deficit:** Inadequate facilities, such as creches and safe retiring rooms, **hinder women's sustained participation**.
- **Eligibility Constraints:** A **seven-year practice** requirement and a 35–45 age bracket disadvantage women candidates for higher judicial recruitment.

Way Forward

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- ✓ **Diversity Metrics:** Amend the MoP to include **measurable diversity targets** and mandatory **demographic audits** for all judicial appointments.
- ✓ **Standardised Recruitment:** Establish the **All-India Judicial Service** (AIJS) under **Article 312** to standardise recruitment and broaden socio-economic representation.
- ✓ **Collegium Reform:** Introduce transparency by disclosing the demographic rationale or consider restructuring the judicial commission.
- ✓ **Infrastructure Upgrades:** Allocate dedicated funds for **gender-friendly court facilities** and **mandate ongoing anti-bias training**.
- ✓ **Mentorship Programmes:** High Courts and Bar Associations should institutionalise mentorship for SC, ST, OBC, and women lawyers.
- ✓ **Regional Benches:** Establish **Regional Benches** (**Article 130**) to **democratise appellate practice** and broaden career progression pathways.

Read More >*Judicial Reforms in India*

{IC – Judiciary} Revisiting PIL Jurisdiction in India

- **Context (TH):** Public Interest Litigation, once a tool for social justice, is increasingly facing misuse, judicial overreach, and weak enforcement.

About Public Interest Litigation (PIL)

- PIL is a legal mechanism that **allows any person to approach the courts** to protect the public interest, especially on behalf of disadvantaged groups.
- Emerged in the **1970s–80s**, notably through cases like **Hussainara Khatoon v. State of Bihar**.
- **Relaxed Locus Standi:** Unlike traditional cases, third parties can file petitions on behalf of affected individuals who cannot access courts.
- Filed under **Article 32** (SC) and **Article 226** (HCs) for the enforcement of fundamental rights.
- **Scope:** Covers issues like environment, human rights, governance failures, corruption, and social justice.

> ⇨ ***Locus standi*** *is a Latin legal term meaning* ***"place to stand,"*** *referring to a party's right or capacity to bring a lawsuit or appear before a court.*

Concerns About Misuse of PIL

- ➢ **Agenda-Driven Litigation:** Many PILs are filed for publicity, political motives, or personal interest, diluting genuine cases.
- ➢ **Judicial Overreach:** Courts entertain wide-ranging policy matters, stretching PIL jurisdiction. In **M.C. Mehta cases**, courts issued wide-ranging directives affecting policy decisions.
- ➢ **Exclusion of Stakeholders:** Decisions are sometimes taken without hearing those directly impacted. **Delhi slum eviction PILs** (2000s), in which residents were not adequately represented.
- ➢ **Weak Enforcement:** Court orders in PILs often go unimplemented, reducing their effectiveness (e.g., non-compliance with police reforms laid down in the **Prakash Singh case**).

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➢ **Executive Override:** The government often neutralises PIL judgments via laws/ordinances (e.g. in the **Election Commission appointment case** (**2023**), the law altered the SC-mandated process).

Suggested Reforms in PIL Jurisprudence

✓ Strict Admissibility Filter: Introduce robust screening to curb frivolous filings (despite over **1.13 lakh PILs filed in 2021, only ~3%** reach final judgments).

✓ **Defined Locus Standi:** Restrict standing to genuine stakeholders or credible bodies, e.g., **PILs seeking renaming cities** show misuse by individuals without direct public interest.

{IC – Judiciary} AI in Judiciary **

- With massive case pendency, AI is transforming India's judiciary through **efficiency, transparency, and accessibility**, while raising ethical concerns.

Need for AI in the Judiciary

- **Case Pendency:** India has **over 5 crore pending cases**, making faster **AI-enabled case management** essential for timely justice delivery.
- **Administrative Burden:** **Manual filings**, **physical records** and **procedural delays** consume substantial judicial time, reducing focus on adjudication.
- **Infrastructure Deficit:** India's judge-population ratio remains around **21 judges per million** against the Law Commission's recommended **50 judges per million**.
- **Complex Litigation:** **Rising digital evidence**and **expanding legal precedents** require AI-assisted legal research and data analysis tools.
- **Justice Accessibility:** AI tools like **Supreme Court Vidhik Anuvaad Software** (**SUVAS**) improve multilingual access and transparency in a linguistically diverse country.

Benefits of AI in the Judiciary

- **Pendency Reduction:** With massive case pendency, AI-enabled **case management** and **smart scheduling** can significantly accelerate judicial disposal rates.
- **Research Efficiency:** **Supreme Court Portal for Assistance in Court Efficiency** (**SUPACE**) helps judges quickly identify precedents, reducing time spent on legal research.
- **Language Accessibility:** **SUVAS** translates **judgments into regional languages**, improving access to justice in multilingual India.
- **Transparent Proceedings:** AI-based real-time transcription tools like **Transcription and Real-Time Electronic Reporting System** (**TERES**) improve **courtroom transparency&create accurate digital records**.

Government Initiatives for AI in the Judiciary

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- **E-Courts Project:** Aims to digitise court processes, improve judicial efficiency and provide faster, transparent and accessible justice delivery.
- **SUPACE:** AI-based platform developed to assist judges in legal research, precedent identification and case analysis.
- **SUVAS:** AI-driven translation tool aimed at making judgments accessible in multiple regional languages.
- **National Judicial Data Grid:** Digital platform designed to monitor case pendency, court performance and judicial data across Indian courts.

Ethical Concerns

- **Judicial Independence:** **AI-assisted drafting** and **predictive analytics** may indirectly influence judicial reasoning, **threatening independent constitutional adjudication**.
- **Privacy Protection:** Use of sensitive judicial records must comply with the Digital Personal Data Protection Act, 2023, to **prevent surveillance** and **data misuse**.
- **Algorithmic Transparency:** Citizens must know **how AI affects legal outcomes**, especially after bias controversies surrounding **COMPAS sentencing software in the US**.
- **Fair Trial:** **AI-generated bail** or **sentencing assessments** may undermine due process, whereas constitutional accountability remains solely with human judges.

Challenges of AI in the Judiciary

- **Algorithmic Bias:** AI models **trained on skewed datasets** may **reinforce discrimination**, as seen in the racially **biased COMPAS system in the US**.
- **Judicial Dilution:** AI lacks **empathy and constitutional morality**, limiting its ability to handle complex human rights and equity-based cases.
- **Technical Errors:** Generative AI may **hallucinate fake citations** and **judgments**, undermining reliability and judicial integrity in court proceedings.
- **Infrastructure Gaps:** Many of India's district courts still face **poor connectivity**, **inadequate digital infrastructure** and **staff shortages**.

Way Forward for Responsible AI Integration in the Judiciary

- ✓ **Assistive AI:** With over 5 crore pending cases, AI should **aid administration** while **final judicial decisions remain exclusively human**.
- ✓ **Ethical Framework:** **Transparent & explainable AI systems** are essential to prevent biases like those witnessed in the **COMPA S risk-assessment software**.
- ✓ **Data Protection:** AI deployment must comply with the Digital Personal Data Protection Act, 2023, to secure sensitive judicial records and citizen privacy.
- ✓ **Digital Capacity:** **Expansion of e-Courts Phase III** and **AI training** for judges can improve efficiency in district courts.

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✓ **Human-Centricity:** **Constitutional morality, empathy and judicial accountability** must guide AI integration, since justice involves human consequences beyond algorithms.

{IC – Judiciary} Death Penalty Sentencing *

❖ **Context (IE | TH):** Sanjoy Roy in **RG Kar Case**, convicted of raping & murdering a doctor, was sentenced to **life imprisonment**, following SC's **'rarest of rare' principle**, despite the push for the death penalty.

Rarest of Rare Doctrine

- **Meaning:** The "**rarest of rare**" doctrine mandates the death penalty only in exceptional cases where the crime is so heinous that no alternative punishment would suffice, emphasising the need for extreme caution and judicial scrutiny in capital punishment decisions.
- **Origin:** Introduced in **Bachan Singh v. State of Punjab (1980)**, limiting the death penalty to the *'Rarest of Rare'* cases where **life imprisonment is inadequate and reform is unlikely.**
- **Key Criteria:** Courts assess aggravating and mitigating circumstances without fixed standards, relying on outlined guidelines.

Aggravating Factors: Supporting Imposition of the Death Penalty

- **Premeditation and Brutality:** Calculated murders involving extreme cruelty.
- **Exceptional Depravity:** Actions displaying extraordinary moral corruption.
- **Targeting Public Servants:** Killing police, armed forces, & public officials on duty or due to lawful actions.

Mitigating Factors: Discouraging the Death Penalty

- **Mental or Emotional Disturbance:** Offender acted under extreme stress.
- **Age of the Accused:** Very young or very old offenders.
- **Threat to Society:** Low risk of being a continuing danger.
- **Possibility of Reform:** Potential for rehabilitation.
- **Acting Under Influence:** Directed by another or believing actions were justified.
- **Mental Impairment:** Inability to understand the criminality of actions due to mental illness.

Evolving Dimensions of "Rarest of Rare" Principle

Age of the Accused

- **Young Age as Mitigation:** Highlighted in **Ramnaresh v. State of Chhattisgarh (2012)** and **Ramesh v. State of Rajasthan (2011)**, indicating **reform potential** for young offenders.
- **Inconsistent Application:** The **262nd Law Commission Report (2015)** noted **disparity**, as in **Shankar Kisanrao Khade v. State of Maharashtra (2013)**, where age was inconsistently considered.

Nature of the Offence

- Established in **Shankar Khade**, to ensure objective application of the **"rarest of rare" doctrine**.
- **Collective Conscience:** In **Machhi Singh v. State of Punjab (1983)**, **crimes that shock societal conscience** warrant the death penalty, though this often neglects reform potential.

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Possibility of Reform

- **Bachan Singh Principle:** Presumes **against the death penalty** unless the government proves no possibility of reform.
- **Objectivity in Sentencing:** Reinforced in **Santosh Bariyar v. State of Maharashtra** (**2009**), requiring evidence to assess the offender's capacity for rehabilitation.

Sentencing Process

- **Separate Sentencing Hearing:** As per Bachan Singh, **a separate trial post-conviction** ensures fair consideration of mitigating factors.
- **Effective Hearing Timing:** Same-day hearings often lack meaningful deliberation (**Dattaraya v. State of Maharashtra, 2020**), leading to the SC's 2022 suo motu proceedings calling for standardised guidelines for death penalty sentencing.

Challenges in Sentencing

- **Inconsistent Application:** Subjectivity and judge-centric approaches in death penalty cases.
- **Weighing Mitigating Factors:** Mitigating circumstances are often overlooked due to procedural gaps.
- **Balancing Crime & Criminal:** Overemphasis on crime's brutality often sidelines the potential for reform.

Way Forward

- ✓ **Standardised Guidelines:** Uniform criteria for assessing mitigating factors to reduce subjectivity.
- ✓ **Reformative Approach:** Emphasising rehabilitation and societal reintegration over retribution.
- ✓ **Effective Sentencing Hearings:** Ensuring fair and detailed consideration of mitigating and aggravating factors during sentencing.
- ✓ **Judicial Training:** Sensitisation of judges to avoid biases and ensure equitable justice delivery.

{IC – Judiciary – Pathfinder for Mains}

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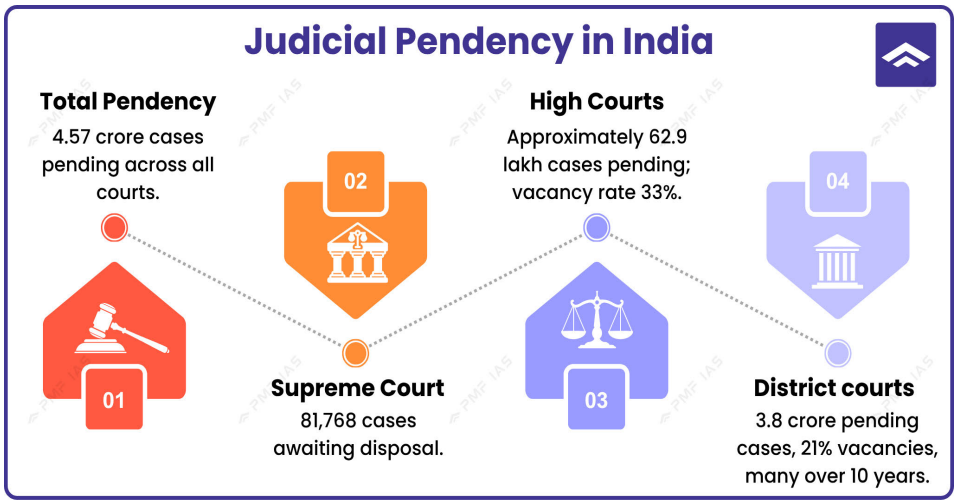
Q. Alternative Dispute Resolution embodies a transformative shift from confrontation to consensus in India's justice delivery system. Critically examine its scope, challenges, and the roadmap for effective institutionalisation. (250 Words) (15 Marks)

Approach

- **Introduction:** Write a brief introduction about Alternative Dispute Resolution (ADR) and mention the constitutional backing and pending cases.
- **Body:** Examine the scope of ADR, challenges, and the roadmap for institutionalisation of ADR for speedy, inclusive, and cost-effective justice.
- **Conclusion:** Emphasis on dispute resolution at the grassroots level for faster, more affordable, and socially inclusive.

Model Answer (250 Words)

- ADR reforms India's justice system from confrontation to consensus, ensuring speedy, inclusive, and restorative settlements, with **Article 39A** backing mechanisms like Lok Adalats, arbitration, and mediation amid **4.57 crore pending cases** (NJDG 2025).



Scope

- **Civil Resolution:** ADR efficiently resolves civil disputes. E.g., Lok Adalats settled 1,06,200 cases in 2024.
- **Commercial Arbitration:** Commercial disputes resolved under the **Arbitration Act, 2021**, with a **180-day resolution limit**.
- **Criminal Mediation:** Compoundable criminal cases utilise mediation, thereby reducing the burden on the **62.9 lakh pending** High Court cases.

Challenges

- **Low Awareness:** **Only 50%** of eligible citizens are aware of **Lok Adalats** and **ADR mechanisms** (NALSA).
- **Institutional Gaps:** Many districts lack functional **mediation centres** and **trained mediators**, limiting ADR effectiveness.

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- **State Disparities:** UP, Bihar, and Andhra Pradesh have High Court vacancy rates of **33%** and lower court vacancies of **21%,** worsening delays.
- **Implementation Delays:** Despite the 180-day resolution limit under the **Arbitration Act, 2021**, complex cases often face procedural delays.

Roadmap for Effective Institutionalisation

- ✓ **Institutionalisation:** Establish a **National Mediation Authority** for standardisation (**B.N. Srikrishna Committee, 2017**).
- ✓ **ADR Education:** Integrate mediation modules in judicial academies and law schools. E.g., the UK Judicial College trains judges in certified ADR.
- ✓ **Technology Use:** Implement an **Online Dispute Resolution** framework with standard protocols (A.K. Sikri Committee, 2020).
- ✓ **Inclusive Access:** Expand **Gram Nyayalayas** and **mobile village courts**. E.g., Rwanda's Gacaca courts resolve 90% rural disputes locally.

Conclusion

- Alternative Dispute Resolution (ADR) allows disputes to be settled efficiently at the grassroots level, saving time, cost, and preserving relationships; as aptly stated, **"When a plant is tender, you can mould it. But if a dispute goes to court, there will be difficulty in settling it."**

Q. Critically analyse the scope and relevance of the Contempt of Court jurisdiction in India. Discuss how recent controversies have reignited the debate between judicial authority and freedom of expression (250 Words) (15 Marks)

Approach

- **Introduction:** Write a brief introduction about Contempt of Court in India and its debate.
- **Body:** Analyse the scope and relevance of contempt of court, also discuss how recent controversies reignited the debate and mention a way forward.
- **Conclusion:** Emphasis on a balanced approach to uphold judicial dignity without silencing democracy.

Model Answer (250 Words)

- The Contempt of Court jurisdiction safeguards judicial authority. It ensures the smooth administration of justice, but its broad scope often clashes with the democratic right to free expression under **Article 19(1)(a)**.

Scope

- **Constitutional Power:** **Articles 129 & 215** authorise higher courts to punish contempt to uphold judicial dignity.
- **Act Framework:** The **1971 Act** (H.N. Sanyal Committee) defines civil and criminal contempt.

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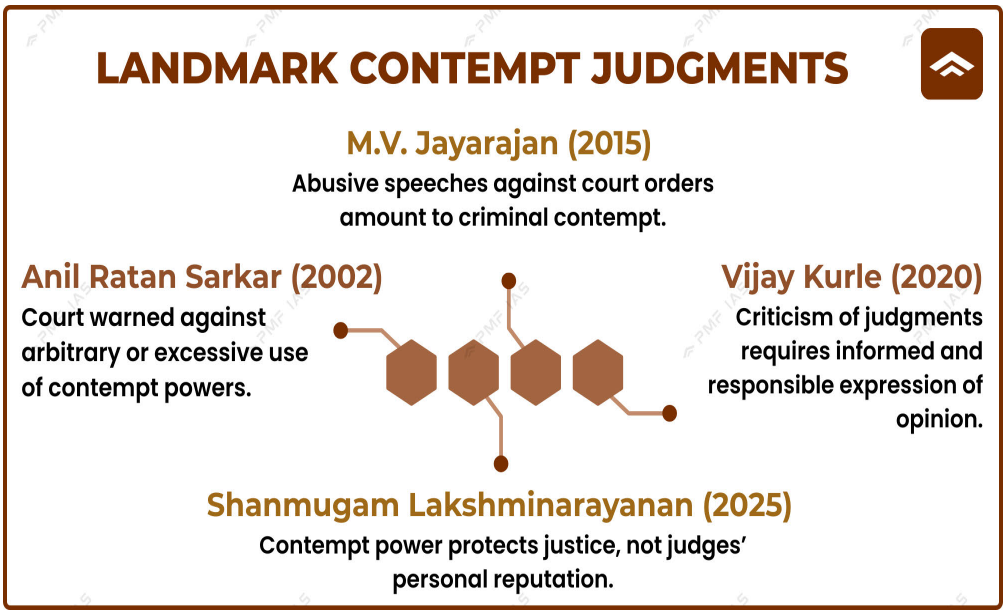
- **Narrowed Scope:** The **2006 Amendment** limits action to cases substantially interfering with justice (max 6 months jail / ₹2,000 fine).

Relevance

- **Judicial Dignity:** Upholds courts' authority and deters actions undermining judicial credibility.
- **Rule Enforcement:** Ensures compliance with judgments, reinforcing the rule of law.
- **Balanced Freedom:** The **2006 reform** curbs excesses, aligning contempt powers with **free expression**.

Recent Controversies Reignited the Debate

- **Digital Dissent:** Online criticism cases expose friction between **judicial sensitivity** and **free speech**.
- **Rights Clash:** Tension grows between **Article 19(1)(a)** freedoms and protection of court authority.
- **Reform Demand:** Calls intensify to modernise contempt laws for transparency and democratic balance.



Way Forward

- ✓ **Legal Clarity:** Amend the 1971 Act to eliminate vague terms like **"scandalising the court"** for precision and fairness.
- ✓ **Open Dialogue:** Replace punitive reactions with reasoned engagement to enhance public trust in the judiciary.
- ✓ **Speech Protection:** Distinguish fair criticism from malicious attacks to uphold freedom of expression.
- ✓ **Periodic Oversight:** Introduce a five-year review mechanism to keep contempt powers aligned with democratic values.

Conclusion

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- Contempt power is essential to **upholding judicial authority**, but it must not curb **legitimate dissent**. Reforms ensuring a balance between **"judicial dignity and democratic debate"** will strengthen both accountability and constitutional freedom.

Q. India is leveraging Artificial Intelligence to modernise its judicial system and improve access to justice. Examine the opportunities AI offers for judicial reform and the concerns associated with its adoption. (250 Words) (15 Marks)

Approach

- **Introduction:** Write a brief introduction about AI in the judiciary.
- **Body:** Write the opportunities AI offers for judicial reform, the concerns associated with its adoption and the way forward.
- **Conclusion:** Emphasis on inclusivity and ethical safeguards for the effective implementation of AI tools in the judiciary.

Model Answer (250 Words)

- Artificial Intelligence is transforming India's judiciary by **enabling faster case management**, **reducing delays**, and improving transparency and access to justice.

Judicial Opportunities

- **Pendency Reduction:** With over 5 crore pending cases, **AI-enabled case management** and **smart scheduling** can accelerate case disposal and reduce judicial backlog.
- **Administrative Efficiency:** Automation of **filing scrutiny and scheduling** reduces procedural delays and improves court productivity.
- **Legal Research:** AI tools like the **Supreme Court Portal for Assistance in Court Efficiency** (**SUPACE**) help judges **identify precedents quickly** and **enhance judgment quality**.
- **Access & Transparency:** Tools like **Supreme Court Vidhik Anuvaad Software** (**SUVAS**) and **National Judicial Data Grid** improve multilingual access, openness, and data-driven governance.

AI Concerns

- **Bias Risk:** AI trained on skewed datasets may reproduce discriminatory patterns, as seen in **COMPAS-type systems**, undermining fairness in decisions.
- **Judicial Autonomy:** Overuse of AI tools may **influence reasoning**, weakening independent judicial decision-making.
- **Privacy & Accountability:** Judicial data misuse risks arise under the Digital Personal Data Protection Act, 2023, while AI lacks legal responsibility.
- **System Limitations:** **AI hallucinations** and **weak digital infrastructure** in lower courts reduce reliability and uniform adoption.

Way Forward

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- ✓ **Assistive Use:** With **over 5 crore pending cases**, AI must support **administrative functions** while final judicial decisions remain exclusively human.
- ✓ **Ethical Framework:** **Transparent and explainable systems** are needed to prevent bias and ensure fairness in judicial processes.
- ✓ **Capacity Building:** **Expansion of e-Courts Phase III** and **training of judges** and court staff are essential for effective AI adoption in courts.
- ✓ **Human Centricity:** **Constitutional morality, empathy, and judicial accountability** must remain central to ensure technology supports, not replaces, justice.

Conclusion

- AI-driven justice must balance **efficiency, fairness, accountability**, **& human values** for sustainable reform. As Sundar Pichai said, **"AI is one of the most profound things humanity is working on."**

-------- End of Chapter --------

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Elections & Electoral Reforms

{IC – Elections} One Nation One Election: Constitutional & Democratic Concerns *

- Recently, Indonesia's experience with **simultaneous elections** has renewed global debate on electoral reforms, offering lessons as India considers the feasibility of **One Nation One Election**.

About One Nation One Election

- **Meaning:** ONOE proposes synchronising the election cycles of the **Lok Sabha and State Legislative Assemblies** so that both are conducted together.
  - **Scope:** It excludes elections to **Panchayats, municipalities, and by-elections** from the synchronised election framework.
- **Single Voting:** Voters cast their votes for **Lok Sabha and State Assembly representatives on the same day**, either in one phase or in phased elections.

Historical Background

- **Early Practice:** India held simultaneous Lok Sabha and State Assembly elections during the first four general elections (**1951–52 to 1967**).
- **Cycle Break:** Premature dissolution of several **State Assemblies** (**1968–69**) and the **Lok Sabha in 1970** disrupted the synchronised election cycle.
- **Staggered Polls:** Since then, elections have been conducted at different times across states, resulting in **frequent electoral cycles**.

Constitutional Framework and Proposed Amendments (ONOE)

- **Committee Recommendation:** The **High-Level Committee (2023–24)**, chaired by Ram Nath Kovind, proposed ONOE to synchronise elections for administrative efficiency.
- **Legislative Bill:** The proposal was formalised as the **Constitution (129th Amendment) Bill, 2024**, to align State Assembly tenures with the Lok Sabha cycle.
- **Article 82A:** Empowers the **President to notify an "appointed date"**, curtailing State Assembly terms to maintain election synchronisation.
- **Residual Elections:** Prematurely dissolved legislatures will have **new Houses serve only the remaining term**, avoiding a fresh five-year mandate.
- **ECI Power:** The **Election Commission can defer State elections** if simultaneous polls are impractical, requiring amendments to **Articles 83, 172, and 327**.

Advantages of ONOE

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- **Cost Saving:** The **Joint Parliamentary Committee (JPC)** on **One Nation, One Election (ONOE)** estimates that simultaneous elections could **save nearly 7 lakh crore** and **boost India's GDP growth by up to 1.6 percentage points** by reducing election-related disruptions and administrative costs.
- **Governance Continuity:** Reduces **MCC delays**, ensuring uninterrupted implementation of schemes like PMAY and Swachh Bharat.
- **Administrative Efficiency:** Less frequent elections ease strain on EVMs, VVPATs, and security forces. E.g., 2024 polls required 82 days of phased deployment.
- **Voter Convenience:** Single-cycle voting **simplifies participation**, especially in large states like Uttar Pradesh.
- **Turnout Boost:** Consolidated polls can **increase voter turnout** and **participation**, showing scope for improvement. E.g., 2024 multi-phase elections saw ~67%.

Constitutional and Fiscal Concerns

- ONOE aims to synchronise elections, but raises serious constitutional, governance, federal, and fiscal accountability concerns.

Democracy & Federalism

- **Parliamentary Accountability:** Fixed cycles may reduce legislative control; early-dissolution safeguards under **Articles 75, 164, 83**, and **172** could be undermined.
- **State Autonomy:** Simultaneous elections may truncate state mandates, **conflicting with federalism** (**S.R. Bommai vs Union of India, 1994**).
- **President's Rule Risk:** Synchronisation could **increase the use of Article 356**, centralise power and limit state independence.

Governance & Institutional

- **Residual Mandate:** **Unexpired-term governments** are short-lived, creating policy instability and governance gaps.
- **Voter Franchise:** **Truncated tenures** may reduce public participation& undermine electoral legitimacy.
- **Caretaker Constraints:** Union-level caretaker governments **face financial and parliamentary limits** under **Articles 112–117 and 85**.

Economic Concerns

- **Marginal Savings:** Combined elections cost ~₹4,500 crore, only 0.03% of GDP, limiting fiscal justification.
- **Resource Strain:** Simultaneous polls require additional **EVMs**, VVPATs, and **security personnel**, weakening administrative efficiency.
- **Committee Recommendation:** **Justice Kurian Joseph Committee (2026)** and the **Tamil Nadu government** advise withdrawing ONOE, focusing on **better electoral management**.

Way Forward

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- ✓ **Phased Implementation:** Gradually synchronise elections in phases by grouping states instead of implementing full ONOE at once.
- ✓ **Stability Reforms:** Introduce measures such as a constructive **vote of no confidence** (**as in Germany**) to ensure government stability.
- ✓ **Political Consensus:** Build broad agreement among **political parties and states** since ONOE affects the federal structure.
- ✓ **Institutional Safeguards:** Establish clear rules for **election deferral**, President's Rule, **and unexpired-term legislatures**.
- ✓ **Electoral Reforms:** Strengthen **campaign finance rules, transparency, and political accountability** alongside structural changes.

{IC – Elections} Criminalisation of Politics in India *

- Criminalisation of politics in India is a growing concern, as 251 MPs (46%) in the 18th Lok Sabha (2024) have declared criminal cases against themselves, compared to 162 MPs (30%) in 2009, marking a nearly 55% increase. About 31 % face serious criminal cases, including rape, murder, attempt to murder, kidnapping, and crimes against women.

Key Drivers

- **Electoral Winnability:** Parties **choose 'winnable' candidates**, ignoring criminal records.
- **Money & Muscle Power:** Candidates with criminal backgrounds often have unaccounted **wealth and musclemen networks** to finance expensive elections.
  - ❖ Link with **political funding opacity** (cash donations, misuse of electoral bonds).
- **Vote Bank Politics:** Candidates with a criminal background are perceived as **"Robin Hood figures,"** providing protection, patronage, or caste-based mobilisation that leads to identity-based voting.
- **Media Complicity:** Political control over media narratives, under-reporting of cases, and favourable coverage generate public tolerance or admiration for criminal leaders.
- **State-Crime Nexus:** Criminals use politics to gain immunity and legitimacy, while parties use them to intimidate opponents and secure votes.

Impact of Criminalisation of Politics

- ➢ **Erosion of Rule of Law:** Legislators facing charges directly undermines the constitutional principle of equality before law. It blurs the line between **law-makers** and **law-breakers**.
- ➢ **Policy Capture:** Politico-criminal nexus ensures that laws and regulations are shaped to protect vested interests rather than public welfare (e.g., mining contracts, liquor mafias in Bihar and UP).
- ➢ **Weakening of Institutions:** Criminalised leaders often interfere in police postings, bureaucratic transfers, and investigations, reducing **institutional autonomy** (Second Administrative Reforms Commission).

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- **Corruption & Black Money:** Criminal politicians fuel increased circulation of illicit money and corruption in elections.
- **Governance Deficit:** Focus on protecting personal cases, and networks diverts attention from developmental governance. E.g., states with high levels of criminal representation (Bihar, UP) often lag behind in HDI indicators.
- **Electoral Distortions:** Intimidation, booth capturing, and vote-buying distort elections. **Dinesh Goswami Committee (1990)** highlighted the role of musclemen in skewing voter choice.
- **Democratic Trust:** The entry of criminals into legislatures undermines public trust and normalises the **"bahubali culture,"** where muscle power is considered essential in politics.

Judicial & Electoral Reforms

Key Judgments

- **ADR vs Union of India (2002):** **Mandatory disclosure of criminal cases**, assets, and educational qualifications.
- **PUCL vs Union of India (2004):** Upheld **voters' right to know candidate background** as part of Article 19(1)(a).
- **Lily Thomas (2013):** Immediate **disqualification** of convicted MPs/MLAs, striking down the earlier 3-month buffer.
- **Public Interest Foundation (2018):** Directed political parties **to publicise criminal records** of candidates on websites, newspapers, and TV.

Election Commission of India (ECI) Measures

- **Affidavit disclosures** made mandatory before elections.
- Enforcement of the **Model Code of Conduct (MCC)** to curb the use of muscle/money.
- **Bans on carrying arms** near polling booths.
- **Power to cancel polls** in cases of booth capturing and malpractice.

Law Commission (2015)

- **Recommendation:** Disqualification based on framing of charges for serious offences (punishable with 5 or more years).
- **Suggested Time Limit:** Charges framed at least 1 year before nomination scrutiny.

Recent Initiatives

- **Lifetime Ban:** **Supreme Court of India** is hearing a PIL seeking a **lifetime disqualification** for convicted MPs and MLAs from contesting elections.
- **Mandatory Disclosure:** ECI requires political parties to **publicly disclose details** of candidates with criminal records and the **reasons** for their selection in polls.
  - This is mandatory at both the central and state levels.

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⇨ *Representation of the People Act, 1951 disqualifies convicted MPs/MLAs for specific offences (**Sections 8-10A**) and punishes electoral malpractices like hate speech or bribery (**Section 125**).*

Way Forward

- ✓ **Legal Reforms:** Amend the **RPA, 1951**, to bar candidates from contesting once charges are framed in serious offences (as suggested by the Law Commission, 2015).
- ✓ **Lifetime Ban:** Extend disqualification beyond six years post-conviction to a permanent bar, ensuring long-term deterrence.
- ✓ **Judicial Reforms:** Expand **Fast-Track Courts** and strictly monitor the 12 existing special courts for MPs/MLAs to reduce case pendency.
- ✓ **Electoral Reforms:** Make access to state subsidies, bonds, and media slots conditional on candidates' clean records (ECI proposal, 2022).
- ✓ **Institutional Reforms:** Ensure political party accountability, mandate **internal disciplinary committees** to screen candidates and **publish reasons** for giving tickets to tainted ones.
- ✓ **Voter-centric Reforms:** Nationwide campaigns (in local languages) to highlight the cost of electing tainted candidates.

{IC – Elections} Nationwide Special Intensive Revision (SIR) **

- The Election Commission of India assessed nationwide readiness for Special Intensive Revision (SIR) to update electoral rolls. This aims to strengthen electoral integrity and ensure accurate voter registration.

About Special Intensive Revision (SIR)

- **Meaning:** Special Intensive Revision (SIR) refers to ECI-directed **voter roll updates** in exceptional situations like mass errors, omissions, or political exigencies.
- **Objective:** It aims to correct flawed rolls, address migrant duplication, and ensure inclusive, accurate enrolment in complex electoral environments.
- **Legal Basis:** **Section 21(3)** of the **Representation of the People Act, 1950**, empowers ECI with **discretionary powers** to revise electoral rolls in any manner it deems fit.
- **Methodology:** SIR typically uses **house-to-house verification**, involving physical enumeration to validate voter identity, address, and document authenticity at the door level.
- **Prior SIRs:** SIRs were earlier conducted in **1952-2004** across multiple states. The 2025 exercise is India's first such nationwide revision in **20 years**.

Rationale for Nationwide SIR

- **Roll Synchronisation:** A **centralised revision cycle** under Nationwide SIR ensures uniformity across States and UTs, reducing procedural inconsistencies.
- **Duplicate Removal:** Nationwide SIR links voter details to **updated residence patterns**, helping prevent multiple enrolments across constituencies.

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- **Migrant Mapping:** By mapping internal migration, it helps prevent duplication and ensures voters are matched with the correct constituencies.
- **Booth Rationalisation:** SIR allows **capping polling stations** at **1,200 voters**, improving booth management & reducing travel distance in tribal & remote areas.
- **Digital Transparency:** Using the **ECINET platform** to integrate over 40 electoral tools, SIR facilitates real-time updates and enhances public trust in electoral processes.

Operational and Inclusion Challenges

- **Document Exclusion:** Voters lacking birth or citizenship documents are excluded earlier, even if they possess Aadhaar, ration cards, or voter ID.
- **Staff Constraints:** Shortage of field officers delays verification cycles. ECI faces significant Booth Level Officer vacancies nationwide.
- **Digital Access:** Portal-based verification may exclude rural voters who lack smartphones, internet access, or digital and functional literacy. Nearly 20% of rural households lack internet access.
- **Migrant Complexity:** India's ~**400 million internal migrants** complicate address mapping. This skews constituency-wise voter alignment and accuracy.
- **Awareness Deficit:** Poor outreach on deadlines and procedures reduces timely enrolment, especially among rural migrants and illiterate citizens.

Way Forward

- **Proof Expansion:** Include Aadhaar, ration cards, caste certificates, job cards, or employer verification letters as accepted proofs for migrant verification.
- **Field Reinforcement:** Recruit **additional BLOs** and equip them with **local language aides** and transport support for remote and tribal coverage.
- **Mobile Booths:** Set up **mobile enrolment units** at construction sites, industrial hubs, and railway stations where migrant density is high.
- **Awareness Outreach:** Utilise vernacular radio, community WhatsApp groups, and NGO partnerships to keep citizens informed about deadlines, documents, and appeal mechanisms.
- **Population Registry:** Adopt **Sweden's model**, where electoral rolls **auto-extract from civil databases** ahead of elections, reducing manual duplication.

Read More >*Special Intensive Revision*

{IC – Elections} Delimitation *

- Tamil Nadu CM has called for an all-party meeting to discuss the delimitation exercise, raising concerns over its impact on federalism and representation.

Delimitation

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- **Delimitation** is the process of redrawing parliamentary and assembly constituency boundaries based on population changes.
- **Historical Occurrences:** Conducted in 1952, 1963, 1973, and 2002.
- **Constitutional Basis:**
  - **Article 81** caps **Lok Sabha strength at 550** (530 from states, 20 from UTs) and mandates **uniform seat-to-population ratios** across states.
  - **Article 82** mandates **Parliament to enact a Delimitation Act** after every Census, and **Article 170** provides for the division of state constituencies.
- **42nd Amendment (1976):** Froze seat allocation till the first Census after 2000 to avoid penalising states with lower population growth.
- **84th Amendment (2002):** Extended the freeze until the first Census after 2026.

Delimitation Commission

- **Composition:** Appointed by the President, it includes a retired Supreme Court judge (Chairperson), the Chief Election Commissioner, and State Election Commissioners.
- **Independence:** Functions without executive influence.
- **Authority:** Its **decisions are final**, cannot be challenged in court, and are beyond modification by Parliament or State Assemblies.

Concerns Over Representation and Federalism

- **Census Delay:** The postponed 2021 Census raises concerns about using outdated data for delimitation.
- **Unequal Representation:** Northern states (UP & Bihar) with higher population growth may gain more seats, reducing the share of southern states (Tamil Nadu & Kerala with lower population growth).
- **Political Imbalance:** Redistribution could shift electoral dynamics in favour of states with rapid population growth.
- **Impact on Southern States:** Fear of losing political influence despite better development indicators and stable populations.
- **Regional Parties' Concerns:** Delimitation may favor national parties with strongholds in populous states.

Way Forward

- ✓ **Conducting the Census:** Essential for an accurate and updated population count before delimitation.
- ✓ **Equitable Representation:** Consideration of governance efficiency, not just population size.
- ✓ **Legislative Safeguards:** Ensuring redistribution does not disproportionately favor high-growth states.
- ✓ **Federal Consensus:** Engaging all stakeholders to prevent political and regional friction.
- ✓ **Alternative Representation Models:** Exploring weighted representation or upper house reforms to maintain federal balance.

{IC – Elections} Electoral Funding in India *

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❖ **Context (IE):** Electoral funding reform is essential **to ensure a level playing field**, preventing financial dominance from distorting democratic competition.

About Electoral Funding

- Electoral funding refers to **resources raised by political parties** and candidates for campaign expenses, organisational activities, and voter outreach.
- The Supreme Court in 2024 held that under **Article 19(1)(a)**, a voter's **"Right to Know" the source of political funding** is fundamental to ensuring informed electoral choice.
- The abolition of **anonymous electoral bonds**in 2024 has led to a surge in **'Electoral Trust'** donations, with the ruling party receiving about **82%** of total disbursements.

Electoral Funding Mechanisms in India

- **Individual Donations:** **Sections 29B** and **29C** of the **Representation of the People Act, 1951,** regulate individual contributions and mandate annual disclosure of donations **exceeding ₹20,000**.
  - ❖ **Section 13A** of the **Income Tax Act, 1961**, exempts parties from tax if accounts are audited and mandates traceable banking channels for donations **above ₹2,000**.
- **Corporate Contributions:** The **Companies Act, 2013** permits corporate donations for companies with **7.5% net profit** following the 2024 Supreme Court ruling,
- **Electoral Trusts:** They are **non-profit entities** mandated to distribute **95% of annual receipts** to parties and disclose aggregate inflows to the Election Commission.
- **State Funding:** India provides **indirect state funding** through tax exemptions, subsidised land for party offices, and free airtime on Prasar Bharati platforms.
- **Foreign Funding:** The **Foreign Contribution Regulation Act (FCRA) amendment (2018)** permits donations from Indian companies with a majority foreign shareholding.

Challenges in Electoral Funding

- ➢ **Fear of Retribution:** Donors often **avoid funding opposition parties** due to fear of investigative harassment, resulting in heavy funding concentration with ruling parties.
- ➢ **Spending Asymmetry:** Political parties have **no legal spending ceiling**, unlike candidates, driving an unchecked escalation in campaign expenditure.
- ➢ **Shadow Campaigning:** Unregulated **digital spending through AI content**, influencers, and consultancies bypasses Election Commission expenditure monitoring mechanisms.
- ➢ **Big Money Influence:** Funding is dominated by large corporations, deepening politico-corporate linkages in electoral politics.
- ➢ **Foreign Influence Risk:** Permitting foreign-linked corporate donations raises risks of indirect **external influence over domesticpolitical outcomes**.

Reforms and Innovative Mechanisms

- ✓ **IPL Model:** A centralised pooling mechanism to create a **National Election Fund** and redistribute corporate donations through the Election Commission using vote share.
- ✓ **Public Funding:** State funding of elections following recommendations of the **2nd Administrative Reforms Commission** and **Dinesh Goswami Committee (1990)**.

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- ✓ **Democracy Vouchers:** Citizen-issued vouchers allowing voters to allocate public funds for candidates, shifting accountability from donors to the electorate.
- ✓ **RTIInclusion:** Bringing political parties under the **Right to Information Act**, classifying them as '**public authorities'**toimprove financial transparency.
- ✓ **Zero-Cash Rule:** Acomplete ban on cash donations to ensure a full digital trail for all political funding.
- ✓ **Audit and Caps:** Party-level spending ceilings and audits by the **Comptroller and Auditor General (CAG)**–empanelled auditors to strengthen financial integrity.

Read More >*Electoral Funding in India* | *Political Party and Third Party Electoral Funding*

{IC – Elections} Compulsory Voting in India

- **Context (TH):** Election Commission announced 2026 Assembly polls, while Supreme Court questioned **mandatory voting**, reviving debate on compulsory voting to **strengthen democratic participation**.

Constitutional and Legal Framework

- **Adult Suffrage:** **Article 326** guarantees voting rights to all citizens aged 18+ without discrimination.
- **Legal Framework:** **Representation of the People Acts, 1950 and 1951,**regulatel voter registration and electoral rights.
- **Statutory Right:** Supreme Court holds that right to vote is a **statutory right**, not a fundamental right.
- **Free Expression:** **Article 19(1)(a)** includes the right to vote or abstain as a form of expression.

Arguments in Support of Compulsory Voting

- **Higher Turnout:** Compulsory voting significantly **increases participation**, ensuring broader citizen involvement and stronger democratic legitimacy. E.g, Australia records ~90% turnout.
- **Inclusive Representation:** Brings **marginalised** and **less politically active groups** into the process, reducing elite-driven electoral outcomes.
- **Fair Mandate:** Limits chances of **candidates winning with low vote share**, ensuring governments reflect majority preference more accurately.
- **Civic Duty:** Instils a **sense of responsibility among citizens**, strengthening democratic culture and long-term political engagement.

Arguments Against Compulsory Voting

- **Freedom Violation:** Compulsory voting infringes **Article 19(1)(a)**, as the right to abstain is part of freedom of expression.
- **Uninformed Voting:** Forced participation **may lead to random** or **ill-informed choices**, weakening the quality of democracy.
- **Implementation Issues:** Difficult to enforce across India's vast, diverse population with **high mobility** and **administrative constraints**.
- **Vulnerable Impact:** Penalties may **disproportionately burden** migrants, the poor, and daily wage workers with limited access to polling.

Way Forward for Electoral Participation

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- ✓ **NOTA Reform:** Introduce **binding consequences for NOTA** to incentivise candidate quality and strengthen voter participation in elections.
- ✓ **Remote Voting:** Deploy **secure remote voting systems** to enable participation of internal migrants and improve electoral accessibility.
- ✓ **Roll Accuracy:** Enable **automated voter registration synchronisation** to reduce exclusion errors and improve the accuracy of electoral rolls.
- ✓ **Civic Education:** Integrate **democratic literacy in school curricula** to build informed, long-term political participation among citizens.

{IC – Elections – Pathfinder for Mains}

Q. The proposal of 'One Nation, One Election' seeks to enhance administrative efficiency and ensure policy continuity. However, it also raises concerns regarding federalism and democratic accountability. Critically examine. (250 Words) (15 Marks)

Approach

- **Introduction:** Write a brief introduction about One Nation One Election, mentioning its importance.
- **Body:** Explain how a one-nation, one-election enhances efficiency, addresses concerns, and way forward.
- **Conclusion:** Emphasis on a cautious, consultative, & phased approach to implement one nation one election.

Model Answer (250 Words)

- 'One Nation, One Election' aspires to streamline India's electoral process and strengthen governance. Yet, its adoption must carefully balance efficiency with federal principles and democratic accountability.

Enhance Administrative Efficiency and Ensure Policy Continuity

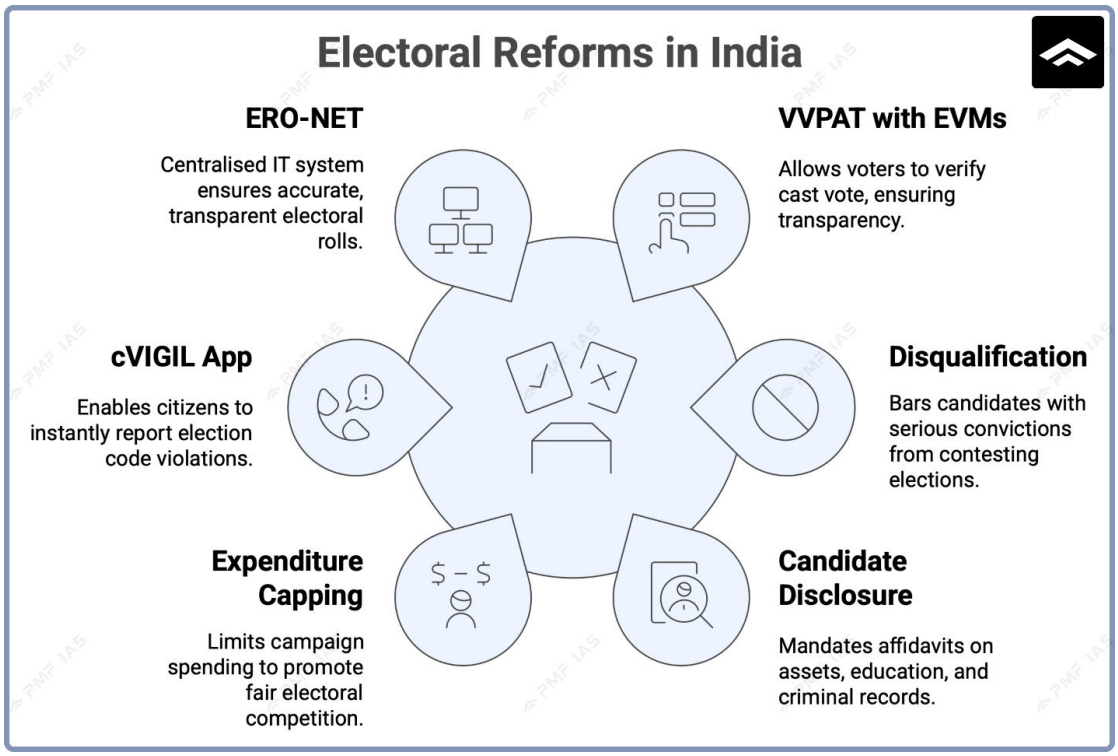
- **Effectiveness:** Minimises frequent deployment of **bureaucrats&security forces** for election duty.
- **Cost Reduction:** Curb the heavy financial burden of repeated elections. E.g., the 2019 general election cost ₹60,000 crore.
- **Policy Continuity:** Reduces governance p**aralysis** due to the model code of conduct.
- **Voter Convenience:** A Single election cycle may **improve turnout** and **reduce voter fatigue**.
- **Curb Populism:** Fewer elections may restrain short-term populist policies.

Concerns and Challenges

- ➢ **Federalism at Risk:** Regional issues may be overshadowed by national issues.
- ➢ **Reduced Accountability:** Frequent elections provide **citizens opportunities** to hold governments accountable.
- ➢ **Practical Challenges:** Constitutional amendments, synchronising terms of assemblies, and handling premature dissolution remain complex.
- ➢ **Reduced Pluralism: Smaller** parties may be disadvantaged against dominant national parties.

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Way Forward

- ✓ **Decriminalization:** Bar candidates with serious criminal charges from contesting (Law Commission).
- ✓ **Financial Cleanliness:** National Election Fund & real-time donation disclosure post-electoral bonds.
- ✓ **Independent EC:Collegium-based appointments** with fixed tenure for Election Commissioners.
- ✓ **Tech & Voter Empowerment:** Strengthen VVPAT, enable e-voting for migrants/NRIs, and expand voter awareness.
- ✓ **Strengthen Anti-Defection Law:** Amend to curb mass defections and enforce stricter penalties.

Conclusion

- 'One Nation, One Election' promises **efficiency and stability**, democracy is not merely about cost and convenience but also about accountability and representation. A **cautious, consultative**, and **phased approach** is essential to balance efficiency with federalism and democratic spirit.

Q. Money power and opaque electoral financing have deepened the nexus between politics and crime in India. Examine this linkage and propose reforms to ensure transparency and accountability in political funding. (15 Marks)

Approach

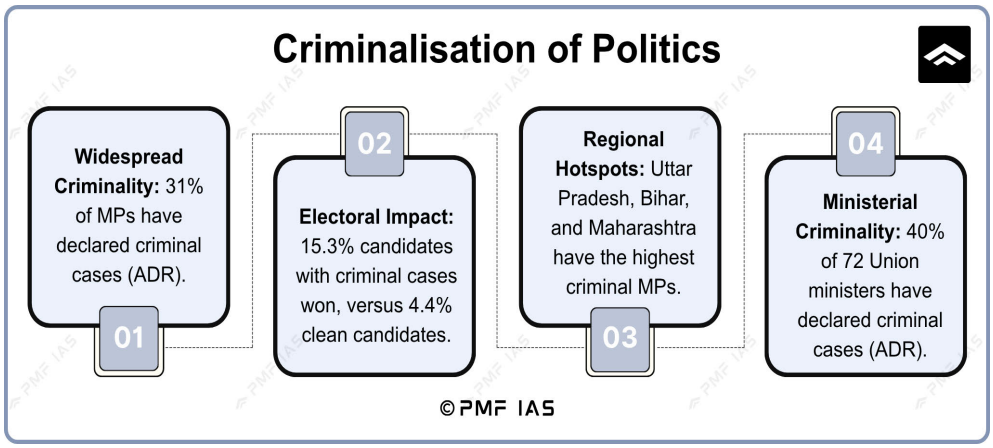
- **Introduction:** Write a brief introduction about the criminalisation of politics by mentioning the latest data.
- **Body:** Examine the linkage between politics and crime in India, the impact and reforms necessary to ensure transparency and accountability in political funding.
- **Conclusion:** Emphasis on the antidote with the future course of action to restore democratic trust.

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Model Answer

- Over **31% of MPs** and **29% of MLAs** face serious criminal charges, up from 14% in 2009 (ADR), highlighting the deepening **criminalisation of politics** that erodes democracy and public trust.



Linkage Between Politics and Crime in India

- **Costly Campaigns:Crore-level spends** push parties to field cash-rich, muscle-backed candidates linked to mafias (ADR).
- **Legal Loopholes:** Despite **SC's Public Interest Foundation** (2018), disqualification at charge-framing remains unimplemented (Law Commission).
- **Rising Numbers:** Share of MPs with severe criminal cases rose from **14%** (2009) to **31%** (2024), showing **crime–politics entrenchment** (ADR).
- **Policy Capture:Mining mafias** in UP and **liquor cartels** in Bihar show how crime–politics nexus diverts governance for vested interests.

Impact of Criminal Politics

- **Erosion of Rule of Law:** Criminal MPs/MLAs blur legal accountability, undermining equality before law (Lily Thomas vs Union of India, 2013).
- **Policy Capture:Politico-criminal nexus** distorts policies to serve vested interests, E.g., mining and liquor mafias in Bihar and UP.
- **Corruption & Black Money:** Expensive elections promote cash-rich, muscle-backed candidates, fueling illicit money and corruption. E.g., ADR: 31% MPs with criminal cases.
- **Democratic Distrust:** Normalisation of **"bahubali culture"** erodes voter trust (Public Interest Foundation, 2018).

Reforms to Ensure Transparency & Accountability

- ✓ **State Funding:** Provide **partial state funding** to reduce reliance on black money.
- ✓ **Disqualification Reforms:**AmendRPA, 1951, to bar candidates with serious charge-sheets and impose stricter penalties for concealment.

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- ✓ **Judicial Oversight:Expand fast-track courts** for political cases to reduce pendency.
- ✓ **Internal Party Democracy:** Mandate **candidate selection committees** and justification for fielding tainted leaders.

Conclusion

- **Clean money is the antidote to criminal capture**; only **transparent**, **audited**, **digitally-traceable funding** combined with **stricter disqualification** can realign incentives and restore democratic trust.

-------- End of Chapter --------

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Laws, Rules and Regulations

{Laws} Revival of Arunachal Pradesh Freedom of Religion Act

- **Context (IE): Arunachal Pradesh** is **reviving** the **1978 Act** to curb **forceful religious conversions** by framing rules for its implementation after decades of dormancy.
- The Act remained **unenforced since 1978** due to unframed rules. Christian groups, including the **Arunachal Christian Forum**, oppose it, citing potential misuse and increasing resistance.

Reasons for Reviving the Act

- **Rise of Conversions to Christianity:** Efforts in the 1950s led to Christianity's growth from 0.79% (1971) to 4.32% (1981) and to 30.26% of the population by 2011.
- **Legal Push:** A **2022 PIL in the Gauhati High Court** highlighted the failure to enforce the Act, prompting judicial intervention. The government is finalising rules to operationalise the Act after the court's directive.
- **Cultural Preservation:** Seen as crucial by Indigenous Faiths& Cultural Society of Arunachal Pradesh (IFCSAP) to protect indigenous culture from erosion due to rising conversions & to document traditional practices.

Also refer to Need for Anti-Conversion Laws.

Key Features of the Arunachal Pradesh Freedom of Religion Act 1978

- **Prohibition of Forceful Conversion:** Bans religious conversions through force, inducement, or fraud.
- **Punishments:** Violators face imprisonment (up to two years) and fines (up to ₹10,000).
- **Mandatory Reporting:** All conversions must be reported to the **District Deputy Commissioner**.
- **Focus on Indigenous Faiths:** Protects **local practices** like **Donyi Polo** and **Mahayana Buddhism** while countering external influences.

Issues

- **Allegations of Misuse:** Concerns over the misuse of the Act by local authorities against minority groups.
- **Census Discrepancies:** Categorisation issues in past censuses **blurred distinctions** between **Hinduism** and **indigenous faiths,** complicating demographic analyses.

Way Forward

- ✓ **Inclusive Implementation:** Implement rules safeguarding against misuse, protecting cultural heritage, and distinguishing indigenous faiths from Hinduism to preserve identities.
- ✓ **Awareness Promotion:** Understanding of indigenous practices through education & documentation.
- ✓ **Dialogue with Stakeholders:** Engage religious leaders, activists, and the public to address concerns and build consensus.

{Laws} Waqf (Amendment) Act, 2025 *

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WAQF (Amendment) Act, 2025

- Also known as **UMEED Act** (Unified Management Empowerment Efficiency & Development), was passed by Parliament.

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What is a Waqf ?

- **Waqf:** **Personal property donated** by Muslims for religious or charitable use, **owned by God.**



- Established through **written, verbal,** or prolonged religious use.



- Once declared Waqf, the **status is permanent** and **irreversible.**



Key Provisions

Safeguards on Waqf Property

- **Abolition of 'Waqf by User'**
  Stops future claims **without** valid documentation.
- **12-year limit** on waqf property recovery under **Limitation Act, 1963.**
- Waqf Boards **can't unilaterally** declare private property as Waqf.
- **Protection of Tribal Lands**
  Waqf can't be established on **Schedule V & VI** lands.



Verification

- **Online Registration**
  Waqf properties to be **registered within 6 months.**
- Land title verification by District Collector or above.



Individual and Community Rights

- **Non-Muslim Inclusion**
  Appointment to Central Waqf Council, State Waqf Boards, & waqf tribunals.
- **Representation**
  2 women & fair Sunni, Shia, Bohra, OBC-Muslim inclusion.
- **Inheritance Protection**
  Inheritance Protection: Waqf cannot override **rights of women** and orphans.



Transparency

- **Online Registration**
  Open to qualified candidates from **any community,** no religious restrictions.
- **Mandatory Audits**
  Annual audits for entities earning above **₹1 lakh.**
- **Appeal Provision**
  Tribunal orders appealable to **High Court** within **90 days.**
- **Waqf Tribunal**
  District Judge, Joint Secretary, and Islamic law expert.





Financial & Administrative Reforms

- **Contribution Cut**
  Reduced from 7% to **5%** of annual income.
- **Digital Database**
  Register all waqf properties online within **6 months.**
- **District Committees**
  Enhance local governance & accountability.



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- The Waqf (Amendment) Act, 2025, renamed as the **Unified Waqf Management, Empowerment, Efficiency, and Development (UMEED) Act**, has been passed in Parliament.
- Initially introduced last year, the bill was referred to a **Joint Parliamentary Committee (JPC)**.
- It seeks to amend the **Waqf Act of 1995**, which governs the administration of waqf properties in India.

Key Provisions of Act

- **Retention of 'Waqf by user' Properties:** 'Waqf by user' properties registered on or before the law's commencement will **retain their status unless disputed** or designated as **government property**.
  - **"Waqf by user"**doctrine in Islamic legal traditions recognises properties as **religious** or charitable endowments based on their uninterrupted communal use, **even without formal documentation**.
- **Inclusion of 'Non-Muslims':** The new Act retains provisions allowing **non-Muslims** to be appointed to key **waqf institutions**, including the Central Waqf Council, State Waqf Boards, and waqf tribunals.
  - It empowers the Centre to nominate **3 Members of Parliament** - 2 from the Lok Sabha and one from the Rajya Sabha to the **Central Waqf Council** without mandating that they be Muslims.
  - Similarly, the Act permits the appointment of a **non-Muslim Chief Executive Officer** and mandates that State governments appoint at least two non-Muslim members to the Waqf Boards.
- **Waqf Tribunal**: Each tribunal will comprise a **district judge**, a joint secretary-level officer from the State government, and an expert in Muslim law and jurisprudence.
  - Tribunals constituted before the Act's enactment will continue to function until the tenure of their chairperson and members expires.
- **Surveys by Senior Government Officers:** The Act mandates that senior officers above the rank of district collectors conduct surveys, particularly in cases where government ownership is disputed.
  - Act designates these senior government officers as the **final arbiters** in such matters, replacing the waqf tribunals prescribed under the 1995 Act.
  - It also stipulates that a disputed property **cannot** be classified as **waqf** until the officer's final report.
- **Registration Portal:** The Act mandates that all information regarding **waqf properties** must be uploaded to a designated portal within **6 months** of the law's enactment.
  - Any new Waqf property registrations must be submitted to the respective Waqf Boards exclusively through this portal.
- **Application of Limitation Act:** The Act seeks to **repeal Section 107** of the 1995 Act, which had rendered the Limitation Act, 1963 (1963 Act), inapplicable to waqf properties.
  - The 1963 Act imposes a **statutory bar** on initiating legal proceedings after a prescribed period.
  - Section 107 effectively exempts waqf boards from the 12-year limitation period for reclaiming encroached properties.
- **Judicial review:** The new Act retains provisions enabling judicial intervention in waqf disputes by removing the finality of waqf tribunal decisions.
  - Aggrieved parties can appeal directly to the **HC within 90 days** of receiving the tribunal's order.

{Laws} The Boilers Bill, 2024

- Boilers Bill, 2024, **replaces the 1923 Act** to regulate industrial boilers but retains most colonial-era provisions despite modernisation.

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Background of the Boilers Act, 1923

- **Regulation of Boilers:** Governs manufacturing, installation, operation and safety to prevent steam boiler explosions.
- **Amendments:** 2007 amendment introduced third-party inspections, requiring further modernisation.

Key Features of Boilers Bill, 2024

- **Central Boilers Board (CBB):** Regulates design, manufacturing, erection, and usage of boilers.
- **State Government Role:** Appoints inspectors with authority over inspections and certifications.
- **Third-Party Inspections:** Recognised institutions authorised for inspections to reduce bureaucratic delays.
- **Exemptions:** Boilers below 25 liters or operating under 1 kg/cm² pressure **exempted**; states can exemptboilers in emergencies.
- **Decriminalisation:** Retains only 4 serious offences from 1923 Act; fines replaced with executive penalties.
- **New Clauses:** Introduces **Clause 35**for adjudication and **Clause 36**for appeal mechanisms.
- **Registration & Renewal:** Mandatory boiler registration before operation, with annual renewal.
- **Safety Provisions & Penalties:** Defines accidents, mandates 24-hour reporting, and imposes penalties up to 2 years imprisonment and ₹1 lakh fine for violations.

Issues and Concerns

- **Limited Judicial Recourse:** Decisions by **central or state inspectors** cannot be challenged in regular courts; appeals only via High Court writ petitions.
- **Entry Powers of Inspectors:** No specific safeguards are provided, unlike similar regulations.
- **Lack of Timelines:** The absence of specified deadlines for inspections, approvals, or repairs may lead to delays.
- **Need for Risk-Based Inspection:** Bill does not emphasise risk analysis, which is crucial for long-term boiler safety.
- **Potential Bureaucratic Hurdles:** Despite third-party inspections, the absence of clear procedural timelines could affect business efficiency.
- **Simplified Compliance Gaps:** Some states allow self-certification, but the Bill does not incorporate this.

Way Forward

- ✓ **Stronger Safety Framework:** Avoid excessive exemptions to maintain safety uniformity.
- ✓ **Judicial Safeguards:** Introduce appeal mechanisms beyond High Court writ petitions.
- ✓ **Risk-Based Inspections:** Establish a dedicated risk-measurement agency to improve safety standards.
- ✓ **Time-Bound Compliance:** Set timelines for approvals & inspections to enhance industrial efficiency.
- ✓ **Standardisation Across States:** Ensure uniform rules nationwide to prevent regulatory loopholes.

{Laws} Centre's New Regulations for Ladakh

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- **Context (IE)**: Centre has notified new regulations for Ladakh's land, jobs and cultural preservation.

What are the New Regulations?

Ladakh Civil Services Decentralisation and Recruitment (Amendment) Regulation, 2025

- Introduces domicile-based recruitment for government jobs.
- **Domicile Criteria:**
  - 15 years of residence in Ladakh
  - 7 years of schooling + passed Class 10 or 12 from Ladakh
  - Children of Central Govt employees with 10+ years' service in Ladakh
  - Children/spouses of Ladakhi domiciles

Ladakh Civil Services Domicile Certificate Rules, 2025

- Lays down the procedure and documentation required to obtain a domicile certificate.
- **Issuing authority:** Tehsildar; **Appellate authority:** Deputy Commissioner.

Union Territory of Ladakh Reservation (Amendment) Regulation, 2025

- Total reservation for SC/ST/OBC/Other Backwards Groups: **85%.**Excludes 10% EWS quota from cap.
- Now applicable to professional institutes (engineering, medical colleges): New cap: 85% (early 50%)

Ladakh Official Languages Regulation, 2025

- Recognises **English, Hindi, Urdu, Bhoti**, and **Purgi** as official languages.
- Mandates institutional support for: Shina, Brokskat, Balti, Ladakhi.

Ladakh Autonomous Hill Development Councils (Amendment) Regulation, 2025

- Reserves **1/3rd** of LAHDC seats for **women**, via **rotational reservation.**
- LAHDCs remain administrative (**not legislative**) bodies.

Significance of the Regulations

- First major region-specific administrative framework for Ladakh post-2019.
- Addresses key demands from civil society groups likeLeh Apex Body and Kargil Democratic Alliance.
- Important step towardslocal job protection, cultural preservation, language recognition.

Limitations of the Regulations

- **No Constitutional Backing:** Regulations are framed under **Art 240** (are executive in nature, not constitutional). Thus, unlike the Sixth Schedule, it does not offer a constitutional guarantee for tribal protections.
- **No Land Ownership Safeguards: Absence of any restriction on land purchase** by non-domiciles poses a risk for Ladakh's ecology due to Commercial tourism, Environmental impact, and resource exploitation.

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- **Lack of Legislative Autonomy:** Lack of legislative powers to Ladakh Autonomous Hill Development Councils (LAHDCs). Demand remains for either the Legislative Assembly or inclusion under the Sixth Schedule with Autonomous District Councils (ADCs).
- **Symbolic Cultural Recognition:** Languages recognised, but no clear roadmap for use in education, governance, or the judiciary.

Way Forward

- ✓ **Constitutional Safeguards:** Consider **Sixth Schedule status** or **stronger statutory protections** for tribal rights and autonomy. E.g., Autonomous Councils in Meghalaya and Mizoram.
- ✓ **Land Protection:** Introduce **domicile-linked land safeguards** to prevent ecological degradation and speculative acquisitions. E.g., Land ownership restrictions in Himachal Pradesh.
- ✓ **Empowered Governance:** Strengthen **LAHDC powers** and **implement multilingual governance** through education and administration. E.g., Use of local languages in governance in Sikkim.

Also Read >*Ladakh's Demand for Inclusion in Sixth Schedule: Arguments in Favour and Against*.

{Laws} Parliament Passes Landmark Maritime Bills

- **Context (TH):** Parliament passed the **Merchant Shipping Bill, 2024**, and the **Carriage of Goods by Sea Bill, 2025**, modernising India's shipping laws.

⇨ The Merchant Shipping Act, 1958,& the **Carriage of Goods by Sea Act, 1925**, which have long been central to maritime regulation, were **outdated**&**only partly aligned** with the International Maritime Organisation (IMO) convention.

Key Features of the New Legislation

- New laws aim to modernise maritime regulation, align with global norms, & boost ease of doing business.

Merchant Shipping Bill, 2024

- **Alignment with IMO conventions** on safety, emergency response, and environmental protection.
- **Ease of doing business** by easing compliance & attracting shipping investment.
- **Seafarer welfare and ship safety** through enhanced rights and improved working conditions.

Carriage of Goods by Sea Bill, 2025

- Adopts the **Hague-Visby Rules** (followed by the UK & other maritime nations) as **global standards**.
- Simplifies **cargo movement regulations**, reducing **litigation risks**.
- Promotes **transparency** and **standardisation** in maritime trade contracts.

Significance for India

- **Global Competitiveness:** Positions India as a **trusted maritime hub** and **strengthens credibility** in shipping governance.
- **Economic Impact:** With **over 90% of trade by sea**, modern laws lower transaction costs and support Maritime India Vision 2030 and the Blue Economy strategy.

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- **Environmental & Safety Standards:** Stronger provisions for pollution control and environmental protection align with Sustainable Development Goal 14.
- **Geopolitical Leverage:** Strengthens India's role in **Indo-Pacific maritime governance**, aligning with the SAGAR vision.

{Laws} 131st Amendment Bill, 2026 **

❖ **Context (IE):** The Constitution (131st Amendment) Bill, 2026, seeking to advance 33% reservation for women in an expanded Lok Sabha and State Assemblies and facilitate delimitation of constituencies, was defeated in the Lok Sabha.

About the Constitution (131st Amendment) Bill, 2026

- **Seat Expansion:** The bill seeks to raise Lok Sabha seats from 543 to 850 to reflect population change.
- **Women's Reservation:** The bill seeks to operationalize 33% reservation for women in legislatures immediately, bypassing the post-2026 census condition as per Nari Shakti Vandan Adhiniyam.
- **Data Basis:** It seeks to use the 2011 Census as the basis for reallocating parliamentary seats.
- **Boundary Reform:** The bill seeks to amend Article 82 to lift the freeze on delimitation of constituencies.
- **Potential Benefit:** It seeks to accelerate the implementation of the 106th Constitutional Amendment Act by fast-tracking the reservation of women, who currently constitute only ~14% of Lok Sabha.
- **Concerns:** Reliance on the 2011 Census for delimitation risks entrenching outdated demographic patterns, potentially widening the North–South representational imbalance and affecting federal equity.

⇨ ***106th Constitutional Amendment Act, 2023:*** *Provides 33% women's reservation in Lok Sabha and State Assemblies, but its implementation is contingent on a future Census and subsequent delimitation exercise.*

Positive Consequences of Parliamentary Expansion

- **Enhanced Representation:** Reducing the demographic burden from **2.5 million citizens per MP** ensures accessible and responsive constituency management.
- **Urban Parity:** Boundary readjustments using **post-1971 census data** will proportionally increase urban legislative seats to reflect **India's 35% urbanisation rate**.
- **Women's Reservation:** Increased overall seat matrix facilitates the 106th Constitutional Amendment Act to secure a **33% female legislative quota**.
- **Resource Allocation:** Smaller electoral boundaries allow MPs to concentrate the **fixed annual ₹5 crore** MPLADS fund on targeted local infrastructure.
- **Committee Specialisation:** Broader legislative pool **reduces overlapping member assignments** to build deeper **domain expertise within Standing Committees**.

Negative Consequences of Parliamentary Expansion

- **Federal Imbalance:** Census-driven seat allocation **shifts national political power northward**, penalising southern states for their successful family planning.

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- **Bicameral Imbalance:** Disproportionate expansion of the Lower House **dilutes the Rajya Sabha's voting weight** during joint sittings and presidential elections.
- **Cabinet Inflation:** Parliamentary expansion **raises the 15% ministerial ceiling**, potentially increasing the Council of Ministers **from 81 to 133 members**.
- **Debate Fragmentation:** Larger representative pools **reduce individual MPs' chances of securing speaking time** during Question Hour and Zero Hour.
- **Fiscal Devolution:** Altered political gravity may skew **future Finance Commission tax formulae** against productive but less populous states.

Amendments Required to Implement these Changes

- **Article 81:** To increase the Lok Sabha strength beyond the current constitutional limit.
- **Article 82:** To enable early delimitation (based on 2011 Census) for redistribution of parliamentary seats.
- **Parliamentary Majority:** All constitutional amendments require a special majority (2/3rd of members present and an absolute majority of the total strength).

Way Forward for Lok Sabha Expansion

- ✓ **Demographic Balance:** Design fair delimitation principles to balance population-based representation with concerns of states that achieved demographic stabilisation.
- ✓ **Census Update:** Conduct the delayed decadal census to ensure accurate and current population data for parliamentary seat redistribution.
- ✓ **Quota Decoupling:** Amend provisions to operationalise women's reservation independently of delimitation timelines under the 106th Constitutional Amendment.
- ✓ **House Capacity:** Reform parliamentary procedures and infrastructure to efficiently manage a significantly expanded Lok Sabha with higher member strength.

{Laws} The Constitution (130th Amendment) Bill, 2025 *

- **Context (TH | LL | IE):** The **130th Constitution (Amendment) Bill, 2025**, introduced by the Home Minister, was referred to a **Joint Parliamentary Committee**.

> ⇨ *The Bill proposes amendments to **Articles 75**, **164**, and **239AA**, which pertain to the Union Council of Ministers, State Councils of Ministers, and the special administrative provisions for Delhi.*

Key Provisions of the Bill

- **Article 75:** A Union Minister arrested and detained for **30 consecutive days** for an offence punishable with **five or more years** of imprisonment:
- Must be **removed by the President** (on PM's advice), or
- Will **automatically cease to hold office if** no advice is given by the 31st day.
- **Reappointment is allowed** after release from custody.
- **Article 164:** Similar provision for CM or State Ministers, **removal by the Governor**.
- **Article 239AA:** Applies the same rule to Delhi's CM & Ministers, **removal by Lieutenant Governor (LG)**.
- **Govt of Union Territories Act, 1963:** Extends rule to UT Ministers, **empowering Administrator/LG** to act similarly.

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- **J&K Reorganisation Act, 2019:** Applies the same provisions to Jammu & Kashmir; the **LG can remove** the CM/Ministers.

Legal and Judicial Perspectives

Supreme Court's Stance:

- **Manoj Narula v. Union of India (2014):** **No constitutional bar** on appointing persons with a criminal background as Ministers.
- **2018 Ruling:** Upheld Parliament's exclusive right to legislate disqualification grounds, urging stronger party laws to revoke membership of charged politicians.
- **Law Commission:** Recommends disqualification only after framing of charges, not on charge sheets or complaints, to ensure fairness.

Implications for Governance

- Enhances accountability and addresses the moral vacuum caused by Ministers under criminal investigation.
- Preserves constitutional morality and public faith in democratic institutions.
- E.g., In Arvind Kejriwal's case, the SC imposed restrictions but left resignation to discretion.

Concerns Raised

- Potential constitutional overreach and misuse against political opponents.
- Violates the presumption of innocence and natural justice.
- Politically influences arrests and investigations through the use of investigative agencies.

{Laws} Functioning of Juvenile Justice Law

- **Context (TH):** The **Indian Justice Report**, an initiative by Tata Trusts, has published a study titled '**Juvenile Justice and Children in Conflict with the Law: A Study of Capacity at the Frontlines**'.

Key Findings of the Report

- **High Pendency:** As of October 2023, **55% of the 100,904 cases** before **Juvenile Justice Boards** (JJBs) were pending, averaging 154 cases per JJB.
- **Odisha** recorded the highest pendency at 83%, while **Karnataka** reported the lowest at 35%.
- **Bench Shortage:** Nearly 25% of JJBs are functioning without the required **three-member bench**, and 30% lack an attached legal services clinic.
- **Place of Safety:** Fourteen states have not established the mandatory **"Place of Safety"** for children aged 16-18 accused of heinous offences.
- **Standards Compliance:** Only 11 of 292 districts met all seven minimum standards. There are only 40 child-care homes exclusively for girls.
- **Data Gap:** Unlike adult courts with the **National Judicial Data Grid**, there is no central public repository for juvenile justice data.
- **Poor Oversight:** Oversight of Child Care Institutions remains weak, with only 40% of required inspections carried out.

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- **Coordination Deficit:** The report highlights a weak coordination among the **four nodal agencies**.
- **Nodal Agencies:** (a) The Police, (b) the Department of Women & Child Development, (c) the State Child Protection Society (SCPS), and (d) the State Legal Services Authority (SLSA).

About the Juvenile Justice Board

- The Juvenile Justice Board (JJB) is a **quasi-judicial body** that hears cases involving children (<18 years) accused of committing an offence.
- **Legal Basis:** Constituted under the Juvenile Justice (Care and Protection of Children) Act, 2015, the JJBs are meant to be **reformative rather than punitive**.
- **Main Functions:** The JJB conducts inquiries, evaluates the child's circumstances, determines rehabilitation measures, and issues individual care plans.
- **Institutional Setup:** Every **State Government establishes** a **JJB for each district** (or group of districts), chaired by a **Metropolitan Magistrate** or **Judicial Magistrate** of First Class.
- **3-Member:** Along with the **Principal Magistrate**, the JJB comprises **two social workers**, at least one of whom must be a woman.
- **Case Processing:** A child apprehended must be presented before the JJB **within 24 hours**, and the inquiry is expected to conclude within four months.

About the Juvenile Justice (Care and Protection of Children) Act, 2015

- The Juvenile Justice Act, 2015, is India's primary legislation for children in conflict with the law and children in need of care and protection.
- **Key Objectives:** It aligns with the **UN Convention on the Rights of the Child**, ensures care and protection for vulnerable children, and establishes a child-friendly justice system.
- **Offence Categories:** Offences are classified by maximum punishment: **petty** (up to 3 years imprisonment), **serious** (3-7 years), and **heinous** (7 years or more).
- **Adult Trial:** For serious offences committed by **children aged 16-18**, the JJB assesses whether the child should be tried as an adult in the **Children's Court**.
- **Institutional Setup:** The Act mandates a JJB in every district for children in conflict with the law, and a **Child Welfare Committee** (CWC) for children needing care and protection.

Challenges in the Juvenile Justice System

- **High Pendency:** **Over 55% of 1,00,904 cases pending** (2023) in JJBs delay timely rehabilitation. E.g., Odisha shows 83% pendency.
- **Infrastructure Gaps:** About **25% JJBs lack a 3-member bench,** and **30%** lack legal aid clinics. E.g., multiple rural districts in Bihar and UP.
- **Weak Institutional Coordination:** **Poor coordination** among the police, WCD, SCPS, and SLSA undermines child justice delivery. E.g., a low 40% inspection rate of child-care institutions.

Way Forward

- ✓ **Strengthen JJB Capacity:** Fill **vacant posts** and ensure full benches. E.g., Karnataka shows better outcomes, with 35% pendency due to stronger staffing levels.

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- ✓ **Improve Infrastructure:** Establish a mandatory **"Place of Safety"** in all states. E.g., 14 states currently lack such facilities under the JJ Act, 2015.
- ✓ **Enhance Coordination:** Create a **national juvenile justice dashboard** like NJDG for adults. E.g., Odisha reforms highlight the need for an integrated monitoring system.

{Laws – Pathfinder for Mains}

Q. To what extent does the Waqf (Amendment) Act, 2025, uphold constitutional principles while reforming legacy institutions of religious endowments? (150 Words) (10 Marks)

Approach

- **Introduction:** Briefly state the objective of the Waqf (Amendment) Act, 2025, in reforming religious endowments while ensuring constitutional alignment.
- **Body:** Discuss the act's provisions that uphold constitutional principles and reform legacy institutions.
- **Conclusion:** End by assessing whether the Act ensures a balance between reform and religious autonomy, and stress the need for vigilant implementation.

Model Answer (150 Words)

- The Waqf (Amendment) Act, 2025, aims to ensure transparency and constitutional compliance in managing **Waqf properties** while addressing legacy issues of misuse and arbitrariness.

Upholding Constitutional Principles

- **Right to Property (Article 300A):** Abolishes '**Waqf by user**' and applies the **Limitation Act** to prevent arbitrary land claims.
- **Equality and Representation (Articles 14, 15):** Mandates representation of women, minorities, and OBCs in Waqf Boards.
- **Freedom of Religion (Articles 25 & 26):** Retains Islamic legal input in tribunals while addressing excessive board powers.
- **Due Process and Justice (Article 21):** Replaces tribunals with **appellate recourse to High Courts** for fair dispute resolution.

Reforming Legacy Institutions

- ✓ **Digital Transparency:** Mandatory GIS mapping and online registration of all waqf properties.
- ✓ **Financial Oversight:** Annual audits and CAG scrutiny to curb mismanagement.
- ✓ **Leadership Reform:** Opens CEO roles to all communities based on merit, not religion.
- ✓ **Inclusive Development:** Enables public-private-community partnerships to utilise waqf land for social welfare.

Conclusion

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- The **Act strikes a balance** between religious autonomy and constitutional safeguards; its success now rests on inclusive implementation and vigilant oversight.

------- End of Chapter -------

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Constitutional & Statutory Bodies

{Bodies} 1st Foundation Day of Lokpal

- **Context (PIB): India** celebrated the **1st Foundation Day** of the **Lokpal**, marking 11 years since its establishment under the Lokpal and **Lokayuktas Act, 2013**.
- **Lokpal** and **Lokayukta** perform the function and role of an **"Ombudsman"**.

Historical Background

- The concept of ombudsman originated in **1809** in **Sweden**.
- In India, the former law minister **Ashok Kumar Sen** became the **first Indian to propose** the concept of a constitutional Ombudsman in Parliament in the early 1960s.
- Further, **Dr L. M. Singhvi** coined the terms **Lokpal** and **Lokayukta** in **1963**. Later, in 1966, the **First Administrative Reforms Commission (1966)** passed recommendations regarding the establishment of two independent authorities at the central and state levels.
- **Lokpal and Lokayuktas Act, 2013:** This act established **statutory bodies** to combat corruption in public offices. Lokpal was constituted on **January 16, 2014**, as a **two-tier system**, with Lokpal at the Union level and Lokayuktas at the State level.
- The **first Chairperson** was appointed in 2019, **Justice Pinaki Chandra Ghosh**.

Other Anti-Corruption Legislations

- **Prevention of Corruption Act, 1988 (Amended in 2018):** Criminalises bribery and corruption with stricter penalties.
- **Whistleblowers Protection Act, 2014:** Ensures protection for whistleblowers from threats.
- **Right to Information Act, 2005:** Promotes transparency in government operations.
- **Prevention of Money Laundering Act 2002:** Strengthens global cooperation against money laundering.
- **Companies Act, 2013:** Regulates corporate fraud and governance.
- **Benami Transactions (BT) Act, 1988 (Amended 2016):** Criminalises BT to conceal ownership.
- **Black Money Act, 2015:** Targets undisclosed foreign income and assets with heavy penalties.
- **Fugitive Economic Offenders Act, 2018:** Confiscates assets of offenders fleeing abroad.

Lokpal and Lokayuktas Act, 2013

Structure of Lokpal

- The **Chairperson** is a former CJI or Supreme Court Judge, with **up to 8 members**, equally divided between judicial and underrepresented groups (SC/ST/OBC, minorities, and women).
- **Appointment:** Made by the President based on recommendations from a Selection Committee.

Composition of the Lokpal Selection Committee

- **Prime Minister** as the Chairperson of the committee
- **Speaker of Lok Sabha**

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- Leader of the Opposition (Lok Sabha)
- **Chief Justice of India** or a Supreme Court Judge nominated by them
- **Eminent Jurist** recommended by the President of India

Mandate, Powers and Functions

- **Legal Authority:** Investigates corruption allegations against public officials under the **Prevention of Corruption Act, 1988**.
- **Anti-Corruption Oversight:** Ensures expeditious inquiry and prosecution of corruption cases while promoting accountability in governance.
- **Accountability Mechanism:** Refers complaints against central government servants to the **Central Vigilance Commission** (**CVC**) and oversees the accountability of public servants.
- **Autonomy and Independence:** Lokpal functions autonomously, with its inquiry and prosecution wings for investigation and trial.
- **Investigation and Supervisory Role:** Supervises the CBI, authorises search and seizure operations, and prevents the destruction of records during inquiries, thus ensuring fair and unbiased investigations.
- **Civil Court Powers:** The **Inquiry Wing of the Lokpal** is vested with civil powers of the Court for summoning, requisitioning documents, and examining witnesses.
- **Asset Confiscation:** Confiscates assets and proceeds gained through corruption in special cases.
- **Administrative Actions:** Recommends transfer, suspension, or other actions against public servants linked to corruption allegations.
- **Reporting:** Submits an **annual report** to the **President**, tabled in both Houses of Parliament.

Jurisdiction

- **Coverage of Officials:** Includes the PM (with specific exceptions), Union Ministers, Members of Parliament, and Groups A, B, C, and D officials.
  - **Exceptions for PM:** Lokpal **cannot** probe allegations against the **Prime Minister** about **international relations, security, atomic energy** & **space** unless a full bench agrees with a **2/3rd majority**.
- **Institutional Scope:** Covers chairpersons, members, officers & directors of boards, corporations, societies, trusts/autonomous bodies funded wholly/partially by the govt or established by an Act of Parliament.
- **Foreign Contributions:** Encompasses societies, trusts, or bodies receiving foreign contributions exceeding ₹10 lakh.
- **Provisions for Whistleblowers:** Provides safeguards for whistleblowers under the **Whistleblowers Protection Act, 2014**.
- **Complaint Mechanism:** Accepts complaints from **any individual in** the prescribed form, provided they pertain to offences under the Prevention of Corruption Act, 1988.

Challenges Faced by Lokpal

- **Delays in Appointments:** First Lokpal appointed in March **2019**, **six years** after the Act was passed.
- **Staffing Issues:** Vacant positions, such as **Director of Inquiry** and **Director of Prosecution**, hinder efficient functioning.
- **Investigation Setbacks:** ~90% of complaints were rejected due to **incorrect format/procedural errors.**
- **Coordination Problems:** Reliance on other agencies (CBI, CVC) for investigations creates delays.

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Way Forward and Reforms

- ✓ **Strengthening Infrastructure:** Improved staffing, technological support, and budgetary allocations will speed up investigations.
- ✓ **Enhanced Coordination:** Collaborating more effectively with CBI & other agencies to reduce bottlenecks.
- ✓ **Public Awareness:** Educating citizens about Lokpal's role can encourage more corruption reports.
- ✓ **Transparency:** Regular updates on investigations will increase trust in the institution.

{Bodies} National Commission for Safai Karamcharis

❖ Union Cabinet approved extension of **National Commission for Safai Karamcharis** (**NCSK**) for three years until **2028** with an estimated expenditure of **₹50.91 crore** for the extended tenure.

About NCSK

- **Established:** First constituted in **1994** under the **National Commission for Safai Karamcharis Act, 1993**.
- **Objectives:** Improve working conditions of **sanitation workers**; Facilitate **socio-economic upliftment**; Aim for **zero fatalities** in hazardous cleaning.
- **Current Status:** Since the **Act lapsed in 2004**, NCSK functions as a **non-statutory body**, with tenure extensions granted via government resolutions.
- **Parent Ministry:** **Ministry of Social Justice and Empowerment** (**MoSJE**).

Mandate and Functions of NCSK

- **Policy Recommendations:** Suggests programs to **eliminate inequalities** in status, facilities, and opportunities of **Safai Karamcharis**.
- **Monitoring & Evaluation:** Assesses implementation of **rehabilitation schemes** for sanitation workers.
- **Safeguarding Rights:** Investigates complaints and takes **suo-motu cognisance** of non-implementation of schemes.
- **Health & Safety Oversight:** Monitor working conditions, health, wages & safety of sanitation workers.
- **Reporting:** To **Central & State Govts** regarding challenges faced by sanitation workers.

Role under the MS Act 2013

- **Implementation Monitoring:** Ensures compliance with the Act's provisions.
- **Handling Complaints:** Investigates violations and recommends actions to authorities.
- **Advisory Role:** Suggests policy measures for effective execution of the Act.
- **Suo-motu Actions:** Takes initiative on non-implementation of the Act.

Challenges Faced by Sanitation Workers

➢ **Hazardous Working Conditions:** Exposure to **toxic gases, manual handling of waste**, leading to health risks like **respiratory issues** and **skin diseases (eczema, dermatitis, etc.)**.

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- **Exposure to Health Risks:** Workers handle sewage water and sludge with their bare hands, leading to chronic illnesses such as **leptospirosis** and **hepatitis**.
- **Inadequate Protective Gear:** **National Safai Karamchari Finance and Development Corporation** (**NSKFDC**) **Report – 65% of sanitation workers** across India lack protective equipment.
- **Fatal Accidents:** The work involves entering dangerous **manholes** and drains. **Around 472 deaths were recorded from 2016 to 2020(Safai Karmachari Andolan Report)**.
- **Social Stigma:** Many sanitation workers belong to **marginalised communities** and face **systemic discrimination**.
- **Lack of Recognition:** Many workers are excluded from benefits under the **Prohibition of Employment as Manual Scavengers and their Rehabilitation Act, 2013** (**PEMSR**).
- **Caste-Based Discrimination:** Many workers come from marginalised communities, perpetuating poverty and limiting job opportunities.
- **Child Labour** from these families often works from a young age, contributing to a cycle of poverty.
- **Lack of Social Security:** Limited access to **healthcare, insurance, and financial support** mechanisms.
- **Casual and Low-Wage Employment:** Irregular jobs with **low wages and no job security**.

Government Initiatives for Sanitation Workers

- **NAMASTE (National Action for Mechanised Sanitation Ecosystem):** A joint initiative by **MoSJE** and **MoHUA** promoting **mechanised cleaning** and ensuring safety training for workers.
- **Swachh Bharat Mission (SBM) 2.0:** Focuses on **occupational safety and welfare** of sanitation workers, encouraging **Urban Local Bodies (ULBs)** to improve working conditions.
- **MS Act 2013:** Legal framework for **banning manual scavenging** and ensuring rehabilitation of affected workers.
- **Social Welfare Schemes:** Financial aid, skill development programs, and education benefits for dependents of sanitation workers.

Way Forward

- ✓ **Strict Enforcement of MS Act 2013:** Ensure **complete elimination of manual scavenging** and rehabilitation of affected workers.
- ✓ **Strengthening Mechanisation:** Promote **machine-based cleaning** to eliminate human involvement in hazardous tasks.
- ✓ **Skill Development & Alternative Livelihoods:** Training programs to help workers shift to **safer and dignified employment**.
- ✓ **Better Social Security:** Provide **health insurance, pension schemes,** and **financial aid** to sanitation workers and their families.
- ✓ **Community Awareness & Inclusion:** Address **social discrimination** and improve integration of workers into society.

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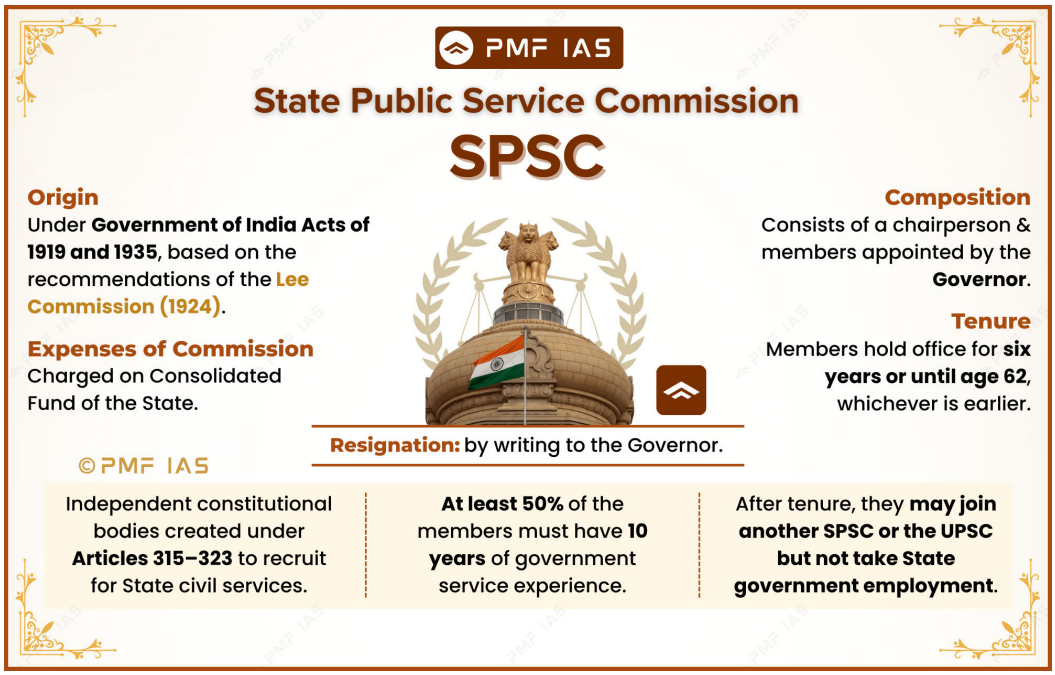
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{Bodies} State PSC Reforms

- **Context (TH):** State Public Service Commissions repeatedly face controversies over paper leaks, flawed evaluation, delays and litigation, eroding trust among aspirants.

Need for Reforming State PSCs

- **Merit Safeguard:** Independent PSCs ensure fair recruitment and prevent political patronage in selection. E.g., **Articles 315–323** guarantee **constitutional autonomy** for **merit-based recruitment**.
- **Youth Confidence:** Transparent exams reduce judicial interventions & mass protests. E.g., multiple **SPSC exams in Telangana (2023)** and **Bihar (2024)** saw thousands of candidates affected due to litigation.
- **Governance Capacity:** Timely recruitment addresses **chronic vacancies in frontline departments** like health, education and policing. E.g. 2nd ARC highlights staffing gaps as a major governance bottleneck.
- **Judicial Validation:** The Supreme Court has emphasised PSC independence as essential to administrative fairness. **(T.N. Public Service Commission vs A. Balasubramaniam,1994)**.



Issues in State PSC Functioning

- **Political Interference:** The **41st Constitutional Amendment (1976)** raised the upper age limit for SPSC members to **62 years** to attract senior civil servants, yet many States appoint underqualified members.
- **Outdated Syllabi:** Unlike **UPSC's periodic expert committees,** many PSCs rarely revise their exam patterns or syllabi, resulting in academic imbalance.
- **Evaluation Errors:** Poor inter-se moderation and flawed translations lead to inconsistent scoring. E.g. Recurrent court cases in **UP and Karnataka** PSCs over mistranslated questions and scaling issues.
- **Reservation Complexity:** Combining vertical, horizontal, and zonal quotas frequently leads to litigation. E.g. HC repeatedly intervened in **Andhra Pradesh and Telangana** roster cases due to calculation errors.

Way Forward

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- ✓ **Dedicated Personnel Ministry:** States should establish personnel ministries for systematic planning. E.g. model after the **Ministry of Personnel, Public Grievances and Pensions** at the Union level.
- ✓ **Transparent Appointments:** Amend rules to fix minimum (55) and maximum (65) age and qualification norms for PSC members. **(2nd ARC recommendations)**
- ✓ **Periodic Syllabus Review:** Constitute standing committees and release draft syllabi for public consultation before finalisation, similar to **UPSC syllabus review committees** that integrate contemporary issues.
- ✓ **Global Best Practices:** Adopt models like the **UK Civil Service Commission** (annual audits and open reports) and **Canada PSC** (structured grievance redress).

{Bodies} 16th Finance Commission **

- The 16th Finance Commission **retained 41% tax devolution share for States** while pushing outcome-linked spending and stricter fiscal discipline.

About Finance Commission (FC)

- **Finance Commission (FC)** is a **constitutional body** constituted by the **President** under **Article 280** of the Constitution.
- **Quasi-Judicial body** constituted **every 5th year** or at a time as the **President** deems necessary.
- It consists of a **chairman and 4 other members** to be appointed by the **President**. They are **eligible for re-appointment**.

Vertical and Horizontal Devolution: Continuity with Course Correction

The 16th Finance Commission maintains **41% vertical devolution** while recalibrating the horizontal formula to balance equity with economic performance.

Vertical Devolution

- **41% Share Retained:** The 16th Finance Commission retained States' share in the divisible pool of central taxes at **41%**, continuing the 15th FC arrangement.
- **Predictability in Transfers:** Divisible pool excludes **cesses, surcharges and collection costs**, ensuring stability in Centre–State fiscal transfers.
- **Fiscal Reassurance:** Continuity provides certainty to States facing rising expenditure on **welfare delivery, infrastructure expansion and climate resilience**.

Horizontal Devolution Formula

- **Rebalanced Criteria:** The 16th FC restructured horizontal devolution to balance **redistributive equity with economic contribution**.
- **Income Distance Dominant:** At **42.5% weight**, it continues to favour poorer States and uphold equity.
- **Population Weight:** Population (2011) weight increased to **17.5%**, reflecting service delivery needs.
- **Demography Weights:** Area and demographic performance weights rationalised to **10% each**.
- **Forest Criterion Retained:** Forest cover maintained at **10%**, recognising ecological services.

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Revised Horizontal Devolution Formula

Criterion	15th FC (2021-26)	16th FC (2026-31)
Per Capita Income Distance	45%	42.5%
Population	15%	17.5%
Demographic Performance	12.5%	10%
Area	15%	10%
Forest Cover	10%	10%
Contribution to GDP (New)	–	10%
Tax and Fiscal Efforts	2.5%	–

Key Structural Shift

- **GDP Contribution Added:** Introduction of **"Contribution to GDP" (10%)** replaces the tax and fiscal effort criterion.
- **Efficiency Recognition:** Rewards States contributing more to national output while retaining redistributive justice.

Impact of the 16th Finance Commission

- **Fiscal Federalism:** Retaining 41% tax devolution **strengthens Centre–State trust&revenue certainty**.
- **Equity Balance:** Revised devolution formula **protects poorer States**, rewarding economic contribution.
- **Fiscal Discipline:** Deficit caps and ending off-budget borrowings **enhance transparency** and **debt sustainability**.
- **Local Empowerment:** Performance-linked grants improve accountability and service delivery at grassroots levels.
- **Structural Reforms:** Push for DISCOM, PSU & subsidy reforms to reduce long-term fiscal vulnerabilities.

Fiscal Discipline and Structural Reforms

- **Fiscal Targets:** The Commission recommends reducing the Union's **fiscal deficit to 3.5% of GDP** and capping **States' deficits at 3% of GSDP** to restore long-term fiscal sustainability.
- **Borrowing Transparency:** All off-budget borrowings by States should be discontinued and fully reflected in budgets to improve transparency and debt credibility.
- **DISCOM Reform:** States are strongly encouraged to pursue the privatisation of DISCOMs to address chronic inefficiencies, losses, and poor service delivery.
- **Debt SPVs: Creation of Special Purpose Vehicles (SPVs)** is suggested to warehouse legacy DISCOM debt, protecting private investors from inherited liabilities.
- **Subsidy Targeting:** The Commission flags **unconditional cash transfers** as fiscally inefficient and calls for sunset clauses and clear exclusion criteria.

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- **Subsidy Accounting:** A **uniform framework for subsidy accounting and disclosure** is recommended, with strict opposition to financing subsidies through off-budget routes.
- **PSE Rationalisation:** Loss-making or inactive State PSEs should face **mandatory Cabinet review**, with closure, disinvestment, or privatisation unless strategically essential.

Key Concerns and Federal Implications of the 16th Finance Commission

- **Devolution Stagnation:** **States' tax share remains at 41%,** despite demands for **50%**, while cesses and surcharges outside the divisible pool continue to shrink untied funds.
- **Equity Shift:** **Reduced income-distance weight** and **new 10% GDP contribution criterion** favour richer, populous states, limiting gains for poorer and southern states.
- **Population Penalty:** A lower weight for demographic performance weakens rewards for early population control, raising concerns of **"ageing before prosperity"** in southern states.
- **Grant Withdrawal:** **Scrapping revenue-deficit grants** hurts hill and special-category states, which face structural fiscal constraints.
- **Fiscal Tightening:** **A 3% GDP deficit cap** and a **ban on off-budget borrowing** improve discipline but risk squeezing state-led welfare and infrastructure spending.

Measures to Strengthen Fiscal Federalism

- ✓ **Buoyancy Incentives:** **Link part of tax devolution to revenue buoyancy** to reward tax reforms. E.g., GST collections grew ~12% annually in reforming states.
- ✓ **Floor Guarantee:** Assure states that nominal tax transfers will not fall below 15th FC levels during transition phases.
- ✓ **Surcharge Cap:** Legally cap cesses/surcharges to protect states' share in the divisible pool. E.g. at 10% of GTR
- ✓ **Federal Dialogue:** Activate the Inter-State Council under **Article 263** for faster, cooperative resolution of fiscal disputes.

{Bodies – Pathfinder for Mains}

Q. To what extent do the recommendations of the 16th Finance Commission address India's persistent vertical and horizontal fiscal imbalances? Evaluate in light of changing Centre–State expenditure responsibilities and sub-national fiscal stress. (250 Words) (15 Marks)

Approach

- **Introduction:** Write a brief introduction about the 16th Finance Commission.
- **Body:** Write how recommendations of the 16th Finance Commission address India's persistent vertical and horizontal fiscal imbalances, its limitations, and the way forward.
- **Conclusion:** Focus on dialogue and buoyancy-related reforms to maintain trust in Centre–State relations.

Model Answer (250 Words)

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- The 16th Finance Commission reinforces fiscal federalism, keeping **41% tax devolution**, introducing performance-based transfers, balancing equity, efficiency, and discipline amid rising state expenditures.

Vertical Fiscal Imbalance

- **41% Tax Share:** Provides **predictability to States' revenues**, continuing the 15th FC arrangement.
- **Divisible Pool Exclusions:** Cesses, surcharges, and collection costs are excluded to maintain stability.
- **Grants-in-Aid:** **Rs 8 lakh crore** for local bodies and **Rs 2.04 lakh crore** for disaster management ease fiscal pressure.
- **Fiscal Reassurance:** Supports rising expenditure in welfare, infrastructure, and climate adaptation.

Horizontal Fiscal Imbalance

- **Revised Formula:** Income distance **42.5%,** population **17.5%**, demography **10%**, area **10%**, forest **10%**, GDP contribution **10%**.
- **GDP Contribution Added:** Rewards States for **economic output** while retaining redistributive justice.
- **Performance-linked Grants:** Encourage **outcome-based spending**, improving accountability at local levels.
- **Equity Protection:** Poorer States still benefit via income distance; richer and populous States are incentivised.

Criterion	15th FC (2021-26)	16th FC (2026-31)
Per Capita Income Distance	45%	42.5%
Population	15%	17.5%
Demographic Performance	12.5%	10%
Area	15%	10%
Forest Cover	10%	10%
Contribution to GDP (New)	–	10%
Tax and Fiscal Efforts	2.5%	–

Limitations & Concerns

- **Tax Stagnation:** 41% share is **inadequate as States** face rising post-GST expenditure pressures.
- **Cess Impact:** Cesses and surcharges outside the divisible pool shrink untied funds for States.
- **Demography Penalty:** Reduced weight for area and population **limits, recognising the southern States' efficiency**.
- **Grant Withdrawal:** The removal of revenue-deficit grants **strains the finances** of hill and special-category States.

Way Forward

- ✓ **Revenue Buoyancy: Link part of tax devolution to states' revenue growth** to incentivise fiscal reforms.
- ✓ **Minimum Guarantee:** Ensure states' transfers do not fall below 15th FC levels during transition periods.
- ✓ **Cess Cap: Legally limit cesses and surcharges** to protect states' share in the divisible pool.

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- ✓ **Federal Dialogue: Reactivate the Inter-State Council** for cooperative resolution of fiscal and expenditure disputes.

Conclusion

- The 16th FC introduces **"growth-oriented federalism,"** rewarding economic contribution, while untied fund constraints highlight the need for **dialogue** and **buoyancy-linked reforms**.

-------- End of Chapter --------

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